

TAB 15



Board of Education Report

File #: Rep-164-23/24, **Version:** 1

Proposition 39 Charter Facilities Compliance for the 2024-2025 School Year - Finding and Written Statements of Reasons Why Certain Charter Schools Cannot be Accommodated on a Single School Site, and Determination of Necessity to Move

January 23, 2024

**Office of the Chief Strategy Officer
Charter Schools Division**

Action Proposed:

Pursuant to California Education Code section 47614 and its implementing regulations (“Regulations”), find and adopt a written statement of reasons why certain charter schools (as identified in the Attachments hereto) that submitted a Proposition 39 facilities request for the 2024-2025 school year cannot be accommodated on a single school site. Also determine it is necessary to move part of certain charter schools’ operations to an additional school site.

Background:

With the passage of Proposition 39 in November 2000, California Education Code section 47614 (“Proposition 39”) was amended with the intent that public school facilities should be shared fairly among all public-school pupils, including those in charter schools.

Proposition 39 requires that school districts make available to each charter school operating in the school district, facilities that will accommodate all of the charter school’s in-district students. The facilities must be in conditions “reasonably equivalent” to those in which the students would be accommodated if they were attending other public schools of the district, and the school district may not move a charter school unnecessarily. For each legally sufficient facilities request submitted by a charter school to a school district, the Regulations require the school district to deliver to the charter school a preliminary proposal on or before February 1st, and a final offer on or before April 1ST.

The Board of Education has authorized the Superintendent (and/or their designee(s)) to issue preliminary proposals and final offers of space to all charter schools that submitted legally sufficient facilities requests, for the specific school year at issue, in accordance with requirements and timelines of Proposition 39 and the Regulations. (Board Report No. 098 - 18/19, dated October 2, 2018).

The District is prepared to make preliminary proposals and final offers of space at operating District school sites to all eligible charter school applicants. While most preliminary proposals and final offers will accommodate charter schools at a single school site, some will accommodate certain charter schools (identified in the Attachments hereto) at more than one school site.

Section 11969.2, subdivision (d) of the Regulations provides that if a school district’s preliminary proposal or final offer of space does not accommodate a charter school at a single school site, the district’s governing board must first: (i) make a finding that the charter school cannot be accommodated at a single site; and (ii) adopt a written statement of the reasons explaining the finding.

The charter schools identified in the Attachments hereto cannot be accommodated at a single site because of several factors, such as: the large number of seats identified in the charter school's facilities request, the lack of available classrooms on a single site in the specific area requested by the charter school, multiple charter schools' requests for facilities at the same school site or in the same area, and/or the charter school's request to be located at more than one school site. In addition to design capacity and geographical limitations, the District gave substantial consideration to District and charter students' safety and welfare, including, but not limited to, the disproportionate harm to District students that would result from forcibly dislocating children from their neighborhood schools to make room for non-neighborhood charter students.

Each Attachment hereto includes the following, as mandated by Proposition 39 and the Regulations:

- a) The process for staff's determination that a particular charter school cannot be accommodated on a single site. The process included, among other things, (1) a description of how the District determined available classroom inventory to meet a charter school's facilities request; (2) the rationale for making a multiple site offer; and (3) material considerations of student safety and welfare when balancing all available alternatives; and
- b) A recommended finding that a certain charter school could not be accommodated at a single site and written statement of reasons explaining the finding, and a determination that it is necessary to move part of the charter school's operations to an additional school site (if applicable).

Expected Outcomes:

As mandated by Proposition 39 and the Regulations, the Board will make findings and adopt written statements of the reasons why certain charter schools (as identified in the Attachments hereto) that submitted Proposition 39 facilities requests cannot be accommodated at a single school site for the 2024-2025 school year. The Board will also determine it is necessary to move part of certain charter schools' operations to an additional school site.

Board Options and Consequences:

If "no" vote, the District will not be in compliance with section 11969.2, subdivision (d) of the Regulations requiring the Board to make findings and adopt written statements as to why certain charter schools (as identified in the Attachments hereto) will receive Proposition 39 preliminary proposals and/or final offers accommodating them at more than one school site. The Board will also not determine if it is necessary to move part of certain charter schools' operations to an additional school site.

If "yes" vote, the District will be in compliance with section 11969.2, subdivision (d) of the Regulations requiring the Board to make findings and adopt written statements as to why certain charter schools (as identified in the Attachments hereto) will receive Proposition 39 preliminary proposals and/or final offers accommodating them at more than one school site. The Board will also determine it is necessary to move part of certain charter schools' operations to an additional school site.

Policy Implications:

This action does not change District policies.

Budget Impact:

This finding has no budget impact.

Student Impact:

Pursuant to Proposition 39, public school facilities should be shared fairly among all public-school pupils, including those in charter schools. Through this proposed action, the Board is adhering to this mandate.

Equity Impact:

Not Applicable.

Issues and Analysis:

Pursuant to Proposition 39 and the Regulations, the District is required to make a preliminary proposal and final offer of space to each charter school that submitted a legally sufficient request for facilities. If a charter school cannot be accommodated at a single school site, the Board must first make a finding that the charter school cannot be accommodated at a single site and adopt a written statement of the reasons explaining the finding.

Attachments:

Documentation under the Appendix A & B listed below will be available for viewing at the following link:

<https://drive.google.com/drive/folders/192sgoNtQQIqEudH9-bHC0vRkKP9zMKGZ?usp=sharing>

Appendix A: Index of Charter Schools

Appendix B: Attachment for Each Charter School that Cannot be Accommodated on a Single School Site. Each Attachment includes two tabs:

- (a): Staff Report on the Deliberative Process for Determining Why the Charter School Cannot be Accommodated at a Single Site; and
- (b): Board of Education Finding that the Charter School Could Not be Accommodated at a Single Site and Written Statement of Reasons Explaining the Finding, and Determination of Necessity to Move (if applicable)

Informatives:

Not applicable

Submitted:

12/12/23

RESPECTFULLY SUBMITTED,



ALBERTO M. CARVALHO
Superintendent

APPROVED & PRESENTED BY:



VERONICA ARREGUIN
Chief Strategy Officer
Office of the Chief Strategy Officer

REVIEWED BY:



DEVORA NAVERA REED
General Counsel

☒ Approved as to form.

APPROVED & PRESENTED BY:



JOSÉ COLE-GUTIÉRREZ
Director
Charter Schools Division

REVIEWED BY:



NOLBERTO DELGADILLO
Deputy Chief Business Officer, Finance

☒ Approved as to budget impact statement.

APPENDIX A

BOARD OF EDUCATION REPORT 164-23/24

January 23, 2024

INDEX OF CHARTER SCHOOLS

**Proposition 39 Charter Facilities Compliance for the 2024-25 School Year
Findings and Written Statements of Reasons Why Certain Charter Schools
Cannot be Accommodated on a Single School Site
(and Determination of Necessity to Move (if applicable))**

The charter schools identified below will be accommodated at more than one school site. For each of these charter schools, Appendix B includes Attachments (a) and (b), as follows:

- (a) Staff Report on Deliberative Process for Determining Why the Charter School Cannot be Accommodated at a Single Site;
- (b) Board of Education Finding that the Charter School Cannot be Accommodated at a Single Site and Written Statement of Reasons Explaining the Finding (and Determination of Necessity to Move (if applicable))

ATTACHMENT	CHARTER SCHOOL NAME	DISTRICT SCHOOL SITES	REGION	BD
1	Ararat Charter School	Erwin Elementary	N	6
		Kindergarten Learning Academy	N	3
2	Citizens of the World Charter School Hollywood	Joseph Le Conte Middle School	W	5
		Hoover Street Elementary	W	5
3	Citizens of the World Charter School Mar Vista	Cienega Elementary	W	1
		Westport Heights Elementary	W	4
		Webster Middle School	W	4
4	Citizens of the World Charter School Silver Lake	John H Liechty Middle School	E	2
		Virgil Middle School	E	2
5	Extera Public School	Breed Street Elementary	E	2
		2nd Street Elementary	E	2

ATTACHMENT	CHARTER SCHOOL NAME	DISTRICT SCHOOL SITES	REGION	BD
6	Gabriella Charter School 2	Trinity Street Elementary	E	5
		West Vernon Avenue Elementary	E	5
7	Ingenium Charter Middle School	John A. Sutter Middle School	N	4
		Woodland Hills Academy	N	4
8	ISANA Octavia Academy	Fletcher Drive Elementary	W	5
		Washington Irving Middle School Math, Music, and Engineering Magnet	W	5
9	ISANA Palmati Academy	Glenwood Elementary	N	6
		Roy Romer Middle School	N	6
10	Lashon Academy	Robert Fulton College Preparatory School	N	6
		Valerio Street Elementary	N	6
11	Magnolia Science Academy 7	Lorne Street Elementary	N	3
		Shirley Avenue Elementary	N	4
		Sunny Brae Avenue Elementary	N	3
12	Synergy Charter Academy	28th Street Elementary	E	5
		Quincy Jones Elementary	E	5
13	WISH Community School	Orville Wright Engineering & Design Magnet	W	4
		Westchester Enriched Sciences Magnets	W	4

ATTACHMENT 1(a): ARARAT CHARTER SCHOOL**Staff Report on Deliberative Process for Determining Why Ararat Charter School Cannot be Accommodated at a Single Site****Charter School's Facilities Request**

1. On or before November 1, 2023, Ararat Charter School ("Charter School") submitted a Proposition 39 Online Facilities Request Form ("Facilities Request") to the District, requesting use of District facilities for a projected in-district classroom average daily attendance ("ADA") of 312.80 in grades TK-5 for the 2024-25 school year ("Next Fiscal Year"). Charter School identified 56 different District schools that its charter school students would otherwise attend. Charter School's facilities request was one of 46 that the District received for the Next Fiscal Year. Charter School requested facilities at Erwin Elementary School and Kindergarten Learning Academy ("Requested Sites"). Charter School is currently operating at Erwin Elementary School and Kindergarten Learning Academy.

2. District staff reviewed information provided in support of Charter School's ADA projections and determined that a reasonable in-district classroom ADA projection for Charter School is 312.80.

3. Charter School's facilities request identified Kindergarten Learning Academy and Erwin Elementary School as the District school sites and/or general geographic area in which Charter School wishes to locate.

4. If Charter School's request can be satisfied, further analysis is unnecessary. Therefore, rather than attempt to locate Charter School on a single site, pursuant to Education Code section 47614, District staff engaged in an effort to satisfy Charter School's request and provide a multi-site co-location at the Requested Sites.

5. Charter School requested to locate on two campuses. The District has the ability to locate Charter School at the two facilities where it wishes to locate. Consequently, District staff

concluded it could not accommodate Charter School on a single site and comply with Education Code section 47614.

6. Therefore, District staff recommends making this complete offer of contiguous space to Charter School at Requested Sites (“Recommended Co-Locations”).

ATTACHMENT 1(b): ARARAT CHARTER SCHOOL

Board of Education Finding that Ararat Charter School Cannot Be Accommodated at a Single Site and Written Statement of Reasons Explaining the Finding (Cal. Code Regs., tit. 5, § 11969.2, subd. (d))

Whereas, Under Proposition 39, the Los Angeles Unified School District (“District”) is required to fairly share space between public school pupils, charter and non-charter students alike;

Whereas, In making an allocation of space, the District attempts to place a charter school applicant on one school site or, when that is not feasible, alternatively attempts to minimize the number of school sites on which the charter school applicant is placed;

Whereas, In making an allocation of space, the District materially considers the safety implications to charter and District school students of making a multi-site offer, and balances the safety, instructional, and social consequences of displacing children from their District schools, as well as the burdens associated with such an action on their parents and the community;

Whereas, For the Next Fiscal Year, 46 charter schools requested facilities under the Proposition 39 process, asking for approximately 13,110 seats from the District;

Whereas, Charter School submitted an application for Proposition 39 facilities for the Next Fiscal Year;

Whereas, Charter School’s facilities request states that it wishes to remain at its current two campuses;

Whereas, Rather than attempt to locate Charter School on a single site, pursuant to Education Code section 47614, District staff engaged in an effort to satisfy Charter School’s request and provide a multi-site co-location at Requested Sites;

Whereas, The District has the ability to co-locate Charter School where it wishes;

Whereas, The District cannot accommodate Charter School on a single site and comply with Education Code section 47614;

Whereas, By providing space to Charter School at the Recommended Co-Locations, the District has made reasonable efforts to provide Charter School with facilities near to where Charter School wishes to locate; and

Whereas, The District can make a complete and contiguous, multi-site offer to accommodate Charter School’s entire in-district classroom ADA; therefore be it

Resolved, That pursuant to California Code of Regulations, title 5, section 11969.2, subdivision (d), for the reasons set forth herein and as further expressed by District staff, the Governing Board

of the Los Angeles Unified School District finds that the District cannot accommodate Charter School at a single school site; and therefore be it finally

Resolved, That pursuant to Education Code sections 35160-35160.1 and 47614, and California Code of Regulations, title 5, section 11969.1, et seq., for the reasons set forth herein and as further expressed by District staff, the Governing Board of the Los Angeles Unified School District authorizes a preliminary proposal and final offer of facilities to Charter School for the Next Fiscal Year at multiple District school sites.

**ATTACHMENT 2(a): CITIZENS OF THE WORLD CHARTER SCHOOL
HOLLYWOOD**

Staff Report on Deliberative Process for Determining Why Citizens of the World Charter School
Hollywood Cannot be Accommodated at a Single Site

Charter School's Facilities Request

1. On or before November 1, 2023, Citizens of the World Charter School Hollywood ("Charter School") submitted a Proposition 39 Online Facilities Request Form ("Facilities Request") to the District, requesting use of District facilities for a projected in-district classroom average daily attendance ("ADA") of 480.70 in grades TK-5 for the 2024-25 school year ("Next Fiscal Year"). Charter School identified 126 different District schools that its charter school students would otherwise attend. Charter School's Facilities Request was one of 46 that the District received for the Next Fiscal Year. Charter School requested facilities at Joseph Le Conte Middle School. Charter School is currently operating at Joseph Le Conte Middle School.

2. District staff reviewed information provided in support of Charter School's ADA projections and determined that a reasonable in-district classroom ADA projection for Charter School is 480.70.

3. Education Code section 47614, subdivision (b) requires the District to provide charter schools with facilities sufficient for the charter school to accommodate all of its in-district students in conditions "reasonably equivalent" to those in which the students would be accommodated if they were attending other public schools of the district.

4. To determine whether the conditions of facilities provided to a charter school are "reasonably equivalent" to the school district facilities that charter school students would otherwise attend, the District adheres to the Proposition 39 implementing regulations (California Code of Regulations, title 5, section 11969.1, et seq.) which direct school districts to measure those facilities against the facilities used by district students at a "comparison group" of schools. As the

District is divided into high school attendance areas, in selecting comparison group schools, the District must follow California Code of Regulations, title 5, section 11969.3, subdivision (a)(2), which states, “[t]he comparison group shall be the district-operated schools with similar grade levels that serve students living in the high school attendance area... in which the largest number of students of the charter school reside.” District staff reviewed Charter School’s projected in-district classroom ADA broken down by grade level and its identification of the 126 different District schools its projected charter school students would otherwise attend. Based on the information provided by Charter School, District staff determined that the attendance area where the largest number of Charter School’s projected students reside is the Bernstein Zone of Choice attendance area. Consequently, based on the grade levels that Charter School projects it will serve, District staff identified the following as the District-operated schools with similar grade levels that serve students within the Bernstein Zone of Choice attendance area; i.e., Charter School’s comparison group schools: Grant Elementary, Kingsley Elementary, and Ramona Elementary.

5. The District also follows California Code of Regulations, title 5, section 11969.3, subdivision (b)(1), which requires that the facilities made available by a school district to a charter school shall be provided in the same ratio of teaching stations (classrooms) to ADA as those provided to students in the district attending comparison group schools. To implement a fair sharing of space, the District determines the ratio of ADA-to-classrooms provided for each of the charter school’s comparison group schools and uses an average of those figures to determine the number of classrooms to provide to the charter school. It also results in the District allocating classroom space sufficient to allow a charter school to maintain the same minimum number of seats in a classroom as maintained in the District’s comparison group schools, that is, to maintain conditions reasonably equivalent to the comparison group schools as required by Proposition 39. In other words, it results in accommodating charter school students on District school sites as they would be accommodated if they otherwise attended those District schools. Consequently, this calculation is used to ensure the number of classrooms provided to charter schools is equivalent to

the number of classrooms provided at their comparison group schools.

6. Relying upon an in-district classroom ADA projection of 480.70 for the Next Fiscal Year, and an average ADA-to-classrooms provided ratio at the comparison group schools of 17.69, the District determined that Charter School is entitled to 27 teaching stations (classrooms) and one classroom space to be used as its administrative office. The District also determined that Charter School is entitled to 2 special education classroom(s).

7. Charter School's facilities request states: "CWC HW is currently located on Le Conte MS at 1316 N. Bronson Avenue. Our current co-location with Le Conte MS has been an extremely positive partnership that CWC HW wishes to continue in the future. Le Conte MS is located in zip code 90028, which is within CWC HW's target neighborhoods per our approved LAUSD charter (zip codes 90028, 90038, 90068). CWC HW respectfully requests that all assigned classrooms be located on the Le Conte MS campus."

8. Based on the foregoing, if the in-district classroom ADA of Charter School cannot be accommodated entirely at Joseph Le Conte Middle School in the Next Fiscal Year, District staff recommends allocating Charter School facilities at Joseph Le Conte Middle School and additional school site(s).

9. Education Code section 47614, subdivision (b), provides that facilities provided to a charter school by a school district must be, among other things, "contiguous." The definition of "contiguous" expressed in California Code of Regulations, title 5, section 11969.2, subdivision (d), states that facilities are "contiguous" if they are contained on the school site or immediately adjacent to the school site, and that if the in-district classroom ADA of a charter school cannot be accommodated on any single school district school site, contiguous facilities also includes facilities located at more than one site, provided that the school district shall minimize the number of sites assigned and shall consider student safety. As explained below, pursuant to Proposition 39, District staff first engaged in an effort to create a single-site offer to accommodate Charter School's projected total in-district classroom ADA in the Next Fiscal Year at Joseph Le Conte Middle

School. District staff evaluated space at Joseph Le Conte Middle School (the District school site at which Charter School wishes to locate) and determined that Joseph Le Conte Middle School will not have sufficient classroom space to accommodate Charter School's total in-district classroom ADA in the Next Fiscal Year. Rather than attempt to locate Charter School on a single site different from the requested site, pursuant to Education Code section 47614, District staff engaged in an effort to satisfy Charter School's request and provide a multi-site allocation of contiguous facilities.

10. Therefore, District staff recommends providing space at the following locations to Charter School to accommodate its total in-district classroom ADA for the Next Fiscal Year: Joseph Le Conte Middle School and Hoover Street Elementary (collectively, the "Recommended Co-Locations"). By providing space to Charter School at the Recommended Co-Locations, the District has made reasonable efforts to provide Charter School with facilities near to where Charter School wishes to locate and to minimize the number of sites assigned to Charter School.

Process District Staff Followed to Locate Space for Charter School Pursuant to

Proposition 39

11. The District's Charter Schools Division ("CSD") determined that in the 2023-24 school year, more than 148,194 students enrolled in charter schools authorized by the District. This figure reflects a 1,865 student decrease compared to the number of students enrolled during the previous school year. In the 2023-24 school year, the District had the most charter students attending schools authorized by a District of any school district in the nation. The District ensured that every eligible in-district charter student was offered a seat.

12. For the 2024-25 Proposition 39 cycle, the District is applying a comprehensive process to ensure that every eligible in-district charter school student is offered a seat at a District campus. The District is following a critical schedule of steps, from receiving the initial request for facilities by a charter school to making facilities ready for occupancy, in order to timely meet the Proposition 39 timeline. The general process District staff is following in administering Charter

School's Facilities Request is the same that it used to process each of the other facilities requests the District received from charter schools for the Next Fiscal Year. That process is as follows:

13. Beginning in September 2023, School Management Services and Master Planning & Demographics ("SMS-MPD") staff, which includes District personnel in the District's Facilities Services Division experienced in public school facilities utilization that assess all of the educational space within the District, conducted a comprehensive analysis of the use of District classrooms school facilities, called E-CAR. E-CAR was implemented at the beginning of the Proposition 39 process to assess capacity at school sites throughout the District, and commenced with a preparation period during which SMS-MPD staff examined materials submitted by all District schools in the previous year for accuracy, as well as for consistency with previous assessments' classroom usage and availability determinations. The SMS-MPD staff applied standard formulae for the usage of classrooms in order to generate an objective and uniform assessment of the amount of total classroom space at District school sites. The purpose of this calculus is to assess the number of classrooms required to accommodate instructional program enrollment, based on grade level and specific course subject matters at secondary schools.

14. Next, the E-CAR process involves District school principals at more than 700 District school sites logging into an online application to validate their school's enrollment and to review and confirm details regarding the school site's classrooms and their respective utilization. Specifically, the principals identified and validated classroom space utilized as teaching stations and "set-asides" (classrooms used for purposes other than general education), along with classroom numbers, locations, and sizes. Additionally, the principals identified classrooms occupied by special education programs, charter schools, preschools, alternative education programs, option programs, and other third-party users, as well as swing space needed for construction projects, and classrooms that are out of service or mandated for removal due to legal and/or safety/physical condition requirements. The purpose of E-CAR is to accurately assess the current capacity of each District school site in several respects: the number and size of classrooms,

the manner in which those classrooms are currently used, and the school's operating capacity. E-CAR entails a detailed review of the present use of District school sites and an analysis of the projected future uses of those facilities. The analysis includes reporting of data by individual schools, which is reviewed by SMS-MPD staff to confirm its accuracy and to ensure that space is used efficiently and uniformly throughout the District.

15. To ensure that District school administrators are provided the resources necessary for a complete and accurate assessment of their school's capacity, they were instructed to reference the following resource materials for their school site: A current school map; the school's former or most recent Norm Day classification report (which details the number of students enrolled at that school on September 15, 2023); the Norm Day classification report for any magnet centers and/or dual language programs located on the school site; the Classroom Inventory and Allocation Worksheet pages from the prior school year's Capacity Assessment Review report, which contains information for classroom counts and allocations into precisely-defined categories; and the number of teaching positions in all categories, including general education, special day, magnet, dual-language, physical education, and off-norm-funded positions.

16. Categorizing classrooms in this way is important because a school's capacity involves more than its raw seats and room numbers. The District must determine whether a school site has facilities available to sufficiently serve the particular requirements of a school, such as grade levels, special education programs, magnet centers, Small Learning Communities, Personalized Learning Environments, legal mandates, and other student needs.

17. District staff reviewed the foregoing data regarding specific capacity information at District school sites for the Next Fiscal Year. Utilizing this data, SMS-MPD provided CSD with the number of estimated available classrooms, at each District school site given specific operating capacities per programmatic and mandated qualifiers. When planning for maximal use of available school facilities, and in interpreting data generated during the course of facilities planning, it is absolutely critical to understand the difference between "unallocated classrooms" and "available

seats.” To illustrate, a hypothetical District school may not have any unallocated classrooms but may have individual available seats in classrooms currently occupied. As a result, the school may be able to absorb 100 students into its existing classrooms by identifying two free seats spread out among 50 of its classrooms that are used for instruction appropriate to the grade level and subject matter requirements for the students being absorbed. Thus, it is an entirely different proposition to provide and integrate 100 seats across a campus than to provide four or five unallocated classrooms with the same total number of contiguous available seats. In many instances, there may be many available seats in a school, but no unallocated classrooms. This is especially the case for District middle and high schools where the students do not sit in one classroom all day, like an elementary school, but instead attend four or more different classes per day, each in different classrooms and with different teachers and groups of students, in order to receive the mandated curriculum.

18. SMS-MPD generated each instructional program’s operating capacity using a complex mathematical formula which took into account all aspects of the schools’ operations. The operating capacity also accounted for classrooms designated as “set asides.” Public school districts are required to provide special education space, and a parent center at each school which is classified as a set-aside. Also, pre-kindergarten and adult education students are served in classrooms at school sites across the District.

19. District staff analyzed each District school’s estimated available seats and classrooms for the Next Fiscal Year based on the data.

20. As a public institution, the District is required to provide an education to every student who chooses to enroll. The District previously planned its programming and staffing based on estimated enrollment projections, but in the event projections were short, the District was still obligated to provide an education to students who were not originally anticipated. As a safeguard against the overcrowding of classrooms in such situations, the District historically prepared to reserve 75 seats at every secondary school and 50 seats at every elementary school for additional

unanticipated enrollment. Importantly, however, beginning in 2013 and continuing this year, District staff examined the actual historical enrollment data over the last several years at each school site to determine if a trend could be empirically established demonstrating unanticipated growth. Based upon this analysis, the District determined that no seats at any District school sites offered to a charter school should be reserved for unanticipated growth.

21. The District uses the definition contained in California Code of Regulations, title 5, section 11969.3, subdivision (a)(2) to determine comparison group schools. No two schools are identical; however, on a grade-alike basis, a significant majority of the District's schools share reasonably equivalent conditions, especially when taking into account age, quality of materials and state of maintenance, school site size, conditions of surfaces as well as mechanical, plumbing, electrical and fire-life systems, including conformity to applicable codes, availability and condition of technology infrastructure, the condition of the facility as a safe learning environment, including, but not limited to, the suitability of lighting, noise mitigation, and size for intended use, the conditions of the facility's furnishings and equipment, and the condition of athletic fields and play area space. As part of this process, District staff determined whether the conditions of school facilities offered to a charter school were reasonably equivalent to those of the comparison group schools.

Matching Guidelines Utilized by the District for Charter School

22. In accordance with applicable law, the District is guided by the following matching guidelines in order to make contiguous offers of space to charter schools in facilities with reasonably equivalent conditions to those which would accommodate the charter students if they otherwise attended District schools:

- Consider student safety and welfare
- Identify reasonably equivalent facilities
- Minimize the number of sites assigned
- Make reasonable efforts to provide facilities near to where the charter school wishes to locate
- Avoid moving a charter school unnecessarily
- Minimize disruption to District and charter programs
- Fairly balance the needs of District and charter programs

- Avoid displacing any District students from their school of attendance
- Maximize use of unallocated classroom space (i.e., those with no designated use and would be vacant/unassigned in a particular fiscal year, as identified in the District's annual comprehensive analysis of space on District school sites. Classrooms used to provide additional programming or services are not considered unallocated classroom space, and are categorized according to their specific designation).

23. District staff makes every reasonable effort to locate space on a single site, or on multiple sites only if necessary or specifically requested by the charter school, in the charter school applicant's geographic area of interest. Consequently, District staff first attempts to accommodate charter schools at a single school site and looks for available facilities sufficient to accommodate the entirety of a charter school's projected in-district classroom ADA within its desired area of geographic interest. Only when no single school site can be feasibly identified based upon school site design and occupancy limitations, as well as after taking into account the paramount considerations of both District and charter school student safety and welfare, does the District make offers that contemplate the use of multiple school sites.

24. District staff first identifies the classroom inventory by grade level configuration in each geographic region. Grade-alike matches typically provide reasonably equivalent space to charter schools; therefore, wherever possible, District staff allocates space to charter applicants on grade-alike school facilities.

25. District staff next identifies which charter school applicants are currently located in District facilities that they have identified in their geographic area of interest for the following Proposition 39 cycle and, when feasible, matches those charter schools to those school sites. District staff then examines and identifies the geographic areas of interest of other charter school applicants. As described above, multiple charter schools often request space in the exact same location so District staff must assess conflicting geographic as well as particular site interests. In doing so, District staff examines whether the potential match would utilize all available classrooms and whether the match represents a full, single-site offer. Priority is given to those charters where these two goals can be achieved.

26. Based on an examination of these criteria, District staff makes a preliminary match of available classrooms at a particular site to the projected in-district classroom ADA of each charter school. District staff attempts to find the most geographically relevant grade-alike matches. District staff seeks to minimize disruption to and fairly balance the needs of District and charter programs. For multi-site scenarios, District staff eliminates set-asides whenever reasonably possible to reduce the number of sites assigned to a charter school, which often results in being able to transform multi-site offers to single-site offers. While endeavoring to preserve programmatic spaces essential to enriching instruction and student health and human services, District staff may need to engage in the materially disruptive measure of eliminating or otherwise impacting set-asides used to provide services at District schools in order to share space fairly among charter and non-charter students in the District. Set-asides are divided into two categories: District set-asides and School set-asides.

27. School set-asides allocate space for instructional, safety, and health programs that are specific to a particular school. For example, Title I funding coordinator offices are considered School set-asides. Title I funding provides financial assistance to schools with high numbers or high percentages of low-income children to help ensure that all children meet challenging state academic standards. The District uses Title I funds to provide additional academic support and learning opportunities to help low-achieving children master challenging curricula and meet state standards in core academic subjects. Such funds support extra instruction in reading and mathematics, as well as special preschool, after-school, and summer programs to extend and reinforce the regular school curriculum. Additionally, School set-asides are used to allocate space for small learning community (“SLC”) offices. An SLC, also referred to as a School-Within-A-School, is a form of school structure in secondary schools to subdivide large school populations into smaller, autonomous groups of students and teachers. SLCs include structures such as freshman academies, multi-grade academies organized around career interests or other themes, “houses” in which small groups of students remain together throughout high school, and

autonomous schools-within-a-school, as well as personalization strategies, such as student advisories, family advocate systems, and mentoring programs. Research continues to show that small schools and SLCs have the necessary elements to counteract the inherent negative effects of poverty and poor academic achievement for low-income students and/or students of color. (Cotton, *New Small Learning Communities: Findings from Recent Literature*, Portland, Ore: Northwest Regional Educational Laboratory (2001); Jimerson, *The Hobbit Effect: Why Small Works in Public Schools*, The Rural School and Community Trust (August 2006).)

28. At the middle school level, School set-asides are used, for example, for Personal Learning Environment (“PLE”) offices, the middle school equivalent to an SLC. Likewise, School set-asides may be used for the District’s Response to Instruction and Intervention (“RTI²”) program. RTI² integrates assessment and intervention within a multi-level prevention system to maximize student achievement and to reduce behavior problems. With RTI², schools identify students at risk for poor learning outcomes, monitor student progress, provide evidence-based interventions and adjust the intensity and nature of those interventions depending on a student’s responsiveness, and identify students with learning disabilities or other disabilities. In order to provide space to charter schools requesting Proposition 39 facilities, District staff has eliminated or reduced the number of School set-asides on certain campuses. This instructional disruption unfortunately disproportionately affects low-income, low-performing, or disabled District neighborhood children, those who need assistance the most. However, District staff has taken these disruptive measures in order to share facilities fairly with charter schools.

29. District set-asides use school space to implement key District-wide instructional, health, and safety programs. For example, these set-asides include space for District police, regional special educational testing centers, health center clinics, food service, and Beyond the Bell programs, among others. Eliminating these set-asides would deny or interfere with students’ ability to receive the special education and related services to which they are entitled, or force students to travel as much as 50 miles to the next closest center. In the 2023-24 fiscal year, the

District's school-based health clinics are projected to provide approximately 156,000 visits to children who would otherwise have been challenged to access health care. The demand for health services remains as high as it did in the previous school year, and to eliminate these clinics would deprive the neediest children of vital services. Additionally, Beyond the Bell programs ensure that all children and youth in the District have access to high-quality, safe, and supervised academic, enrichment, and recreation programs that inspire learning and achievement beyond the regular school day (before and after school and Saturdays). The three components of Beyond the Bell include academic tutorial, recreational, and enrichment programs vital to the safety and wellbeing of school children. Improved school attendance and test scores have been attributed to student participation in Beyond the Bell's after-school programs. By providing supervision and engagement during after school hours when many parents may be working outside the home, Beyond the Bell's programs help reduce the risk that children might engage in drug or alcohol use, sexual activity, and/or crime. To eliminate Beyond the Bell programs would expose the thousands of children who utilize these programs on a daily basis to danger, harming their academic performance and their overall wellbeing.

30. Although District and School set-asides provide space for programs that are vital to the curriculum of a particular school or to District-wide goals, in order to share space fairly, District staff has cut into these set-asides where doing so would minimize the number of sites offered to a charter school in order to make a complete offer of space.

31. For the Next Fiscal Year, District staff had to grapple with the conflicting needs of 46 different charter school applicants and cycled through its comprehensive space matching process as conscientiously as possible, shifting space and potential matches to fulfill the District's obligation to share space fairly among all students – charter school students and those students attending District schools alike. In doing so, District staff kept in the forefront considerations of student safety and welfare.

32. Often, many charter schools request to be located at the same school site, requiring

District staff to assess conflicting geographic as well as particular site interests. In fact, 12 different charter schools (including Charter School) requested space in Region West for the Next Fiscal Year. District staff had to contend with the conflicting needs of these 12 charter schools, as well as all 46 eligible charter school applicants, shifting space and potential matches to fulfill the District's obligation to share space fairly among all in-district students. The process is extraordinarily dynamic with a complex set of ever-changing pieces, decisions regarding any one of which can result in very real ripple effects for students and programs across multiple school sites.

33. The District's space matching guidelines are just that – guidelines. They cannot be applied in a vacuum and without rationale. In allocating space to charter schools, the District must consider the impact on other public school students, both those attending District schools and those attending other charter schools requesting space. District staff applied the District's matching guidelines in conjunction with thoughtful considerations of the real world impacts on all public students in providing co-location offers to charter schools for the Next Fiscal Year.

34. The District began its space analysis for Charter School by examining data from E-CAR for Joseph Le Conte Middle School related to the 2024-25 school year. As explained above, the E-CAR enrollment for Joseph Le Conte Middle School is reflected in classroom usage as of September 15, 2023, which is known as "Norm Day." The E-CAR data is a "snapshot in time" that reflects classroom availability and usage at a particular school site at the time it is prepared. It is the baseline for the District's comprehensive space analysis of the current and projected utilization and availability of space for a charter school. It does not contemplate any prospective future revisions or factor in projected classroom usage for any subsequent school year, or changes in space utilization needs that occur after the E-CAR data is prepared, such as, for example, increases or decreases in the District school site's enrollment projections for the upcoming school year, planned programmatic expansions, adjustments to ADA-to-classrooms ratios and/or assigned teachers, changes to grade levels served, construction projects, removal of portable classrooms,

charter schools' potentially forthcoming Proposition 39 facilities requests, the planned occupancy by other charter schools or District programs, or any other factor that would result in an adjustment of the number of available classrooms for the Next Fiscal Year. E-CAR data indicated 0 unassigned/unallocated standard size classrooms at Joseph Le Conte Middle School at Norm Day. Charter School occupies 25 rooms at the school site in the current school year.

35. In the second week of November 2023, Region Offices were provided information regarding charter schools that had requested Proposition 39 space, and potential space availability at District school sites. Region West was advised of the District school site(s) and/or general geographic area in which Charter School wishes to locate, and that it was entitled to exclusively use a total of 30 spaces (27 instructional spaces, 2 special education spaces, and one administrative office space) for the Next Fiscal Year. Region West was also advised that there were 12 charter schools that had requested facilities within that same Region.

36. Meetings were also conducted between CSD, SMS-MPD, and others, so that additional District stakeholders such as Region Office leadership and school-site staff could provide further valuable input regarding important information, such as impacts of a potential co-location at a particular school site or unique site conditions that might make it unsuitable. Various provisional matches within each Region were identified and deliberated, and participants thoughtfully discussed potential recommendations as part of the District's comprehensive compliance effort. Per established protocols, the District also invited labor partners, including United Teachers Los Angeles, to Advisory meetings to offer feedback.

37. During the course of the meetings and numerous additional discussions, CSD, Region West, District administrators, SMS-MPD, and others discussed that Joseph Le Conte Middle School will not have adequate availability of space in the Next Fiscal Year to accommodate Charter School's entire projected in-district classroom ADA due to the planned programmatic needs as accounted for in the E-CAR. Also evaluated were the needs, as operationally feasible and permitted by law, to support the District's 100 Priority Schools, Black Student Achievement Program (BSAP) schools,

and Community Schools, and avoid outcomes that would compromise District schools' capacity to serve neighborhood children and/or result in grade span arrangements that negatively impact student safety and actively deter students from attending District schools. Due to these circumstances, Joseph Le Conte Middle School will be unable to accommodate Charter School's entire projected in-district classroom ADA in the Next Fiscal Year.

38. In summary, the District has no realistic ability to allocate 30 exclusive use classroom spaces to Charter School at the Joseph Le Conte Middle School site for the Next Fiscal Year. Allocating such space to Charter School would present significant safety, educational, scheduling, facilities, and operational challenges, and result in significantly harmful negative impacts, displacements, and disruptions to Joseph Le Conte Middle School students. Allocating such space to Charter School would result in an unfair sharing of space between Charter School and Joseph Le Conte Middle School on this school site.

39. If Charter School was provided 30 classroom spaces at Joseph Le Conte Middle School, it would so severely diminish the Joseph Le Conte Middle School program's usable instructional space that it could require some of its teachers to hold classes outside of classroom settings. Alternatively, Joseph Le Conte Middle School could either overcrowd its existing classrooms by reducing its teaching staff and increasing the number of student desks in classrooms or require two teachers to teach class simultaneously in one classroom. Both options would not only overburden the teachers forced to teach those classes, but would also unfairly crowd students and block safe access to doors. None of these possibilities are realistically feasible.

40. District staff has determined that the quality of the education for both Joseph Le Conte Middle School students and Charter School students would suffer significantly if Charter School were provided 30 classroom spaces at Joseph Le Conte Middle School. Joseph Le Conte Middle School's existing space constraints have already substantially impacted Joseph Le Conte Middle School students, teachers, staff, and administrators. Provision of facilities sufficient to accommodate the entirety of a charter school's projected in-district classroom ADA in the Next

Fiscal Year would further exacerbate the negative harmful impacts to such a point that it would be impossible for all of the students to share space fairly and receive a proper education. It would also result in increased emotional hardship and further loss of morale in students, teachers, staff, and administrators alike.

41. To accommodate Charter School's entire in-district classroom ADA at Joseph Le Conte Middle School would also present substantial safety concerns for both charter and non-charter District students. By way of example, District staff estimated that to accommodate all of Charter School's students at Joseph Le Conte Middle School would require the forcible displacement of a significant number of students attending Joseph Le Conte Middle School. Displacing students out of Joseph Le Conte Middle School would have far-reaching safety, instructional, and social implications.

42. For instance, many Joseph Le Conte Middle School students walk to and from their school. Recent District budgetary cutbacks and the harsh economic climate have made the ability to walk to school a necessity for many families with in-district children. The District school bus program has realized service cuts and route eliminations which have affected many students. As a result of past budget deficits, transportation funding was reduced as part of stabilization efforts. The latest impact came in July 2012, when the District was forced to implement a change to the eligible busing distance for secondary schools from three miles to five miles. These cuts disproportionately affect poorer students and make the ability to walk to school even more crucial.

43. Not only is the ability to walk to school at Joseph Le Conte Middle School a necessity for some students, but walking to school also provides key health benefits. According to the California Department of Public Health ("DPH"), close to one-third of California's children are overweight or obese. The DPH's California Active Communities ("CAC"), in collaboration with CA4Health (a project of the Public Health Institute, with funding from the Centers for Disease Control and Prevention) has determined that a child's overall health is affected by levels of physical inactivity which can be directly linked to time spent in automobiles versus in active

transportation such as walking. Walking or biking to school provides an opportunity for purposeful physical activity toward the accumulation of the recommended 60 minutes or more of daily physical activity for children and youth. (Martin, Moeti and Pullen-Seufert, *Implementing Safe Routes to School: Application for the Socioecological Model and Issues to Consider* (2008).) Active transportation – such as walking and biking – to school can help increase physical activity levels of students and their families. (ChangeLabSolutions, *Incorporating Safe Routes to School into Local School Wellness Policies* (July 2015).) Physical activity reduces the risk of obesity and related chronic diseases, and improves mental health, attendance, and academic performance. (*Ibid.*) Active transportation can also have broad community benefits, including reducing traffic congestion and air pollution, creating safer streets, encouraging cost savings, and building a stronger sense of community. (*Ibid.*) Increasing physical activity through walking and biking to school can help address high obesity rates. (*Ibid.*)

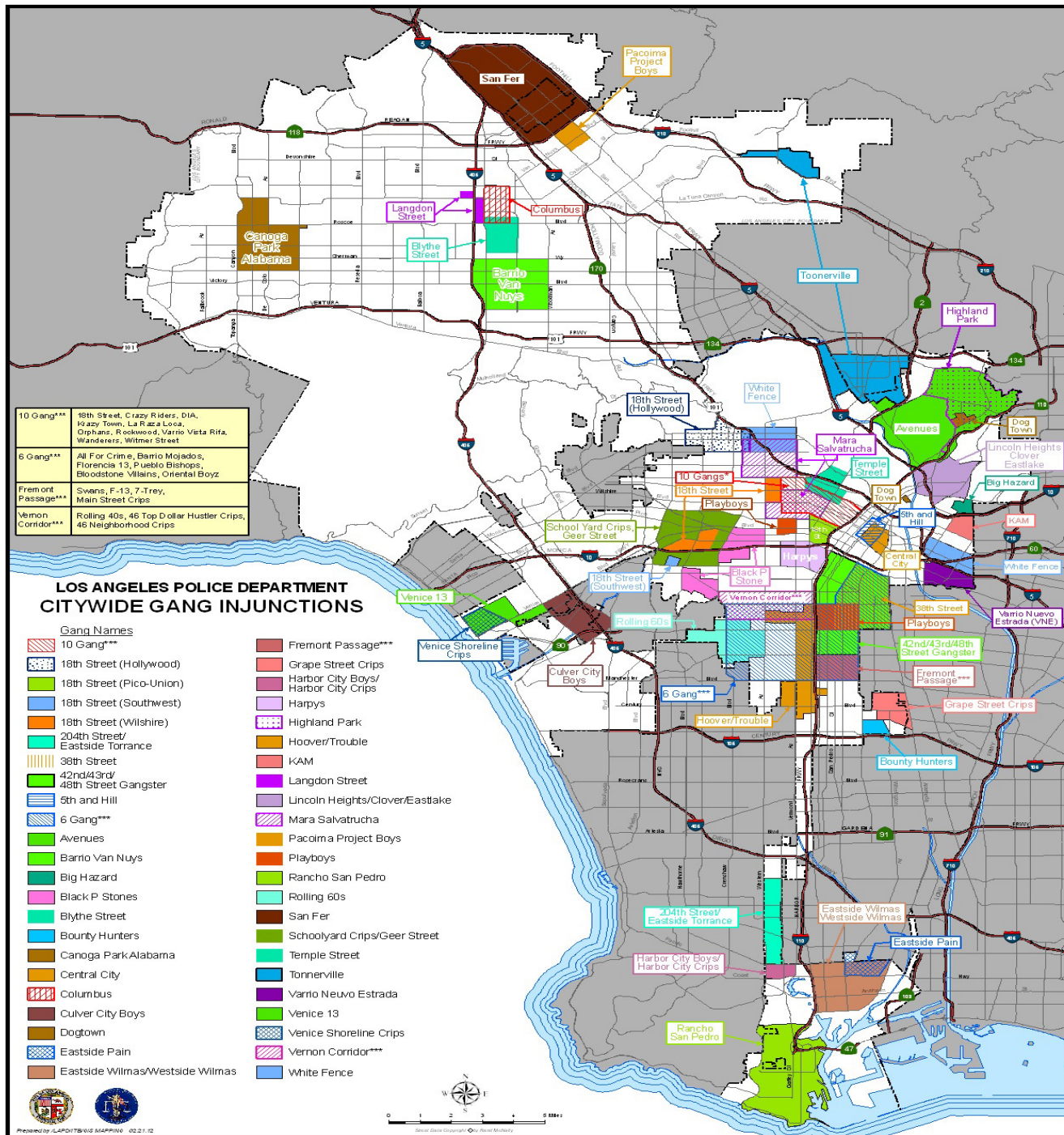
44. Empirical studies have determined that distance is a key impediment to children walking to school safely. (Martin, Moeti and Pullen-Seufert, *Implementing Safe Routes to School: Application for the Socioecological Model and Issues to Consider* (2008).) A study published in the Journal of Public Health Policy examines the multi-level correlates of walking to and from school. Of the physical environmental factors examined, the strongest negative correlates to walking to school were distance and safety concerns. (Zhu & Lee, *Correlates of Walking to School and Implications for Public Policies*, Journal of Public Health Policy (2009).) Recognizing distance as a barrier to the ability for a child to walk to school, CA4Health, the CAC, and the DPH support school siting as well as joint use policies and practices that encourage kids to walk or bike to school.

45. Displacing a significant number of students from Joseph Le Conte Middle School to make additional room for Charter School would prevent a significant number of Joseph Le Conte Middle School children who currently have the ability to safely walk to school from being able to do so. Conversely, Charter School draws its attendance from 126 different District schools.

Therefore, providing a single-site offer at Joseph Le Conte Middle School to Charter School would endanger a significant number of children currently attending their nearby school. Moreover, the forcible displacements would not just be limited to the children attending Joseph Le Conte Middle School. Instead, those students would need to be absorbed into other District schools which may have insufficient space, programs and/or resources to house the influx of students, and would thereby cause the additional forcible displacement of children from these absorbing schools. This would create a ripple effect of forcible displacements necessitating hundreds of children to relocate for the benefit of a far lesser number of Charter School's children. Such a decision would pose disproportionate harm to a significant number of Joseph Le Conte Middle School students and to those District students displaced by the influx of these students, and thus produce inequity in the sharing of facilities.

46. Not only does distance play a factor in children safely walking to school due to traffic dangers, but several Los Angeles neighborhoods are plagued by gang violence. In order to create safe passages to and from school in neighborhoods suffering from gang-related violence, meaningful programs and efforts to mitigate these risks have been launched, such as Kid Watch LA which instituted the Walking School Bus for District students. The Walking School Bus enlists parent and community volunteers to accompany groups of small children as they walk to and from their school.

47. According to the Los Angeles Police Department, the District is located within the territory known as the "gang capital" of the nation, with more than 450 competing gangs. Gang violence is unfortunately prevalent on some campuses and within the neighborhoods of several District schools. As shown by the map depicting former gang injunctions in Los Angeles below, Los Angeles gangs claim particular territories:



48. On March 15, 2018, the City of Los Angeles was enjoined from enforcing these gang injunctions. (See, *Youth Justice Coalition, et al., v. City of Los Angeles, et al.*, CV 16-07932 VAP.) The inability to enforce these injunctions may result in an increase in gang-related activity and crime.

49. Involuntarily displacing students who themselves or whose parents are tied to a particular gang and placing them in a different school located in the territory of another gang would potentially breed gang warfare and violence affecting all children, teachers, staff, and parents at a particular school.

50. Pulling children out of their District schools and placing charter students at those school sites prevents the displaced children from taking advantage of safety measures such as the Walking School Bus and other relevant considerations their families have made, and therefore unfairly endangers the safety of those displaced children. These harms disproportionately affect students attending District schools. As parents of charter school students have elected to send their child to a school outside of his or her local attendance area, the parents have secured a means of transporting their child to this school. However, parents of children who attend District schools may not have the means to find alternate transportation and need to rely on children walking to their school. With the aforementioned reduction of several school bus routes and potential further elimination of transportation funding, many forcibly displaced children will be forced to walk long, unsafe distances or take unsafe public transit routes.

51. Displacing children attending Joseph Le Conte Middle School for the purpose of making a single-site offer to Charter School would have additional instructional and social ramifications. California has an accountability system reported through the California School Dashboard. The state's accountability system includes a three-level identification and support system for local educational agencies, and categorizes district performance levels using a system of five status levels (ranging from Very High, High, Medium, Low and Very Low). The 2022 Dashboard showed the District was assigned a Medium Status level for two of the six state indicators based on the performance of all student groups: English Learner Progress and Graduate Rate indicators. A Low status level was assigned to English Language Arts ("ELA") and Mathematics, and a Very Low status level for Suspension Rate. The District received one Very High-status level for Chronic Absenteeism. Of the thirteen student groups reported, four were in

the Very Low status level, five in Low, three in High, and one in Very High. For the 2023 Dashboard, District performance levels were categorized using a system of five colors, stated in order from lowest to highest performing (Red, Orange, Yellow, Green, and Blue), except in the College/Career Indicator. The 2023 Dashboard results indicate that the District received an Orange performance level for English Learner Progress, Graduation Rate, and English Language Arts (Academic Indicator). The District also received a Yellow performance level for Chronic Absenteeism and Mathematics (Academic Indicator). Though the District received a Yellow indicator for Chronic Absenteeism, it is important to note that the District decreased its chronic absenteeism by 8.8-percentage points to 31% from 39.8% in 2022. In addition, the District received a Blue performance level for its Suspension Rate, and a Medium status level for the College/Career Indicator. In examining the performance of the thirteen student groups, the Dashboard indicates that no student received a Red performance level for Chronic Absenteeism. Among the other indicators, only three of thirteen student groups received at least one Red performance Level. In contrast, twelve student groups received at least one Blue performance level.

52. The District is continuing its efforts to improve performance in all state indicators. Displacing District children attending their District school at Joseph Le Conte Middle School would thwart these efforts, and have instructional and social ramifications. Studies have empirically established that disrupting a child's trajectory to his or her district high school effectively increases drop-out rates. A review of 25 years of research conducted by the California Dropout Research Project identified strong predictors of dropping out of high school. The compilation study identified non-promotional school changes (student mobility) during middle school and high school as a key predictor of a child dropping out of school. (Rumberger & Lim, *Why Students Drop Out: A Review of 25 Years of Research*, California Dropout Research Project (October 2008).)

53. In 1998, a seminal study on the educational consequences of student mobility found a high causal connection between student mobility and an increased risk of high school drop-out. The staggering results of this study indicate that controlling for other predictors, students who made even one non-promotional school change between the eighth and twelfth grades were twice as likely to not complete high school as students who did not change schools. (Rumberger & Larson, *Student Mobility and the Increased Risk of High School Dropout*, American Journal of Education 107 (November 1998).)

54. The safety and welfare of all students is the District's paramount concern and principal charge. The data is indisputable that children who drop out of school are at far greater risk of a vast array of physical, social, and economic harm than those who stay in school and complete their secondary education. This paramount concern of the District remains a material consideration when weighing whether to forcibly displace children from their existing school (such as Joseph Le Conte Middle School) in order to make way for students who would attend school at that site (such as Charter School) from distant neighborhoods, especially when other solutions for sharing space fairly are feasible.

55. An additional impact of such displacement would be the difficulty of sustaining the same level of parental involvement in the absorbing schools. California State Board of Education Policy #89-01 acknowledges that a critical dimension of effective schooling is parental involvement. This policy initiative states that research studies demonstrate parental involvement at school propels a child's educational career. Forcibly displacing students attending Joseph Le Conte Middle School would make it more challenging for those children to reap the benefits of parental involvement in their new schools.

56. An alternative to displacing students attending Joseph Le Conte Middle School would be to overcrowd the site by adding more of Charter School's students. However, this would cause severe safety and operational ramifications due to the design capacity of the Joseph Le Conte Middle School site, making this course of action infeasible. Adding Charter School's students to

the Joseph Le Conte Middle School site or any other District campus with insufficient space to feasibly accommodate Charter School's total in-district classroom ADA would raise both schools' classroom loading ratios, thereby disadvantaging both of these schools' children. Likewise, having children over a school site's capacity sharing space would pose a great risk to student safety and well-being.

57. In making decisions regarding allocations of space, District staff placed the safety of students attending Charter School, Joseph Le Conte Middle School, and other charter and District schools at the forefront of the decision-making process. District staff made substantial efforts to locate charter schools, including Charter School, at or near their desired geographic location and further made material efforts to minimize the number of sites on which each charter school was located. As Charter School's parents/guardians have made a decision to place their child in a school outside of their District school, they have had the opportunity to weigh the safety implications of this decision for their child. On the contrary, the families of forcibly displaced students would have no place in such a decision-making process. Thus, forcibly displacing children from Joseph Le Conte Middle School and/or other impacted District schools would not afford their parents/guardians the same opportunity. In addition, the decision to forcibly displace students to make way for Charter School students necessarily will have safety impacts upon the displaced children, whereas, given the fact that many Charter School students already voluntarily travel to attend Charter School, these children may not face any increased safety risk by being required to, for example, travel five miles east instead of five miles south.

58. Based on the foregoing, the District determined that it was simply not feasible to provide Charter School with a single-site offer at Joseph Le Conte Middle School, and because only a total of 23 spaces (20 teaching stations, 2 special education spaces, and one administrative office space) could be provided to Charter School at Joseph Le Conte Middle School for the Next Fiscal Year, a portion of Charter School's in-district classroom ADA would need to be accommodated at one or more additional site(s). Therefore, in order to ensure a sufficient allocation

of special education and administrative office spaces are provided to Charter School at each District school site, the District has identified 10 classrooms (7 instructional spaces, 2 special education spaces, and one administrative office space) at one or more additional District school site(s). While it is always the District's goal to accommodate a charter school's entire program on a single District school site, sometimes charter schools must be offered space on more than one site, particularly if, as in the case of Charter School, the charter school has a large projected in-district classroom ADA and has indicated in its facilities request a preference not to be moved from its current site.

59. Based on the geographic area of interest identified in Charter School's Facilities Request, the District reviewed and considered the space availability at various alternative nearby District sites with reasonably equivalent facilities in order to accommodate the remainder of Charter School's ADA that could not be accommodated at Joseph Le Conte Middle School.

60. Although it would be preferable to accommodate Charter School's entire program at the Joseph Le Conte Middle School site for the Next Fiscal Year, for the reasons set forth herein it is not possible to provide Charter School with 30 classrooms at the Joseph Le Conte Middle School site without presenting significant, safety, educational, scheduling, facilities, and operational challenges. The Hoover Street Elementary site, which is within Region West and Board District 5, and is located 4.2 miles from the Joseph Le Conte Middle School site according to Google Maps, is the closest reasonably equivalent school site that could also accommodate Charter School. Considering that the District spans over 710 square miles and serves over 27 cities, and based on the plain language of California Code of Regulations, title 5, section 11969.2, subdivision (d), the Hoover Street Elementary site is "contiguous" with the Joseph Le Conte Middle School site.

61. Based on all of the foregoing considerations, District staff recommends providing Charter School with a multi-site offer of contiguous facilities at the Recommended Co-Locations.

**ATTACHMENT 2(b): CITIZENS OF THE WORLD CHARTER SCHOOL
HOLLYWOOD**

**Board of Education Finding that Citizens of the World Charter School Hollywood Cannot
Be Accommodated at a Single Site and Written Statement of Reasons Explaining the
Finding (Cal. Code Regs., tit. 5, § 11969.2, subd. (d)), and Determination of Necessity to
Move**

Whereas, Under Proposition 39, the Los Angeles Unified School District (“District”) is required to fairly share space between public school pupils, charter and non-charter students alike;

Whereas, In making an allocation of space, the District attempts to place a charter school applicant on one school site or, when that is not feasible, alternatively attempts to minimize the number of school sites on which the charter school applicant is placed;

Whereas, In making an allocation of space, the District materially considers the safety implications to charter and District school students of making a multi-site offer, and balances the safety, instructional, and social consequences of displacing children from their District schools, as well as the burdens associated with such an action on their parents and the community;

Whereas, For the Next Fiscal Year, 46 charter schools requested facilities under the Proposition 39 process, asking for approximately 13,110 seats from the District;

Whereas, Charter School submitted an application for Proposition 39 facilities for the Next Fiscal Year;

Whereas, The Board hereby incorporates by reference the entire Staff Report on the Deliberative Process for Determining Why Charter School Cannot be Accommodated at a Single Site for the Next Fiscal Year;

Whereas, District staff engaged in an effort to create a single-site offer to accommodate Charter School’s total in-district classroom ADA;

Whereas, The District cannot accommodate Charter School’s request for a single site at Joseph Le Conte Middle School ;

Whereas, 12 different charter schools (including Charter School) requested space in Region West for the Next Fiscal Year;

Whereas, District staff determined that Joseph Le Conte Middle School (the only District school site or general geographic area in which Charter School wishes to be located) will not have sufficient classroom space to accommodate Charter School’s entire projected in-district classroom ADA in the Next Fiscal Year;

Whereas, The District cannot accommodate Charter School's entire in-district classroom ADA at Joseph Le Conte Middle School;

Whereas, To accommodate Charter School's entire in-district classroom ADA at Joseph Le Conte Middle School would present substantial, disproportionate safety concerns for both Charter School's students and students attending their District school;

Whereas, To accommodate all of Charter School's students at Joseph Le Conte Middle School would require the displacement of a significant number of children attending Joseph Le Conte Middle School, and potentially additional District schools;

Whereas, Involuntarily displacing children out of their existing District schools has far-reaching safety, instructional, and social implications including: prohibiting children from safely walking to school; subjecting children to possible gang violence; increasing high-school drop-out rates; and impairing parental involvement in their children's schools;

Whereas, Based on these safety and instructional considerations, District staff recommends keeping the student populations of Joseph Le Conte Middle School and other District schools intact;

Whereas, Alternatively, over-crowding a school's campus in order to provide a single-site offer to Charter School would have equally severe safety and operational ramifications, making this course of action infeasible;

Whereas, The District can provide Charter School with a multi-site contiguous offer of reasonably equivalent facilities at the "Recommended Co-Locations";

Whereas, Providing Charter School space at the Recommended Co-Locations minimizes the number of sites assigned to Charter School;

Whereas, Because of the short distance between the Recommended Co-Locations in a school district spanning 710 square miles and serving over 27 cities, the Recommended Co-Locations are contiguous facilities;

Whereas, By providing space to Charter School at the Recommended Co-Locations, the District has made reasonable efforts to provide Charter School with facilities near to where Charter School wishes to locate; and

Whereas, The District can make a complete and contiguous, multi-site offer to accommodate Charter School's entire in-district classroom ADA; therefore be it

Resolved, That pursuant to California Code of Regulations, title 5, section 11969.2, subdivision (d), for the reasons set forth herein and as further expressed by District staff, the Governing Board of the Los Angeles Unified School District finds that the District cannot accommodate Charter School at a single school site;

Resolved, That pursuant to Education Code sections 35160-35160.1 and 47614, and California Code of Regulations, title 5, section 11969.1, et seq., for the reasons set forth herein and as further expressed by District staff, the Governing Board of the Los Angeles Unified School District authorizes a preliminary proposal and final offer of facilities to Charter School for the Next Fiscal Year at multiple District school sites; and therefore be it finally

Resolved, That pursuant to Education Code section 47614, subdivision (b), for the reasons set forth herein and as further expressed by District staff, if to the extent that part of Charter School's operations which existed at the Joseph Le Conte Middle School site for the 2023-24 school year must be accommodated at the Hoover Street Elementary site for the Next Fiscal Year constitutes a "move" of Charter School, the Governing Board of the Los Angeles Unified School District determines that such a move is necessary.

ATTACHMENT 3(a): CITIZENS OF THE WORLD CHARTER SCHOOL MAR VISTA**Staff Report on Deliberative Process for Determining Why Citizens of the World Charter School Mar Vista Cannot be Accommodated at a Single Site****Charter School's Facilities Request**

1. On or before November 1, 2023, Citizens of the World Charter School Mar Vista ("Charter School") submitted a Proposition 39 Online Facilities Request Form ("Facilities Request") to the District, requesting use of District facilities for a projected in-district classroom average daily attendance ("ADA") of 383.48 in grades TK-8 for the 2024-25 school year ("Next Fiscal Year"). Charter School identified 99 different District schools that its charter school students would otherwise attend. Charter School's Facilities Request was one of 46 that the District received for the Next Fiscal Year. Charter School requested facilities at Daniel Webster Middle School, with any potential "overflow" at Richland Avenue Elementary. Charter School is currently operating at Daniel Webster Middle School and at a private site.

2. District staff reviewed information provided in support of Charter School's ADA projections and determined that a reasonable in-district classroom ADA projection for Charter School is 383.48.

3. Education Code section 47614, subdivision (b) requires the District to provide charter schools with facilities sufficient for the charter school to accommodate all of its in-district students in conditions "reasonably equivalent" to those in which the students would be accommodated if they were attending other public schools of the district.

4. To determine whether the conditions of facilities provided to a charter school are "reasonably equivalent" to the school district facilities that charter school students would otherwise attend, the District adheres to the Proposition 39 implementing regulations (California Code of Regulations, title 5, section 11969.1, et seq.) which direct school districts to measure those facilities against the facilities used by district students at a "comparison group" of schools. As the

District is divided into high school attendance areas, in selecting comparison group schools, the District must follow California Code of Regulations, title 5, section 11969.3, subdivision (a)(2), which states, “[t]he comparison group shall be the district-operated schools with similar grade levels that serve students living in the high school attendance area... in which the largest number of students of the charter school reside.” District staff reviewed Charter School’s projected in-district classroom ADA broken down by grade level and its identification of the 99 different District schools its projected charter school students would otherwise attend. Based on the information provided by Charter School, District staff determined that the attendance area where the largest number of Charter School’s projected students reside is the University Senior High attendance area. Consequently, based on the grade levels that Charter School projects it will serve, District staff identified the following as the District-operated schools with similar grade levels that serve students within the University Senior High attendance area; i.e., Charter School’s comparison group schools: Brentwood Elementary Science Magnet, Brockton Avenue Elementary, Emerson Community Charter, Fairburn Avenue Elementary, Roscomare Road Elementary, Nora Sterry Elementary, Warner Avenue Elementary, and Westwood Charter Elementary.

5. The District also follows California Code of Regulations, title 5, section 11969.3, subdivision (b)(1), which requires that the facilities made available by a school district to a charter school shall be provided in the same ratio of teaching stations (classrooms) to ADA as those provided to students in the district attending comparison group schools. To implement a fair sharing of space, the District determines the ratio of ADA-to-classrooms provided for each of the charter school’s comparison group schools and uses an average of those figures to determine the number of classrooms to provide to the charter school. It also results in the District allocating classroom space sufficient to allow a charter school to maintain the same minimum number of seats in a classroom as maintained in the District’s comparison group schools, that is, to maintain conditions reasonably equivalent to the comparison group schools as required by Proposition 39.

In other words, it results in accommodating charter school students on District school sites as they would be accommodated if they otherwise attended those District schools. Consequently, this calculation is used to ensure the number of classrooms provided to charter schools is equivalent to the number of classrooms provided at their comparison group schools.

6. Relying upon an in-district classroom ADA projection of 383.48 for the Next Fiscal Year, and an average ADA-to-classrooms provided ratio at the comparison group schools of 21.86, the District determined that Charter School is entitled to 18 teaching stations (classrooms) and one classroom space to be used as its administrative office. The District also determined that Charter School is entitled to 3 special education classroom(s).

7. Charter School's facilities request states: "If all grades cannot fit on one site at our first priority location, Webster MS, then we would like any overflow to be located at Richland ES."

8. Based on the foregoing, if the in-district classroom ADA of Charter School cannot be accommodated entirely at Daniel Webster Middle School in the Next Fiscal Year, District staff recommends allocating Charter School facilities at Daniel Webster Middle School and additional school site(s).

9. Education Code section 47614, subdivision (b), provides that facilities provided to a charter school by a school district must be, among other things, "contiguous." The definition of "contiguous" expressed in California Code of Regulations, title 5, section 11969.2, subdivision (d), states that facilities are "contiguous" if they are contained on the school site or immediately adjacent to the school site, and that if the in-district classroom ADA of a charter school cannot be accommodated on any single school district school site, contiguous facilities also includes facilities located at more than one site, provided that the school district shall minimize the number of sites assigned and shall consider student safety. As explained below, pursuant to Proposition 39, District staff first engaged in an effort to create a single-site offer to accommodate Charter School's projected total in-district classroom ADA in the Next Fiscal Year at Daniel Webster Middle

School. District staff evaluated space at Daniel Webster Middle School (the District school site at which Charter School wishes to locate) and determined that Daniel Webster Middle School will not have sufficient classroom space to accommodate Charter School's total in-district classroom ADA in the Next Fiscal Year. Rather than attempt to locate Charter School on a single site different from the requested site, pursuant to Education Code section 47614, District staff engaged in an effort to satisfy Charter School's request and provide a multi-site allocation of contiguous facilities.

10. Therefore, District staff recommends providing space at the following locations to Charter School to accommodate its total in-district classroom ADA for the Next Fiscal Year: Daniel Webster Middle School, Westport Heights Elementary, and Cienega Elementary (collectively, the "Recommended Co-Locations"). By providing space to Charter School at the Recommended Co-Locations, the District has made reasonable efforts to provide Charter School with facilities near to where Charter School wishes to locate and to minimize the number of sites assigned to Charter School.

**Process District Staff Followed to Locate Space for Charter School Pursuant to
Proposition 39**

11. The District's Charter Schools Division ("CSD") determined that in the 2023-24 school year, more than 148,194 students enrolled in charter schools authorized by the District. This figure reflects a 1,865 student decrease compared to the number of students enrolled during the previous school year. In the 2023-24 school year, the District had the most charter students attending schools authorized by a District of any school district in the nation. The District ensured that every eligible in-district charter student was offered a seat.

12. For the 2024-25 Proposition 39 cycle, the District is applying a comprehensive process to ensure that every eligible in-district charter school student is offered a seat at a District campus. The District is following a critical schedule of steps, from receiving the initial request for facilities by a charter school to making facilities ready for occupancy, in order to timely meet the

Proposition 39 timeline. The general process District staff is following in administrating Charter School's Facilities Request is the same that it used to process each of the other facilities requests the District received from charter schools for the Next Fiscal Year. That process is as follows:

13. Beginning in September 2023, School Management Services and Master Planning & Demographics ("SMS-MPD") staff, which includes District personnel in the District's Facilities Services Division experienced in public school facilities utilization that assess all of the educational space within the District, conducted a comprehensive analysis of the use of District classrooms school facilities, called E-CAR. E-CAR was implemented at the beginning of the Proposition 39 process to assess capacity at school sites throughout the District, and commenced with a preparation period during which SMS-MPD staff examined materials submitted by all District schools in the previous year for accuracy, as well as for consistency with previous assessments' classroom usage and availability determinations. The SMS-MPD staff applied standard formulae for the usage of classrooms in order to generate an objective and uniform assessment of the amount of total classroom space at District school sites. The purpose of this calculus is to assess the number of classrooms required to accommodate instructional program enrollment, based on grade level and specific course subject matters at secondary schools.

14. Next, the E-CAR process involves District school principals at more than 700 District school sites logging into an online application to validate their school's enrollment and to review and confirm details regarding the school site's classrooms and their respective utilization. Specifically, the principals identified and validated classroom space utilized as teaching stations and "set-asides" (classrooms used for purposes other than general education), along with classroom numbers, locations, and sizes. Additionally, the principals identified classrooms occupied by special education programs, charter schools, preschools, alternative education programs, option programs, and other third-party users, as well as swing space needed for construction projects, and classrooms that are out of service or mandated for removal due to legal and/or safety/physical condition requirements. The purpose of E-CAR is to accurately assess the

current capacity of each District school site in several respects: the number and size of classrooms, the manner in which those classrooms are currently used, and the school's operating capacity. E-CAR entails a detailed review of the present use of District school sites and an analysis of the projected future uses of those facilities. The analysis includes reporting of data by individual schools, which is reviewed by SMS-MPD staff to confirm its accuracy and to ensure that space is used efficiently and uniformly throughout the District.

15. To ensure that District school administrators are provided the resources necessary for a complete and accurate assessment of their school's capacity, they were instructed to reference the following resource materials for their school site: A current school map; the school's former or most recent Norm Day classification report (which details the number of students enrolled at that school on September 15, 2023); the Norm Day classification report for any magnet centers and/or dual language programs located on the school site; the Classroom Inventory and Allocation Worksheet pages from the prior school year's Capacity Assessment Review report, which contains information for classroom counts and allocations into precisely-defined categories; and the number of teaching positions in all categories, including general education, special day, magnet, dual-language, physical education, and off-norm-funded positions.

16. Categorizing classrooms in this way is important because a school's capacity involves more than its raw seats and room numbers. The District must determine whether a school site has facilities available to sufficiently serve the particular requirements of a school, such as grade levels, special education programs, magnet centers, Small Learning Communities, Personalized Learning Environments, legal mandates, and other student needs.

17. District staff reviewed the foregoing data regarding specific capacity information at District school sites for the Next Fiscal Year. Utilizing this data, SMS-MPD provided CSD with the number of estimated available classrooms, at each District school site given specific operating capacities per programmatic and mandated qualifiers. When planning for maximal use of available school facilities, and in interpreting data generated during the course of facilities planning, it is

absolutely critical to understand the difference between “unallocated classrooms” and “available seats.” To illustrate, a hypothetical District school may not have any unallocated classrooms but may have individual available seats in classrooms currently occupied. As a result, the school may be able to absorb 100 students into its existing classrooms by identifying two free seats spread out among 50 of its classrooms that are used for instruction appropriate to the grade level and subject matter requirements for the students being absorbed. Thus, it is an entirely different proposition to provide and integrate 100 seats across a campus than to provide four or five unallocated classrooms with the same total number of contiguous available seats. In many instances, there may be many available seats in a school, but no unallocated classrooms. This is especially the case for District middle and high schools where the students do not sit in one classroom all day, like an elementary school, but instead attend four or more different classes per day, each in different classrooms and with different teachers and groups of students, in order to receive the mandated curriculum.

18. SMS-MPD generated each instructional program’s operating capacity using a complex mathematical formula which took into account all aspects of the schools’ operations. The operating capacity also accounted for classrooms designated as “set asides.” Public school districts are required to provide special education space, and a parent center at each school which is classified as a set-aside. Also, pre-kindergarten and adult education students are served in classrooms at school sites across the District.

19. District staff analyzed each District school’s estimated available seats and classrooms for the Next Fiscal Year based on the data.

20. As a public institution, the District is required to provide an education to every student who chooses to enroll. The District previously planned its programming and staffing based on estimated enrollment projections, but in the event projections were short, the District was still obligated to provide an education to students who were not originally anticipated. As a safeguard against the overcrowding of classrooms in such situations, the District historically prepared to

reserve 75 seats at every secondary school and 50 seats at every elementary school for additional unanticipated enrollment. Importantly, however, beginning in 2013 and continuing this year, District staff examined the actual historical enrollment data over the last several years at each school site to determine if a trend could be empirically established demonstrating unanticipated growth. Based upon this analysis, the District determined that no seats at any District school sites offered to a charter school should be reserved for unanticipated growth.

21. The District uses the definition contained in California Code of Regulations, title 5, section 11969.3, subdivision (a)(2) to determine comparison group schools. No two schools are identical; however, on a grade-alike basis, a significant majority of the District's schools share reasonably equivalent conditions, especially when taking into account age, quality of materials and state of maintenance, school site size, conditions of surfaces as well as mechanical, plumbing, electrical and fire-life systems, including conformity to applicable codes, availability and condition of technology infrastructure, the condition of the facility as a safe learning environment, including, but not limited to, the suitability of lighting, noise mitigation, and size for intended use, the conditions of the facility's furnishings and equipment, and the condition of athletic fields and play area space. As part of this process, District staff determined whether the conditions of school facilities offered to a charter school were reasonably equivalent to those of the comparison group schools.

Matching Guidelines Utilized by the District for Charter School

22. In accordance with applicable law, the District is guided by the following matching guidelines in order to make contiguous offers of space to charter schools in facilities with reasonably equivalent conditions to those which would accommodate the charter students if they otherwise attended District schools:

- Consider student safety and welfare
- Identify reasonably equivalent facilities
- Minimize the number of sites assigned
- Make reasonable efforts to provide facilities near to where the charter school wishes to locate
- Avoid moving a charter school unnecessarily

- Minimize disruption to District and charter programs
- Fairly balance the needs of District and charter programs
- Avoid displacing any District students from their school of attendance
- Maximize use of unallocated classroom space (i.e., those with no designated use and would be vacant/unassigned in a particular fiscal year, as identified in the District's annual comprehensive analysis of space on District school sites. Classrooms used to provide additional programming or services are not considered unallocated classroom space, and are categorized according to their specific designation).

23. District staff makes every reasonable effort to locate space on a single site, or on multiple sites only if necessary or specifically requested by the charter school, in the charter school applicant's geographic area of interest. Consequently, District staff first attempts to accommodate charter schools at a single school site and looks for available facilities sufficient to accommodate the entirety of a charter school's projected in-district classroom ADA within its desired area of geographic interest. Only when no single school site can be feasibly identified based upon school site design and occupancy limitations, as well as after taking into account the paramount considerations of both District and charter school student safety and welfare, does the District make offers that contemplate the use of multiple school sites.

24. District staff first identifies the classroom inventory by grade level configuration in each geographic region. Grade-alike matches typically provide reasonably equivalent space to charter schools; therefore, wherever possible, District staff allocates space to charter applicants on grade-alike school facilities.

25. District staff next identifies which charter school applicants are currently located in District facilities that they have identified in their geographic area of interest for the following Proposition 39 cycle and, when feasible, matches those charter schools to those school sites. District staff then examines and identifies the geographic areas of interest of other charter school applicants. As described above, multiple charter schools often request space in the exact same location so District staff must assess conflicting geographic as well as particular site interests. In doing so, District staff examines whether the potential match would utilize all available classrooms

and whether the match represents a full, single-site offer. Priority is given to those charters where these two goals can be achieved.

26. Based on an examination of these criteria, District staff makes a preliminary match of available classrooms at a particular site to the projected in-district classroom ADA of each charter school. District staff attempts to find the most geographically relevant grade-alike matches. District staff seeks to minimize disruption to and fairly balance the needs of District and charter programs. For multi-site scenarios, District staff eliminates set-asides whenever reasonably possible to reduce the number of sites assigned to a charter school, which often results in being able to transform multi-site offers to single-site offers. While endeavoring to preserve programmatic spaces essential to enriching instruction and student health and human services, District staff may need to engage in the materially disruptive measure of eliminating or otherwise impacting set-asides used to provide services at District schools in order to share space fairly among charter and non-charter students in the District. Set-asides are divided into two categories: District set-asides and School set-asides.

27. School set-asides allocate space for instructional, safety, and health programs that are specific to a particular school. For example, Title I funding coordinator offices are considered School set-asides. Title I funding provides financial assistance to schools with high numbers or high percentages of low-income children to help ensure that all children meet challenging state academic standards. The District uses Title I funds to provide additional academic support and learning opportunities to help low-achieving children master challenging curricula and meet state standards in core academic subjects. Such funds support extra instruction in reading and mathematics, as well as special preschool, after-school, and summer programs to extend and reinforce the regular school curriculum. Additionally, School set-asides are used to allocate space for small learning community (“SLC”) offices. An SLC, also referred to as a School-Within-A-School, is a form of school structure in secondary schools to subdivide large school populations into smaller, autonomous groups of students and teachers. SLCs include structures such as

freshman academies, multi-grade academies organized around career interests or other themes, “houses” in which small groups of students remain together throughout high school, and autonomous schools-within-a-school, as well as personalization strategies, such as student advisories, family advocate systems, and mentoring programs. Research continues to show that small schools and SLCs have the necessary elements to counteract the inherent negative effects of poverty and poor academic achievement for low-income students and/or students of color. (Cotton, *New Small Learning Communities: Findings from Recent Literature*, Portland, Ore: Northwest Regional Educational Laboratory (2001); Jimerson, *The Hobbit Effect: Why Small Works in Public Schools*, The Rural School and Community Trust (August 2006).)

28. At the middle school level, School set-asides are used, for example, for Personal Learning Environment (“PLE”) offices, the middle school equivalent to an SLC. Likewise, School set-asides may be used for the District’s Response to Instruction and Intervention (“RTI²”) program. RTI² integrates assessment and intervention within a multi-level prevention system to maximize student achievement and to reduce behavior problems. With RTI², schools identify students at risk for poor learning outcomes, monitor student progress, provide evidence-based interventions and adjust the intensity and nature of those interventions depending on a student’s responsiveness, and identify students with learning disabilities or other disabilities. In order to provide space to charter schools requesting Proposition 39 facilities, District staff has eliminated or reduced the number of School set-asides on certain campuses. This instructional disruption unfortunately disproportionately affects low-income, low-performing, or disabled District neighborhood children, those who need assistance the most. However, District staff has taken these disruptive measures in order to share facilities fairly with charter schools.

29. District set-asides use school space to implement key District-wide instructional, health, and safety programs. For example, these set-asides include space for District police, regional special educational testing centers, health center clinics, food service, and Beyond the Bell programs, among others. Eliminating these set-asides would deny or interfere with students’

ability to receive the special education and related services to which they are entitled, or force students to travel as much as 50 miles to the next closest center. In the 2023-24 fiscal year, the District's school-based health clinics are projected to provide approximately 156,000 visits to children who would otherwise have been challenged to access health care. The demand for health services remains as high as it did in the previous school year, and to eliminate these clinics would deprive the neediest children of vital services. Additionally, Beyond the Bell programs ensure that all children and youth in the District have access to high-quality, safe, and supervised academic, enrichment, and recreation programs that inspire learning and achievement beyond the regular school day (before and after school and Saturdays). The three components of Beyond the Bell include academic tutorial, recreational, and enrichment programs vital to the safety and wellbeing of school children. Improved school attendance and test scores have been attributed to student participation in Beyond the Bell's after-school programs. By providing supervision and engagement during after school hours when many parents may be working outside the home, Beyond the Bell's programs help reduce the risk that children might engage in drug or alcohol use, sexual activity, and/or crime. To eliminate Beyond the Bell programs would expose the thousands of children who utilize these programs on a daily basis to danger, harming their academic performance and their overall wellbeing.

30. Although District and School set-asides provide space for programs that are vital to the curriculum of a particular school or to District-wide goals, in order to share space fairly, District staff has cut into these set-asides where doing so would minimize the number of sites offered to a charter school in order to make a complete offer of space.

31. For the Next Fiscal Year, District staff had to grapple with the conflicting needs of 46 different charter school applicants and cycled through its comprehensive space matching process as conscientiously as possible, shifting space and potential matches to fulfill the District's obligation to share space fairly among all students – charter school students and those students

attending District schools alike. In doing so, District staff kept in the forefront considerations of student safety and welfare.

32. Often, many charter schools request to be located at the same school site, requiring District staff to assess conflicting geographic as well as particular site interests. In fact, 12 different charter schools (including Charter School) requested space in Region West for the Next Fiscal Year. District staff had to contend with the conflicting needs of these 12 charter schools, as well as all 46 eligible charter school applicants, shifting space and potential matches to fulfill the District's obligation to share space fairly among all in-district students. The process is extraordinarily dynamic with a complex set of ever-changing pieces, decisions regarding any one of which can result in very real ripple effects for students and programs across multiple school sites.

33. The District's space matching guidelines are just that – guidelines. They cannot be applied in a vacuum and without rationale. In allocating space to charter schools, the District must consider the impact on other public school students, both those attending District schools and those attending other charter schools requesting space. District staff applied the District's matching guidelines in conjunction with thoughtful considerations of the real world impacts on all public students in providing co-location offers to charter schools for the Next Fiscal Year.

34. The District began its space analysis for Charter School by examining data from E-CAR for Daniel Webster Middle School related to the 2024-25 school year. As explained above, the E-CAR enrollment for Daniel Webster Middle School is reflected in classroom usage as of September 15, 2023, which is known as "Norm Day." The E-CAR data is a "snapshot in time" that reflects classroom availability and usage at a particular school site at the time it is prepared. It is the baseline for the District's comprehensive space analysis of the current and projected utilization and availability of space for a charter school. It does not contemplate any prospective future revisions or factor in projected classroom usage for any subsequent school year, or changes in space utilization needs that occur after the E-CAR data is prepared, such as, for example,

increases or decreases in the District school site's enrollment projections for the upcoming school year, planned programmatic expansions, adjustments to ADA-to-classrooms ratios and/or assigned teachers, changes to grade levels served, construction projects, removal of portable classrooms, charter schools' potentially forthcoming Proposition 39 facilities requests, the planned occupancy by other charter schools or District programs, or any other factor that would result in an adjustment of the number of available classrooms for the Next Fiscal Year. E-CAR data indicated 3 unassigned/unallocated standard size classrooms at Daniel Webster Middle School at Norm Day. Charter School occupies 8 rooms at the school site in the current school year.

35. In the second week of November 2023, Region Offices were provided information regarding charter schools that had requested Proposition 39 space, and potential space availability at District school sites. Region West was advised of the District school site(s) and/or general geographic area in which Charter School wishes to locate, and that it was entitled to exclusively use a total of 22 spaces (18 instructional spaces, 3 special education spaces, and one administrative office space) for the Next Fiscal Year. Region West was also advised that there were 12 charter schools that had requested facilities within that same Region.

36. Meetings were also conducted between CSD, SMS-MPD, and others, so that additional District stakeholders such as Region Office leadership and school-site staff could provide further valuable input regarding important information, such as impacts of a potential co-location at a particular school site or unique site conditions that might make it unsuitable. Various provisional matches within each Region were identified and deliberated, and participants thoughtfully discussed potential recommendations as part of the District's comprehensive compliance effort. Per established protocols, the District also invited labor partners, including United Teachers Los Angeles, to Advisory meetings to offer feedback.

37. During the course of the meetings and numerous additional discussions, CSD, Region West, District administrators, SMS-MPD, and others discussed that Daniel Webster Middle School will not have adequate availability of space in the Next Fiscal Year to accommodate Charter

School's entire projected in-district classroom ADA due to the planned programmatic needs as accounted for in the E-CAR. Also evaluated were the needs, as operationally feasible and permitted by law, to support the District's 100 Priority Schools, Black Student Achievement Program (BSAP) schools, and Community Schools, and avoid outcomes that would compromise District schools' capacity to serve neighborhood children and/or result in grade span arrangements that negatively impact student safety and actively deter students from attending District schools. Due to these circumstances, Daniel Webster Middle School will be unable to accommodate Charter School's entire projected in-district classroom ADA in the Next Fiscal Year.

38. In summary, the District has no realistic ability to allocate 22 exclusive use classroom spaces to Charter School at the Daniel Webster Middle School site for the Next Fiscal Year. Allocating such space to Charter School would present significant safety, educational, scheduling, facilities, and operational challenges, and result in significantly harmful negative impacts, displacements, and disruptions to Daniel Webster Middle School students. Allocating such space to Charter School would result in an unfair sharing of space between Charter School and Daniel Webster Middle School on this school site.

39. If Charter School was provided 22 classroom spaces at Daniel Webster Middle School, it would so severely diminish the Daniel Webster Middle School program's usable instructional space that it could require some of its teachers to hold classes outside of classroom settings. Alternatively, Daniel Webster Middle School could either overcrowd its existing classrooms by reducing its teaching staff and increasing the number of student desks in classrooms or require two teachers to teach class simultaneously in one classroom. Both options would not only overburden the teachers forced to teach those classes, but would also unfairly crowd students and block safe access to doors. None of these possibilities are realistically feasible.

40. District staff has determined that the quality of the education for both Daniel Webster Middle School students and Charter School students would suffer significantly if Charter School were provided 22 classroom spaces at Daniel Webster Middle School. Daniel Webster Middle

School's existing space constraints have already substantially impacted Daniel Webster Middle School students, teachers, staff, and administrators. Provision of facilities sufficient to accommodate the entirety of a charter school's projected in-district classroom ADA in the Next Fiscal Year would further exacerbate the negative harmful impacts to such a point that it would be impossible for all of the students to share space fairly and receive a proper education. It would also result in increased emotional hardship and further loss of morale in students, teachers, staff, and administrators alike.

41. To accommodate Charter School's entire in-district classroom ADA at Daniel Webster Middle School would also present substantial safety concerns for both charter and non-charter District students. By way of example, District staff estimated that to accommodate all of Charter School's students at Daniel Webster Middle School would require the forcible displacement of a significant number of students attending Daniel Webster Middle School. Displacing students out of Daniel Webster Middle School would have far-reaching safety, instructional, and social implications.

42. For instance, many Daniel Webster Middle School students walk to and from their school. Recent District budgetary cutbacks and the harsh economic climate have made the ability to walk to school a necessity for many families with in-district children. The District school bus program has realized service cuts and route eliminations which have affected many students. As a result of past budget deficits, transportation funding was reduced as part of stabilization efforts. The latest impact came in July 2012, when the District was forced to implement a change to the eligible busing distance for secondary schools from three miles to five miles. These cuts disproportionately affect poorer students and make the ability to walk to school even more crucial.

43. Not only is the ability to walk to school at Daniel Webster Middle School a necessity for some students, but walking to school also provides key health benefits. According to the California Department of Public Health ("DPH"), close to one-third of California's children are overweight or obese. The DPH's California Active Communities ("CAC"), in collaboration with

CA4Health (a project of the Public Health Institute, with funding from the Centers for Disease Control and Prevention) has determined that a child's overall health is affected by levels of physical inactivity which can be directly linked to time spent in automobiles versus in active transportation such as walking. Walking or biking to school provides an opportunity for purposeful physical activity toward the accumulation of the recommended 60 minutes or more of daily physical activity for children and youth. (Martin, Moeti and Pullen-Seufert, *Implementing Safe Routes to School: Application for the Socioecological Model and Issues to Consider* (2008).) Active transportation – such as walking and biking – to school can help increase physical activity levels of students and their families. (ChangeLabSolutions, *Incorporating Safe Routes to School into Local School Wellness Policies* (July 2015).) Physical activity reduces the risk of obesity and related chronic diseases, and improves mental health, attendance, and academic performance. (*Ibid.*) Active transportation can also have broad community benefits, including reducing traffic congestion and air pollution, creating safer streets, encouraging cost savings, and building a stronger sense of community. (*Ibid.*) Increasing physical activity through walking and biking to school can help address high obesity rates. (*Ibid.*)

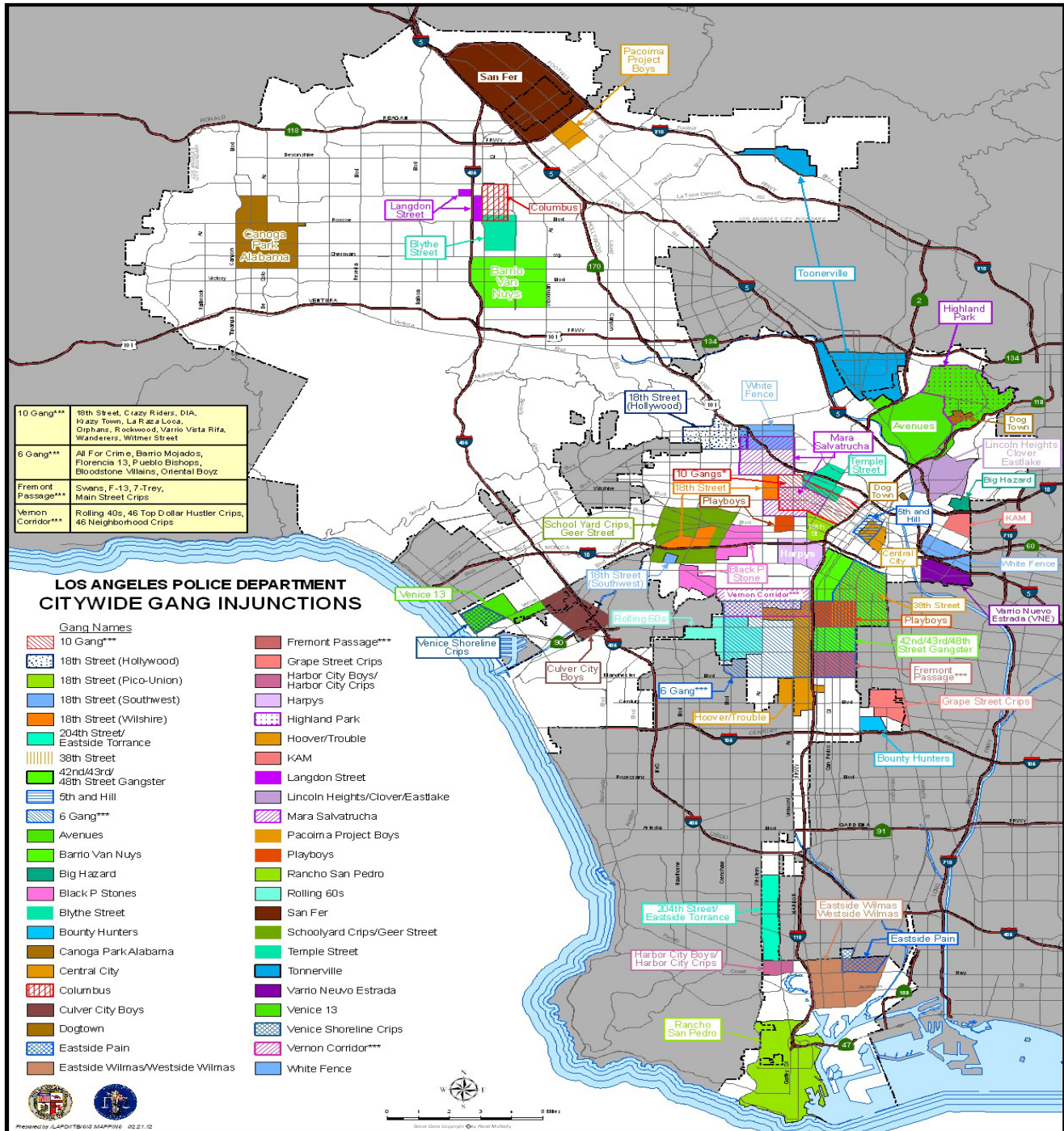
44. Empirical studies have determined that distance is a key impediment to children walking to school safely. (Martin, Moeti and Pullen-Seufert, *Implementing Safe Routes to School: Application for the Socioecological Model and Issues to Consider* (2008).) A study published in the Journal of Public Health Policy examines the multi-level correlates of walking to and from school. Of the physical environmental factors examined, the strongest negative correlates to walking to school were distance and safety concerns. (Zhu & Lee, *Correlates of Walking to School and Implications for Public Policies*, Journal of Public Health Policy (2009).) Recognizing distance as a barrier to the ability for a child to walk to school, CA4Health, the CAC, and the DPH support school siting as well as joint use policies and practices that encourage kids to walk or bike to school.

45. Displacing a significant number of students from Daniel Webster Middle School to

make additional room for Charter School would prevent a significant number of Daniel Webster Middle School children who currently have the ability to safely walk to school from being able to do so. Conversely, Charter School draws its attendance from 99 different District schools. Therefore, providing a single-site offer at Daniel Webster Middle School to Charter School would endanger a significant number of children currently attending their nearby school. Moreover, the forcible displacements would not just be limited to the children attending Daniel Webster Middle School. Instead, those students would need to be absorbed into other District schools which may have insufficient space, programs and/or resources to house the influx of students, and would thereby cause the additional forcible displacement of children from these absorbing schools. This would create a ripple effect of forcible displacements necessitating hundreds of children to relocate for the benefit of a far lesser number of Charter School's children. Such a decision would pose disproportionate harm to a significant number of Daniel Webster Middle School students and to those District students displaced by the influx of these students, and thus produce inequity in the sharing of facilities.

46. Not only does distance play a factor in children safely walking to school due to traffic dangers, but several Los Angeles neighborhoods are plagued by gang violence. In order to create safe passages to and from school in neighborhoods suffering from gang-related violence, meaningful programs and efforts to mitigate these risks have been launched, such as Kid Watch LA which instituted the Walking School Bus for District students. The Walking School Bus enlists parent and community volunteers to accompany groups of small children as they walk to and from their school.

47. According to the Los Angeles Police Department, the District is located within the territory known as the "gang capital" of the nation, with more than 450 competing gangs. Gang violence is unfortunately prevalent on some campuses and within the neighborhoods of several District schools. As shown by the map depicting former gang injunctions in Los Angeles below, Los Angeles gangs claim particular territories:



48. On March 15, 2018, the City of Los Angeles was enjoined from enforcing these gang injunctions. (See, *Youth Justice Coalition, et al., v. City of Los Angeles, et al.*, CV 16-07932 VAP.) The inability to enforce these injunctions may result in an increase in gang-related activity and crime.

49. Involuntarily displacing students who themselves or whose parents are tied to a particular gang and placing them in a different school located in the territory of another gang would potentially breed gang warfare and violence affecting all children, teachers, staff, and parents at a particular school.

50. Pulling children out of their District schools and placing charter students at those school sites prevents the displaced children from taking advantage of safety measures such as the Walking School Bus and other relevant considerations their families have made, and therefore unfairly endangers the safety of those displaced children. These harms disproportionately affect students attending District schools. As parents of charter school students have elected to send their child to a school outside of his or her local attendance area, the parents have secured a means of transporting their child to this school. However, parents of children who attend District schools may not have the means to find alternate transportation and need to rely on children walking to their school. With the aforementioned reduction of several school bus routes and potential further elimination of transportation funding, many forcibly displaced children will be forced to walk long, unsafe distances or take unsafe public transit routes.

51. Displacing children attending Daniel Webster Middle School for the purpose of making a single-site offer to Charter School would have additional instructional and social ramifications. California has an accountability system reported through the California School Dashboard. The state's accountability system includes a three-level identification and support system for local educational agencies, and categorizes district performance levels using a system of five status levels (ranging from Very High, High, Medium, Low and Very Low). The 2022 Dashboard showed the District was assigned a Medium Status level for two of the six state indicators based on the performance of all student groups: English Learner Progress and Graduate Rate indicators. A Low status level was assigned to English Language Arts ("ELA") and Mathematics, and a Very Low status level for Suspension Rate. The District received one Very High-status level for Chronic Absenteeism. Of the thirteen student groups reported, four were in

the Very Low status level, five in Low, three in High, and one in Very High. For the 2023 Dashboard, District performance levels were categorized using a system of five colors, stated in order from lowest to highest performing (Red, Orange, Yellow, Green, and Blue), except in the College/Career Indicator. The 2023 Dashboard results indicate that the District received an Orange performance level for English Learner Progress, Graduation Rate, and English Language Arts (Academic Indicator). The District also received a Yellow performance level for Chronic Absenteeism and Mathematics (Academic Indicator). Though the District received a Yellow indicator for Chronic Absenteeism, it is important to note that the District decreased its chronic absenteeism by 8.8-percentage points to 31% from 39.8% in 2022. In addition, the District received a Blue performance level for its Suspension Rate, and a Medium status level for the College/Career Indicator. In examining the performance of the thirteen student groups, the Dashboard indicates that no student received a Red performance level for Chronic Absenteeism. Among the other indicators, only three of thirteen student groups received at least one Red performance Level. In contrast, twelve student groups received at least one Blue performance level.

52. The District is continuing its efforts to improve performance in all state indicators. Displacing District children attending their District school at Daniel Webster Middle School would thwart these efforts, and have instructional and social ramifications. Studies have empirically established that disrupting a child's trajectory to his or her district high school effectively increases drop-out rates. A review of 25 years of research conducted by the California Dropout Research Project identified strong predictors of dropping out of high school. The compilation study identified non-promotional school changes (student mobility) during middle school and high school as a key predictor of a child dropping out of school. (Rumberger & Lim, *Why Students Drop Out: A Review of 25 Years of Research*, California Dropout Research Project (October 2008).)

53. In 1998, a seminal study on the educational consequences of student mobility found a high causal connection between student mobility and an increased risk of high school drop-out. The staggering results of this study indicate that controlling for other predictors, students who made even one non-promotional school change between the eighth and twelfth grades were twice as likely to not complete high school as students who did not change schools. (Rumberger & Larson, *Student Mobility and the Increased Risk of High School Dropout*, American Journal of Education 107 (November 1998).)

54. The safety and welfare of all students is the District's paramount concern and principal charge. The data is indisputable that children who drop out of school are at far greater risk of a vast array of physical, social, and economic harm than those who stay in school and complete their secondary education. This paramount concern of the District remains a material consideration when weighing whether to forcibly displace children from their existing school (such as Daniel Webster Middle School) in order to make way for students who would attend school at that site (such as Charter School) from distant neighborhoods, especially when other solutions for sharing space fairly are feasible.

55. An additional impact of such displacement would be the difficulty of sustaining the same level of parental involvement in the absorbing schools. California State Board of Education Policy #89-01 acknowledges that a critical dimension of effective schooling is parental involvement. This policy initiative states that research studies demonstrate parental involvement at school propels a child's educational career. Forcibly displacing students attending Daniel Webster Middle School would make it more challenging for those children to reap the benefits of parental involvement in their new schools.

56. An alternative to displacing students attending Daniel Webster Middle School would be to overcrowd the site by adding more of Charter School's students. However, this would cause severe safety and operational ramifications due to the design capacity of the Daniel Webster Middle School site, making this course of action infeasible. Adding Charter School's students to

the Daniel Webster Middle School site or any other District campus with insufficient space to feasibly accommodate Charter School's total in-district classroom ADA would raise both schools' classroom loading ratios, thereby disadvantaging both of these schools' children. Likewise, having children over a school site's capacity sharing space would pose a great risk to student safety and well-being.

57. In making decisions regarding allocations of space, District staff placed the safety of students attending Charter School, Daniel Webster Middle School, and other charter and District schools at the forefront of the decision-making process. District staff made substantial efforts to locate charter schools, including Charter School, at or near their desired geographic location and further made material efforts to minimize the number of sites on which each charter school was located. As Charter School's parents/guardians have made a decision to place their child in a school outside of their District school, they have had the opportunity to weigh the safety implications of this decision for their child. On the contrary, the families of forcibly displaced students would have no place in such a decision-making process. Thus, forcibly displacing children from Daniel Webster Middle School and/or other impacted District schools would not afford their parents/guardians the same opportunity. In addition, the decision to forcibly displace students to make way for Charter School students necessarily will have safety impacts upon the displaced children, whereas, given the fact that many Charter School students already voluntarily travel to attend Charter School, these children may not face any increased safety risk by being required to, for example, travel five miles east instead of five miles south.

58. Based on the foregoing, the District determined that it was simply not feasible to provide Charter School with a single-site offer at Daniel Webster Middle School, and because only a total of 9 spaces (6 teaching stations, 2 special education spaces, and one administrative office space) could be provided to Charter School at Daniel Webster Middle School for the Next Fiscal Year, a portion of Charter School's in-district classroom ADA would need to be accommodated at one or more additional site(s). Therefore, in order to ensure a sufficient allocation of special

education and administrative office spaces are provided to Charter School at each District school site, the District has identified 18 classrooms (12 instructional spaces, 4 special education spaces, and two administrative office spaces) at one or more additional District school site(s). While it is always the District's goal to accommodate a charter school's entire program on a single District school site, sometimes charter schools must be offered space on more than one site, particularly if, as in the case of Charter School, the charter school has a large projected in-district classroom ADA and has indicated in its facilities request a preference not to be moved from its current site.

59. Based on the geographic area of interest identified in Charter School's Facilities Request, the District reviewed and considered the space availability at various alternative nearby District sites with reasonably equivalent facilities in order to accommodate the remainder of the Charter School's ADA that could not be accommodated at Daniel Webster Middle School. Specifically, in its facilities request, Charter School stated a desire for potential "overflow" to be allocated at Richland Avenue Elementary. Therefore, the District first attempted to identify adequate space at this site. With only one unassigned/unallocated standard size classroom at Richland Avenue Elementary identified in E-CAR as of Norm Day, the District determined that the remainder of Charter School's ADA could not be accommodated at Richland Avenue Elementary.

60. Although it would be preferable to accommodate Charter School's entire program at the Daniel Webster Middle School site for the Next Fiscal Year, for the reasons set forth herein it is not possible to provide Charter School with 22 classrooms at the Daniel Webster Middle School site without presenting significant, safety, educational, scheduling, facilities, and operational challenges. The Westport Heights Elementary and Cienega Elementary sites, located 6.2 and 5.3 miles away, respectively, from the Daniel Webster Middle School site according to Google Maps, are the closest reasonably equivalent school sites that could also accommodate Charter School. These sites are located within Region West and Board Districts 4 and 1, respectively.

61. Considering that the District spans over 710 square miles and serves over 27 cities,

and based on the plain language of California Code of Regulations, title 5, section 11969.2, subdivision (d), the Westport Heights Elementary and Cienega Elementary sites are “contiguous” with the Daniel Webster Middle School site.

62. Based on all of the foregoing considerations, District staff recommends providing Charter School with a multi-site offer of contiguous facilities at the Recommended Co-Locations.

ATTACHMENT 3(b): CITIZENS OF THE WORLD CHARTER SCHOOL MAR VISTA**Board of Education Finding that Citizens of the World Charter School Mar Vista Cannot Be Accommodated at a Single Site and Written Statement of Reasons Explaining the Finding (Cal. Code Regs., tit. 5, § 11969.2, subd. (d))**

Whereas, Under Proposition 39, the Los Angeles Unified School District (“District”) is required to fairly share space between public school pupils, charter and non-charter students alike;

Whereas, In making an allocation of space, the District attempts to place a charter school applicant on one school site or, when that is not feasible, alternatively attempts to minimize the number of school sites on which the charter school applicant is placed;

Whereas, In making an allocation of space, the District materially considers the safety implications to charter and District school students of making a multi-site offer, and balances the safety, instructional, and social consequences of displacing children from their District schools, as well as the burdens associated with such an action on their parents and the community;

Whereas, For the Next Fiscal Year, 46 charter schools requested facilities under the Proposition 39 process, asking for approximately 13,110 seats from the District;

Whereas, Charter School submitted an application for Proposition 39 facilities for the Next Fiscal Year;

Whereas, The Board hereby incorporates by reference the entire Staff Report on the Deliberative Process for Determining Why Charter School Cannot be Accommodated at a Single Site for the Next Fiscal Year;

Whereas, District staff engaged in an effort to create a single-site offer to accommodate Charter School’s total in-district classroom ADA;

Whereas, The District cannot accommodate Charter School’s request for a single site at Daniel Webster Middle School;

Whereas, 12 different charter schools (including Charter School) requested space in Region West for the Next Fiscal Year;

Whereas, District staff determined that Daniel Webster Middle School (the District school site or general geographic area in which Charter School wishes to be located) will not have sufficient classroom space to accommodate Charter School’s entire projected in-district classroom ADA in the Next Fiscal Year;

Whereas, The District cannot accommodate Charter School’s entire in-district classroom ADA at Daniel Webster Middle School;

Whereas, To accommodate Charter School's entire in-district classroom ADA at Daniel Webster Middle School would present substantial, disproportionate safety concerns for both Charter School's students and students attending their District school;

Whereas, To accommodate all of Charter School's students at Daniel Webster Middle School would require the displacement of a significant number of children attending Daniel Webster Middle School, and potentially additional District schools;

Whereas, Involuntarily displacing children out of their existing District schools has far-reaching safety, instructional, and social implications including: prohibiting children from safely walking to school; subjecting children to possible gang violence; increasing high-school drop-out rates; and impairing parental involvement in their children's schools;

Whereas, Based on these safety and instructional considerations, District staff recommends keeping the student populations of Daniel Webster Middle School and other District schools intact;

Whereas, Alternatively, over-crowding a school's campus in order to provide a single-site offer to Charter School would have equally severe safety and operational ramifications, making this course of action infeasible;

Whereas, The District can provide Charter School with a multi-site contiguous offer of reasonably equivalent facilities at the "Recommended Co-Locations";

Whereas, Providing Charter School space at the Recommended Co-Locations minimizes the number of sites assigned to Charter School;

Whereas, Because of the short distance between the Recommended Co-Locations in a school district spanning 710 square miles and serving over 27 cities, the Recommended Co-Locations are contiguous facilities;

Whereas, By providing space to Charter School at the Recommended Co-Locations, the District has made reasonable efforts to provide Charter School with facilities near to where Charter School wishes to locate; and

Whereas, The District can make a complete and contiguous, multi-site offer to accommodate Charter School's entire in-district classroom ADA; therefore be it

Resolved, That pursuant to California Code of Regulations, title 5, section 11969.2, subdivision (d), for the reasons set forth herein and as further expressed by District staff, the Governing Board of the Los Angeles Unified School District finds that the District cannot accommodate Charter School at a single school site; and therefore be it finally

Resolved, That pursuant to Education Code sections 35160-35160.1 and 47614, and California Code of Regulations, title 5, section 11969.1, et seq., for the reasons set forth herein and as further expressed by District staff, the Governing Board of the Los Angeles Unified School District

authorizes a preliminary proposal and final offer of facilities to Charter School for the Next Fiscal Year at multiple District school sites.

ATTACHMENT 4(a): CITIZENS OF THE WORLD CHARTER SCHOOL SILVER LAKE

Staff Report on Deliberative Process for Determining Why Citizens of the World Charter School Silver Lake Cannot be Accommodated at a Single Site

Charter School's Facilities Request

1. On or before November 1, 2023, Citizens of the World Charter School Silver Lake ("Charter School") submitted a Proposition 39 Online Facilities Request Form ("Facilities Request") to the District, requesting use of District facilities for a projected in-district classroom average daily attendance ("ADA") of 277.54 in grades 6-8 for the 2024-25 school year ("Next Fiscal Year"). Charter School identified 91 different District schools that its charter school students would otherwise attend. Charter School's Facilities Request was one of 46 that the District received for the Next Fiscal Year. Charter School requested facilities at Virgil Middle School. Charter School is currently operating at Virgil Middle School.

2. District staff reviewed information provided in support of Charter School's ADA projections and determined that a reasonable in-district classroom ADA projection for Charter School is 277.26.

3. Education Code section 47614, subdivision (b) requires the District to provide charter schools with facilities sufficient for the charter school to accommodate all of its in-district students in conditions "reasonably equivalent" to those in which the students would be accommodated if they were attending other public schools of the district.

4. To determine whether the conditions of facilities provided to a charter school are "reasonably equivalent" to the school district facilities that charter school students would otherwise attend, the District adheres to the Proposition 39 implementing regulations (California Code of Regulations, title 5, section 11969.1, et seq.) which direct school districts to measure those facilities against the facilities used by district students at a "comparison group" of schools. As the

District is divided into high school attendance areas, in selecting comparison group schools, the District must follow California Code of Regulations, title 5, section 11969.3, subdivision (a)(2), which states, “[t]he comparison group shall be the district-operated schools with similar grade levels that serve students living in the high school attendance area... in which the largest number of students of the charter school reside.” District staff reviewed Charter School’s projected in-district classroom ADA broken down by grade level and its identification of the 91 different District schools its projected charter school students would otherwise attend. Based on the information provided by Charter School, District staff determined that the attendance area where the largest number of Charter School’s projected students reside is the Belmont Zone of Choice attendance area. Consequently, based on the grade levels that Charter School projects it will serve, District staff identified the following as the District-operated schools with similar grade levels that serve students within the Belmont Zone of Choice attendance area; i.e., Charter School’s comparison group schools: Castelar Street Elementary, Sal Castro Middle School, John H Liechty Middle School, Logan Academy of Global Ecology, and Virgil Middle School.

5. The District also follows California Code of Regulations, title 5, section 11969.3, subdivision (b)(1), which requires that the facilities made available by a school district to a charter school shall be provided in the same ratio of teaching stations (classrooms) to ADA as those provided to students in the district attending comparison group schools. To implement a fair sharing of space, the District determines the ratio of ADA-to-classrooms provided for each of the charter school’s comparison group schools and uses an average of those figures to determine the number of classrooms to provide to the charter school. It also results in the District allocating classroom space sufficient to allow a charter school to maintain the same minimum number of seats in a classroom as maintained in the District’s comparison group schools, that is, to maintain conditions reasonably equivalent to the comparison group schools as required by Proposition 39. In other words, it results in accommodating charter school students on District school sites as they would be accommodated if they otherwise attended those District schools. Consequently, this

calculation is used to ensure the number of classrooms provided to charter schools is equivalent to the number of classrooms provided at their comparison group schools.

6. Relying upon an in-district classroom ADA projection of 277.26 for the Next Fiscal Year, and an average ADA-to-classrooms provided ratio at the comparison group schools of 20.05, the District determined that Charter School is entitled to 14 teaching stations (classrooms) and one classroom space to be used as its administrative office. The District also determined that Charter School is entitled to 2 special education classroom(s).

7. Charter School's facilities request states: "CWC SL is currently located on Virgil MS at 152 N Vermont Avenue. Our current co-location with Virgil MS has been a positive partnership that CWC SL wishes to continue in the future. CWC SL respectfully requests that all assigned classrooms be located on the Virgil MS campus."

8. Based on the foregoing, if the in-district classroom ADA of Charter School cannot be accommodated entirely at Virgil Middle School in the Next Fiscal Year, District staff recommends allocating Charter School facilities at Virgil Middle School and additional school site(s).

9. Education Code section 47614, subdivision (b), provides that facilities provided to a charter school by a school district must be, among other things, "contiguous." The definition of "contiguous" expressed in California Code of Regulations, title 5, section 11969.2, subdivision (d), states that facilities are "contiguous" if they are contained on the school site or immediately adjacent to the school site, and that if the in-district classroom ADA of a charter school cannot be accommodated on any single school district school site, contiguous facilities also includes facilities located at more than one site, provided that the school district shall minimize the number of sites assigned and shall consider student safety. As explained below, pursuant to Proposition 39, District staff first engaged in an effort to create a single-site offer to accommodate Charter School's projected total in-district classroom ADA in the Next Fiscal Year at Virgil Middle School. District staff evaluated space at Virgil Middle School (the District school site at which Charter School

wishes to locate) and determined that Virgil Middle School will not have sufficient classroom space to accommodate Charter School's total in-district classroom ADA in the Next Fiscal Year. Rather than attempt to locate Charter School on a single site different from the requested site, pursuant to Education Code section 47614, District staff engaged in an effort to satisfy Charter School's request and provide a multi-site allocation of contiguous facilities.

10. Therefore, District staff recommends providing space at the following locations to Charter School to accommodate its total in-district classroom ADA for the Next Fiscal Year: Virgil Middle School and John H Liechty Middle School (collectively, the "Recommended Co-Locations"). By providing space to Charter School at the Recommended Co-Locations, the District has made reasonable efforts to provide Charter School with facilities near to where Charter School wishes to locate and to minimize the number of sites assigned to Charter School.

Process District Staff Followed to Locate Space for Charter School Pursuant to

Proposition 39

11. The District's Charter Schools Division ("CSD") determined that in the 2023-24 school year, more than 148,194 students enrolled in charter schools authorized by the District. This figure reflects a 1,865 student decrease compared to the number of students enrolled during the previous school year. In the 2023-24 school year, the District had the most charter students attending schools authorized by a District of any school district in the nation. The District ensured that every eligible in-district charter student was offered a seat.

12. For the 2024-25 Proposition 39 cycle, the District is applying a comprehensive process to ensure that every eligible in-district charter school student is offered a seat at a District campus. The District is following a critical schedule of steps, from receiving the initial request for facilities by a charter school to making facilities ready for occupancy, in order to timely meet the Proposition 39 timeline. The general process District staff is following in administering Charter School's Facilities Request is the same that it used to process each of the other facilities requests the District received from charter schools for the Next Fiscal Year. That process is as follows:

13. Beginning in September 2023, School Management Services and Master Planning & Demographics (“SMS-MPD”) staff, which includes District personnel in the District’s Facilities Services Division experienced in public school facilities utilization that assess all of the educational space within the District, conducted a comprehensive analysis of the use of District classrooms school facilities, called E-CAR. E-CAR was implemented at the beginning of the Proposition 39 process to assess capacity at school sites throughout the District, and commenced with a preparation period during which SMS-MPD staff examined materials submitted by all District schools in the previous year for accuracy, as well as for consistency with previous assessments’ classroom usage and availability determinations. The SMS-MPD staff applied standard formulae for the usage of classrooms in order to generate an objective and uniform assessment of the amount of total classroom space at District school sites. The purpose of this calculus is to assess the number of classrooms required to accommodate instructional program enrollment, based on grade level and specific course subject matters at secondary schools.

14. Next, the E-CAR process involves District school principals at more than 700 District school sites logging into an online application to validate their school’s enrollment and to review and confirm details regarding the school site’s classrooms and their respective utilization. Specifically, the principals identified and validated classroom space utilized as teaching stations and “set-asides” (classrooms used for purposes other than general education), along with classroom numbers, locations, and sizes. Additionally, the principals identified classrooms occupied by special education programs, charter schools, preschools, alternative education programs, option programs, and other third-party users, as well as swing space needed for construction projects, and classrooms that are out of service or mandated for removal due to legal and/or safety/physical condition requirements. The purpose of E-CAR is to accurately assess the current capacity of each District school site in several respects: the number and size of classrooms, the manner in which those classrooms are currently used, and the school’s operating capacity. E-CAR entails a detailed review of the present use of District school sites and an analysis of the

projected future uses of those facilities. The analysis includes reporting of data by individual schools, which is reviewed by SMS-MPD staff to confirm its accuracy and to ensure that space is used efficiently and uniformly throughout the District.

15. To ensure that District school administrators are provided the resources necessary for a complete and accurate assessment of their school's capacity, they were instructed to reference the following resource materials for their school site: A current school map; the school's former or most recent Norm Day classification report (which details the number of students enrolled at that school on September 15, 2023); the Norm Day classification report for any magnet centers and/or dual language programs located on the school site; the Classroom Inventory and Allocation Worksheet pages from the prior school year's Capacity Assessment Review report, which contains information for classroom counts and allocations into precisely-defined categories; and the number of teaching positions in all categories, including general education, special day, magnet, dual-language, physical education, and off-norm-funded positions.

16. Categorizing classrooms in this way is important because a school's capacity involves more than its raw seats and room numbers. The District must determine whether a school site has facilities available to sufficiently serve the particular requirements of a school, such as grade levels, special education programs, magnet centers, Small Learning Communities, Personalized Learning Environments, legal mandates, and other student needs.

17. District staff reviewed the foregoing data regarding specific capacity information at District school sites for the Next Fiscal Year. Utilizing this data, SMS-MPD provided CSD with the number of estimated available classrooms, at each District school site given specific operating capacities per programmatic and mandated qualifiers. When planning for maximal use of available school facilities, and in interpreting data generated during the course of facilities planning, it is absolutely critical to understand the difference between "unallocated classrooms" and "available seats." To illustrate, a hypothetical District school may not have any unallocated classrooms but may have individual available seats in classrooms currently occupied. As a result, the school may

be able to absorb 100 students into its existing classrooms by identifying two free seats spread out among 50 of its classrooms that are used for instruction appropriate to the grade level and subject matter requirements for the students being absorbed. Thus, it is an entirely different proposition to provide and integrate 100 seats across a campus than to provide four or five unallocated classrooms with the same total number of contiguous available seats. In many instances, there may be many available seats in a school, but no unallocated classrooms. This is especially the case for District middle and high schools where the students do not sit in one classroom all day, like an elementary school, but instead attend four or more different classes per day, each in different classrooms and with different teachers and groups of students, in order to receive the mandated curriculum.

18. SMS-MPD generated each instructional program's operating capacity using a complex mathematical formula which took into account all aspects of the schools' operations. The operating capacity also accounted for classrooms designated as "set asides." Public school districts are required to provide special education space, and a parent center at each school which is classified as a set-aside. Also, pre-kindergarten and adult education students are served in classrooms at school sites across the District.

19. District staff analyzed each District school's estimated available seats and classrooms for the Next Fiscal Year based on the data.

20. As a public institution, the District is required to provide an education to every student who chooses to enroll. The District previously planned its programming and staffing based on estimated enrollment projections, but in the event projections were short, the District was still obligated to provide an education to students who were not originally anticipated. As a safeguard against the overcrowding of classrooms in such situations, the District historically prepared to reserve 75 seats at every secondary school and 50 seats at every elementary school for additional unanticipated enrollment. Importantly, however, beginning in 2013 and continuing this year, District staff examined the actual historical enrollment data over the last several years at each

school site to determine if a trend could be empirically established demonstrating unanticipated growth. Based upon this analysis, the District determined that no seats at any District school sites offered to a charter school should be reserved for unanticipated growth.

21. The District uses the definition contained in California Code of Regulations, title 5, section 11969.3, subdivision (a)(2) to determine comparison group schools. No two schools are identical; however, on a grade-alike basis, a significant majority of the District's schools share reasonably equivalent conditions, especially when taking into account age, quality of materials and state of maintenance, school site size, conditions of surfaces as well as mechanical, plumbing, electrical and fire-life systems, including conformity to applicable codes, availability and condition of technology infrastructure, the condition of the facility as a safe learning environment, including, but not limited to, the suitability of lighting, noise mitigation, and size for intended use, the conditions of the facility's furnishings and equipment, and the condition of athletic fields and play area space. As part of this process, District staff determined whether the conditions of school facilities offered to a charter school were reasonably equivalent to those of the comparison group schools.

Matching Guidelines Utilized by the District for Charter School

22. In accordance with applicable law, the District is guided by the following matching guidelines in order to make contiguous offers of space to charter schools in facilities with reasonably equivalent conditions to those which would accommodate the charter students if they otherwise attended District schools:

- Consider student safety and welfare
- Identify reasonably equivalent facilities
- Minimize the number of sites assigned
- Make reasonable efforts to provide facilities near to where the charter school wishes to locate
- Avoid moving a charter school unnecessarily
- Minimize disruption to District and charter programs
- Fairly balance the needs of District and charter programs
- Avoid displacing any District students from their school of attendance
- Maximize use of unallocated classroom space (i.e., those with no designated use and would be vacant/unassigned in a particular fiscal year, as identified in the District's

annual comprehensive analysis of space on District school sites. Classrooms used to provide additional programming or services are not considered unallocated classroom space, and are categorized according to their specific designation).

23. District staff makes every reasonable effort to locate space on a single site, or on multiple sites only if necessary or specifically requested by the charter school, in the charter school applicant's geographic area of interest. Consequently, District staff first attempts to accommodate charter schools at a single school site and looks for available facilities sufficient to accommodate the entirety of a charter school's projected in-district classroom ADA within its desired area of geographic interest. Only when no single school site can be feasibly identified based upon school site design and occupancy limitations, as well as after taking into account the paramount considerations of both District and charter school student safety and welfare, does the District make offers that contemplate the use of multiple school sites.

24. District staff first identifies the classroom inventory by grade level configuration in each geographic region. Grade-alike matches typically provide reasonably equivalent space to charter schools; therefore, wherever possible, District staff allocates space to charter applicants on grade-alike school facilities.

25. District staff next identifies which charter school applicants are currently located in District facilities that they have identified in their geographic area of interest for the following Proposition 39 cycle and, when feasible, matches those charter schools to those school sites. District staff then examines and identifies the geographic areas of interest of other charter school applicants. As described above, multiple charter schools often request space in the exact same location so District staff must assess conflicting geographic as well as particular site interests. In doing so, District staff examines whether the potential match would utilize all available classrooms and whether the match represents a full, single-site offer. Priority is given to those charters where these two goals can be achieved.

26. Based on an examination of these criteria, District staff makes a preliminary match of available classrooms at a particular site to the projected in-district classroom ADA of each

charter school. District staff attempts to find the most geographically relevant grade-alike matches. District staff seeks to minimize disruption to and fairly balance the needs of District and charter programs. For multi-site scenarios, District staff eliminates set-asides whenever reasonably possible to reduce the number of sites assigned to a charter school, which often results in being able to transform multi-site offers to single-site offers. While endeavoring to preserve programmatic spaces essential to enriching instruction and student health and human services, District staff may need to engage in the materially disruptive measure of eliminating or otherwise impacting set-asides used to provide services at District schools in order to share space fairly among charter and non-charter students in the District. Set-asides are divided into two categories: District set-asides and School set-asides.

27. School set-asides allocate space for instructional, safety, and health programs that are specific to a particular school. For example, Title I funding coordinator offices are considered School set-asides. Title I funding provides financial assistance to schools with high numbers or high percentages of low-income children to help ensure that all children meet challenging state academic standards. The District uses Title I funds to provide additional academic support and learning opportunities to help low-achieving children master challenging curricula and meet state standards in core academic subjects. Such funds support extra instruction in reading and mathematics, as well as special preschool, after-school, and summer programs to extend and reinforce the regular school curriculum. Additionally, School set-asides are used to allocate space for small learning community (“SLC”) offices. An SLC, also referred to as a School-Within-A-School, is a form of school structure in secondary schools to subdivide large school populations into smaller, autonomous groups of students and teachers. SLCs include structures such as freshman academies, multi-grade academies organized around career interests or other themes, “houses” in which small groups of students remain together throughout high school, and autonomous schools-within-a-school, as well as personalization strategies, such as student advisories, family advocate systems, and mentoring programs. Research continues to show that

small schools and SLCs have the necessary elements to counteract the inherent negative effects of poverty and poor academic achievement for low-income students and/or students of color. (Cotton, *New Small Learning Communities: Findings from Recent Literature*, Portland, Ore: Northwest Regional Educational Laboratory (2001); Jimerson, *The Hobbit Effect: Why Small Works in Public Schools*, The Rural School and Community Trust (August 2006).)

28. At the middle school level, School set-asides are used, for example, for Personal Learning Environment (“PLE”) offices, the middle school equivalent to an SLC. Likewise, School set-asides may be used for the District’s Response to Instruction and Intervention (“RTI²”) program. RTI² integrates assessment and intervention within a multi-level prevention system to maximize student achievement and to reduce behavior problems. With RTI², schools identify students at risk for poor learning outcomes, monitor student progress, provide evidence-based interventions and adjust the intensity and nature of those interventions depending on a student’s responsiveness, and identify students with learning disabilities or other disabilities. In order to provide space to charter schools requesting Proposition 39 facilities, District staff has eliminated or reduced the number of School set-asides on certain campuses. This instructional disruption unfortunately disproportionately affects low-income, low-performing, or disabled District neighborhood children, those who need assistance the most. However, District staff has taken these disruptive measures in order to share facilities fairly with charter schools.

29. District set-asides use school space to implement key District-wide instructional, health, and safety programs. For example, these set-asides include space for District police, regional special educational testing centers, health center clinics, food service, and Beyond the Bell programs, among others. Eliminating these set-asides would deny or interfere with students’ ability to receive the special education and related services to which they are entitled, or force students to travel as much as 50 miles to the next closest center. In the 2023-24 fiscal year, the District’s school-based health clinics are projected to provide approximately 156,000 visits to children who would otherwise have been challenged to access health care. The demand for health

services remains as high as it did in the previous school year, and to eliminate these clinics would deprive the neediest children of vital services. Additionally, Beyond the Bell programs ensure that all children and youth in the District have access to high-quality, safe, and supervised academic, enrichment, and recreation programs that inspire learning and achievement beyond the regular school day (before and after school and Saturdays). The three components of Beyond the Bell include academic tutorial, recreational, and enrichment programs vital to the safety and wellbeing of school children. Improved school attendance and test scores have been attributed to student participation in Beyond the Bell's after-school programs. By providing supervision and engagement during after school hours when many parents may be working outside the home, Beyond the Bell's programs help reduce the risk that children might engage in drug or alcohol use, sexual activity, and/or crime. To eliminate Beyond the Bell programs would expose the thousands of children who utilize these programs on a daily basis to danger, harming their academic performance and their overall wellbeing.

30. Although District and School set-asides provide space for programs that are vital to the curriculum of a particular school or to District-wide goals, in order to share space fairly, District staff has cut into these set-asides where doing so would minimize the number of sites offered to a charter school in order to make a complete offer of space.

31. For the Next Fiscal Year, District staff had to grapple with the conflicting needs of 46 different charter school applicants and cycled through its comprehensive space matching process as conscientiously as possible, shifting space and potential matches to fulfill the District's obligation to share space fairly among all students – charter school students and those students attending District schools alike. In doing so, District staff kept in the forefront considerations of student safety and welfare.

32. Often, many charter schools request to be located at the same school site, requiring District staff to assess conflicting geographic as well as particular site interests. In fact, 9 different charter schools (including Charter School) requested space in Region East for the Next Fiscal Year.

District staff had to contend with the conflicting needs of these 9 charter schools, as well as all 46 eligible charter school applicants, shifting space and potential matches to fulfill the District's obligation to share space fairly among all in-district students. The process is extraordinarily dynamic with a complex set of ever-changing pieces, decisions regarding any one of which can result in very real ripple effects for students and programs across multiple school sites.

33. The District's space matching guidelines are just that – guidelines. They cannot be applied in a vacuum and without rationale. In allocating space to charter schools, the District must consider the impact on other public school students, both those attending District schools and those attending other charter schools requesting space. District staff applied the District's matching guidelines in conjunction with thoughtful considerations of the real world impacts on all public students in providing co-location offers to charter schools for the Next Fiscal Year.

34. The District began its space analysis for Charter School by examining data from E-CAR for Virgil Middle School related to the 2024-25 school year. As explained above, the E-CAR enrollment for Virgil Middle School is reflected in classroom usage as of September 15, 2023, which is known as "Norm Day." The E-CAR data is a "snapshot in time" that reflects classroom availability and usage at a particular school site at the time it is prepared. It is the baseline for the District's comprehensive space analysis of the current and projected utilization and availability of space for a charter school. It does not contemplate any prospective future revisions or factor in projected classroom usage for any subsequent school year, or changes in space utilization needs that occur after the E-CAR data is prepared, such as, for example, increases or decreases in the District school site's enrollment projections for the upcoming school year, planned programmatic expansions, adjustments to ADA-to-classrooms ratios and/or assigned teachers, changes to grade levels served, construction projects, removal of portable classrooms, charter schools' potentially forthcoming Proposition 39 facilities requests, the planned occupancy by other charter schools or District programs, or any other factor that would result in an adjustment of the number of available classrooms for the Next Fiscal Year. E-CAR data indicated 0

unassigned/unallocated standard size classrooms at Virgil Middle School at Norm Day. Charter School occupies 10 rooms at the school site in the current school year.

35. In the second week of November 2023, Region Offices were provided information regarding charter schools that had requested Proposition 39 space, and potential space availability at District school sites. Region East was advised of the District school site(s) and/or general geographic area in which Charter School wishes to locate, and that it was entitled to exclusively use a total of 17 spaces (14 instructional spaces, 2 special education spaces, and one administrative office space) for the Next Fiscal Year. Region East was also advised that there were 9 charter schools that had requested facilities within that same Region.

36. Meetings were also conducted between CSD, SMS-MPD, and others, so that additional District stakeholders such as Region Office leadership and school-site staff could provide further valuable input regarding important information, such as impacts of a potential co-location at a particular school site or unique site conditions that might make it unsuitable. Various provisional matches within each Region were identified and deliberated, and participants thoughtfully discussed potential recommendations as part of the District's comprehensive compliance effort. Per established protocols, the District also invited labor partners, including United Teachers Los Angeles, to Advisory meetings to offer feedback.

37. During the course of the meetings and numerous additional discussions, CSD, Region East, District administrators, SMS-MPD, and others discussed that Virgil Middle School will not have adequate availability of space in the Next Fiscal Year to accommodate Charter School's entire projected in-district classroom ADA due to the planned programmatic needs as accounted for in the E-CAR. Also evaluated were the needs, as operationally feasible and permitted by law, to support the District's 100 Priority Schools, Black Student Achievement Program (BSAP) schools, and Community Schools, and avoid outcomes that would compromise District schools' capacity to serve neighborhood children and/or result in grade span arrangements that negatively impact student safety and actively deter students from attending District schools. Due to these

circumstances, Virgil Middle School will be unable to accommodate Charter School's entire projected in-district classroom ADA in the Next Fiscal Year.

38. In summary, the District has no realistic ability to allocate 17 exclusive use classroom spaces to Charter School at the Virgil Middle School site for the Next Fiscal Year. Allocating such space to Charter School would present significant safety, educational, scheduling, facilities, and operational challenges, and result in significantly harmful negative impacts, displacements, and disruptions to Virgil Middle School students. Allocating such space to Charter School would result in an unfair sharing of space between Charter School and Virgil Middle School on this school site.

39. If Charter School was provided 17 classroom spaces at Virgil Middle School, it would so severely diminish the Virgil Middle School program's usable instructional space that it could require some of its teachers to hold classes outside of classroom settings. Alternatively, Virgil Middle School could either overcrowd its existing classrooms by reducing its teaching staff and increasing the number of student desks in classrooms or require two teachers to teach class simultaneously in one classroom. Both options would not only overburden the teachers forced to teach those classes, but would also unfairly crowd students and block safe access to doors. None of these possibilities are realistically feasible.

40. District staff has determined that the quality of the education for both Virgil Middle School students and Charter School students would suffer significantly if Charter School were provided 17 classroom spaces at Virgil Middle School. Virgil Middle School's existing space constraints have already substantially impacted Virgil Middle School students, teachers, staff, and administrators. Provision of facilities sufficient to accommodate the entirety of a charter school's projected in-district classroom ADA in the Next Fiscal Year would further exacerbate the negative harmful impacts to such a point that it would be impossible for all of the students to share space fairly and receive a proper education. It would also result in increased emotional hardship and further loss of morale in students, teachers, staff, and administrators alike.

41. To accommodate Charter School’s entire in-district classroom ADA at Virgil Middle School would also present substantial safety concerns for both charter and non-charter District students. By way of example, District staff estimated that to accommodate all of Charter School’s students at Virgil Middle School would require the forcible displacement of a significant number of students attending Virgil Middle School. Displacing students out of Virgil Middle School would have far-reaching safety, instructional, and social implications.

42. For instance, many Virgil Middle School students walk to and from their school. Recent District budgetary cutbacks and the harsh economic climate have made the ability to walk to school a necessity for many families with in-district children. The District school bus program has realized service cuts and route eliminations which have affected many students. As a result of past budget deficits, transportation funding was reduced as part of stabilization efforts. The latest impact came in July 2012, when the District was forced to implement a change to the eligible busing distance for secondary schools from three miles to five miles. These cuts disproportionately affect poorer students and make the ability to walk to school even more crucial.

43. Not only is the ability to walk to school at Virgil Middle School a necessity for some students, but walking to school also provides key health benefits. According to the California Department of Public Health (“DPH”), close to one-third of California’s children are overweight or obese. The DPH’s California Active Communities (“CAC”), in collaboration with CA4Health (a project of the Public Health Institute, with funding from the Centers for Disease Control and Prevention) has determined that a child’s overall health is affected by levels of physical inactivity which can be directly linked to time spent in automobiles versus in active transportation such as walking. Walking or biking to school provides an opportunity for purposeful physical activity toward the accumulation of the recommended 60 minutes or more of daily physical activity for children and youth. (Martin, Moeti and Pullen-Seufert, *Implementing Safe Routes to School: Application for the Socioecological Model and Issues to Consider* (2008).) Active transportation – such as walking and biking – to school can help increase physical activity levels of students and

their families. (ChangeLabSolutions, *Incorporating Safe Routes to School into Local School Wellness Policies* (July 2015).) Physical activity reduces the risk of obesity and related chronic diseases, and improves mental health, attendance, and academic performance. (*Ibid.*) Active transportation can also have broad community benefits, including reducing traffic congestion and air pollution, creating safer streets, encouraging cost savings, and building a stronger sense of community. (*Ibid.*) Increasing physical activity through walking and biking to school can help address high obesity rates. (*Ibid.*)

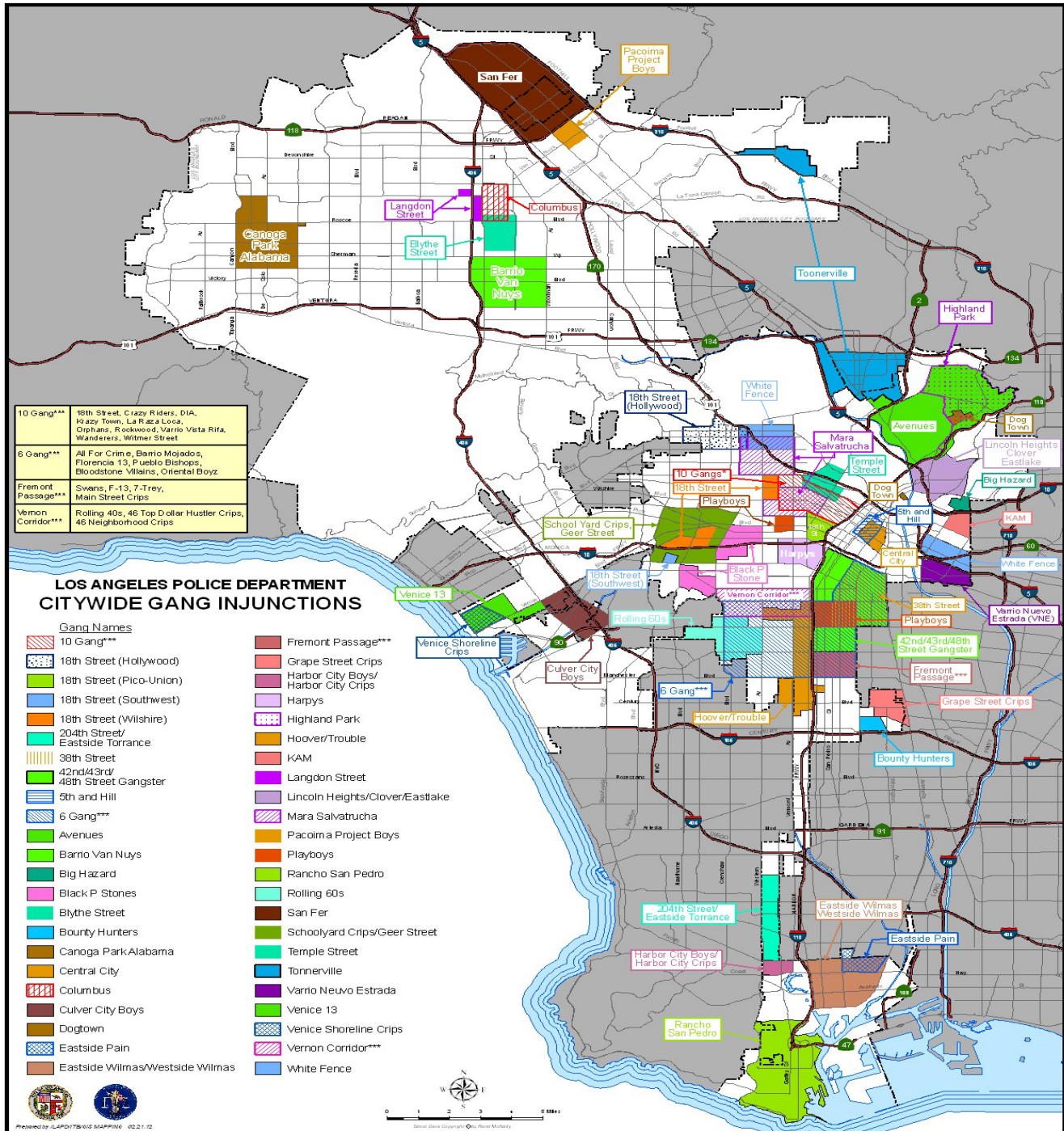
44. Empirical studies have determined that distance is a key impediment to children walking to school safely. (Martin, Moeti and Pullen-Seufert, *Implementing Safe Routes to School: Application for the Socioecological Model and Issues to Consider* (2008).) A study published in the *Journal of Public Health Policy* examines the multi-level correlates of walking to and from school. Of the physical environmental factors examined, the strongest negative correlates to walking to school were distance and safety concerns. (Zhu & Lee, *Correlates of Walking to School and Implications for Public Policies*, *Journal of Public Health Policy* (2009).) Recognizing distance as a barrier to the ability for a child to walk to school, CA4Health, the CAC, and the DPH support school siting as well as joint use policies and practices that encourage kids to walk or bike to school.

45. Displacing a significant number of students from Virgil Middle School to make additional room for Charter School would prevent a significant number of Virgil Middle School children who currently have the ability to safely walk to school from being able to do so. Conversely, Charter School draws its attendance from 91 different District schools. Therefore, providing a single-site offer at Virgil Middle School to Charter School would endanger a significant number of children currently attending their nearby school. Moreover, the forcible displacements would not just be limited to the children attending Virgil Middle School. Instead, those students would need to be absorbed into other District schools which may have insufficient space, programs and/or resources to house the influx of students, and would thereby cause the

additional forcible displacement of children from these absorbing schools. This would create a ripple effect of forcible displacements necessitating hundreds of children to relocate for the benefit of a far lesser number of Charter School's children. Such a decision would pose disproportionate harm to a significant number of Virgil Middle School students and to those District students displaced by the influx of these students, and thus produce inequity in the sharing of facilities.

46. Not only does distance play a factor in children safely walking to school due to traffic dangers, but several Los Angeles neighborhoods are plagued by gang violence. In order to create safe passages to and from school in neighborhoods suffering from gang-related violence, meaningful programs and efforts to mitigate these risks have been launched, such as Kid Watch LA which instituted the Walking School Bus for District students. The Walking School Bus enlists parent and community volunteers to accompany groups of small children as they walk to and from their school.

47. According to the Los Angeles Police Department, the District is located within the territory known as the "gang capital" of the nation, with more than 450 competing gangs. Gang violence is unfortunately prevalent on some campuses and within the neighborhoods of several District schools. As shown by the map depicting former gang injunctions in Los Angeles below, Los Angeles gangs claim particular territories:



48. On March 15, 2018, the City of Los Angeles was enjoined from enforcing these gang injunctions. (See, *Youth Justice Coalition, et al., v. City of Los Angeles, et al.*, CV 16-07932 VAP.) The inability to enforce these injunctions may result in an increase in gang-related activity and crime.

49. Involuntarily displacing students who themselves or whose parents are tied to a particular gang and placing them in a different school located in the territory of another gang would potentially breed gang warfare and violence affecting all children, teachers, staff, and parents at a particular school.

50. Pulling children out of their District schools and placing charter students at those school sites prevents the displaced children from taking advantage of safety measures such as the Walking School Bus and other relevant considerations their families have made, and therefore unfairly endangers the safety of those displaced children. These harms disproportionately affect students attending District schools. As parents of charter school students have elected to send their child to a school outside of his or her local attendance area, the parents have secured a means of transporting their child to this school. However, parents of children who attend District schools may not have the means to find alternate transportation and need to rely on children walking to their school. With the aforementioned reduction of several school bus routes and potential further elimination of transportation funding, many forcibly displaced children will be forced to walk long, unsafe distances or take unsafe public transit routes.

51. Displacing children attending Virgil Middle School for the purpose of making a single-site offer to Charter School would have additional instructional and social ramifications. California has an accountability system reported through the California School Dashboard. The state's accountability system includes a three-level identification and support system for local educational agencies, and categorizes district performance levels using a system of five status levels (ranging from Very High, High, Medium, Low and Very Low). The 2022 Dashboard showed the District was assigned a Medium Status level for two of the six state indicators based on the performance of all student groups: English Learner Progress and Graduate Rate indicators. A Low status level was assigned to English Language Arts ("ELA") and Mathematics, and a Very Low status level for Suspension Rate. The District received one Very High-status level for Chronic Absenteeism. Of the thirteen student groups reported, four were in the Very Low status level, five

in Low, three in High, and one in Very High. For the 2023 Dashboard, District performance levels were categorized using a system of five colors, stated in order from lowest to highest performing (Red, Orange, Yellow, Green, and Blue), except in the College/Career Indicator. The 2023 Dashboard results indicate that the District received an Orange performance level for English Learner Progress, Graduation Rate, and English Language Arts (Academic Indicator). The District also received a Yellow performance level for Chronic Absenteeism and Mathematics (Academic Indicator). Though the District received a Yellow indicator for Chronic Absenteeism, it is important to note that the District decreased its chronic absenteeism by 8.8-percentage points to 31% from 39.8% in 2022. In addition, the District received a Blue performance level for its Suspension Rate, and a Medium status level for the College/Career Indicator. In examining the performance of the thirteen student groups, the Dashboard indicates that no student received a Red performance level for Chronic Absenteeism. Among the other indicators, only three of thirteen student groups received at least one Red performance Level. In contrast, twelve student groups received at least one Blue performance level.

52. The District is continuing its efforts to improve performance in all state indicators. Displacing District children attending their District school at Virgil Middle School would thwart these efforts, and have instructional and social ramifications. Studies have empirically established that disrupting a child's trajectory to his or her district high school effectively increases drop-out rates. A review of 25 years of research conducted by the California Dropout Research Project identified strong predictors of dropping out of high school. The compilation study identified non-promotional school changes (student mobility) during middle school and high school as a key predictor of a child dropping out of school. (Rumberger & Lim, *Why Students Drop Out: A Review of 25 Years of Research*, California Dropout Research Project (October 2008).)

53. In 1998, a seminal study on the educational consequences of student mobility found a high causal connection between student mobility and an increased risk of high school drop-out. The staggering results of this study indicate that controlling for other predictors, students who

made even one non-promotional school change between the eighth and twelfth grades were twice as likely to not complete high school as students who did not change schools. (Rumberger & Larson, *Student Mobility and the Increased Risk of High School Dropout*, American Journal of Education 107 (November 1998).)

54. The safety and welfare of all students is the District's paramount concern and principal charge. The data is indisputable that children who drop out of school are at far greater risk of a vast array of physical, social, and economic harm than those who stay in school and complete their secondary education. This paramount concern of the District remains a material consideration when weighing whether to forcibly displace children from their existing school (such as Virgil Middle School) in order to make way for students who would attend school at that site (such as Charter School) from distant neighborhoods, especially when other solutions for sharing space fairly are feasible.

55. An additional impact of such displacement would be the difficulty of sustaining the same level of parental involvement in the absorbing schools. California State Board of Education Policy #89-01 acknowledges that a critical dimension of effective schooling is parental involvement. This policy initiative states that research studies demonstrate parental involvement at school propels a child's educational career. Forcibly displacing students attending Virgil Middle School would make it more challenging for those children to reap the benefits of parental involvement in their new schools.

56. An alternative to displacing students attending Virgil Middle School would be to overcrowd the site by adding more of Charter School's students. However, this would cause severe safety and operational ramifications due to the design capacity of the Virgil Middle School site, making this course of action infeasible. Adding Charter School's students to the Virgil Middle School site or any other District campus with insufficient space to feasibly accommodate Charter School's total in-district classroom ADA would raise both schools' classroom loading ratios,

thereby disadvantaging both of these schools' children. Likewise, having children over a school site's capacity sharing space would pose a great risk to student safety and well-being.

57. In making decisions regarding allocations of space, District staff placed the safety of students attending Charter School, Virgil Middle School, and other charter and District schools at the forefront of the decision-making process. District staff made substantial efforts to locate charter schools, including Charter School, at or near their desired geographic location and further made material efforts to minimize the number of sites on which each charter school was located. As Charter School's parents/guardians have made a decision to place their child in a school outside of their District school, they have had the opportunity to weigh the safety implications of this decision for their child. On the contrary, the families of forcibly displaced students would have no place in such a decision-making process. Thus, forcibly displacing children from Virgil Middle School and/or other impacted District schools would not afford their parents/guardians the same opportunity. In addition, the decision to forcibly displace students to make way for Charter School students necessarily will have safety impacts upon the displaced children, whereas, given the fact that many Charter School students already voluntarily travel to attend Charter School, these children may not face any increased safety risk by being required to, for example, travel five miles east instead of five miles south.

58. Based on the foregoing, the District determined that it was simply not feasible to provide Charter School with a single-site offer at Virgil Middle School, and because only a total of 8 spaces (5 teaching stations, 2 special education spaces, and one administrative office space) could be provided to Charter School at Virgil Middle School for the Next Fiscal Year, a portion of Charter School's in-district classroom ADA would need to be accommodated at one or more additional site(s). Therefore, in order to ensure a sufficient allocation of special education and administrative office spaces are provided to Charter School at each District school site, the District has identified 12 classrooms (9 instructional spaces, 2 special education spaces, and one administrative office space) at one or more additional District school site(s). While it is always the

District's goal to accommodate a charter school's entire program on a single District school site, sometimes charter schools must be offered space on more than one site, particularly if, as in the case of Charter School, the charter school has a large projected in-district classroom ADA and has indicated in its facilities request a preference not to be moved from its current site.

59. Based on the geographic area of interest identified in Charter School's Facilities Request, the District reviewed and considered the space availability at various alternative nearby District sites with reasonably equivalent facilities in order to accommodate the remainder of Charter School's ADA that could not be accommodated at Virgil Middle School.

60. Although it would be preferable to accommodate Charter School's entire program at the Virgil Middle School site for the Next Fiscal Year, for the reasons set forth herein it is not possible to provide Charter School with 17 classrooms at the Virgil Middle School site without presenting significant, safety, educational, scheduling, facilities, and operational challenges. The John H Liechty Middle School site, which is within Region East and Board District 2, and is located 2.2 miles from the Virgil Middle School site according to Google Maps, is the closest reasonably equivalent school site that could also accommodate Charter School. Considering that the District spans over 710 square miles and serves over 27 cities, and based on the plain language of California Code of Regulations, title 5, section 11969.2, subdivision (d), the John H Liechty Middle School site is "contiguous" with the Virgil Middle School site.

61. Based on all of the foregoing considerations, District staff recommends providing Charter School with a multi-site offer of contiguous facilities at the Recommended Co-Locations.

ATTACHMENT 4(b): CITIZENS OF THE WORLD CHARTER SCHOOL SILVER LAKE

Board of Education Finding that Citizens of the World Charter School Silver Lake Cannot Be Accommodated at a Single Site and Written Statement of Reasons Explaining the Finding (Cal. Code Regs., tit. 5, § 11969.2, subd. (d)), and Determination of Necessity to Move

Whereas, Under Proposition 39, the Los Angeles Unified School District (“District”) is required to fairly share space between public school pupils, charter and non-charter students alike;

Whereas, In making an allocation of space, the District attempts to place a charter school applicant on one school site or, when that is not feasible, alternatively attempts to minimize the number of school sites on which the charter school applicant is placed;

Whereas, In making an allocation of space, the District materially considers the safety implications to charter and District school students of making a multi-site offer, and balances the safety, instructional, and social consequences of displacing children from their District schools, as well as the burdens associated with such an action on their parents and the community;

Whereas, For the Next Fiscal Year, 46 charter schools requested facilities under the Proposition 39 process, asking for approximately 13,110 seats from the District;

Whereas, Charter School submitted an application for Proposition 39 facilities for the Next Fiscal Year;

Whereas, The Board hereby incorporates by reference the entire Staff Report on the Deliberative Process for Determining Why Charter School Cannot be Accommodated at a Single Site for the Next Fiscal Year;

Whereas, District staff engaged in an effort to create a single-site offer to accommodate Charter School’s total in-district classroom ADA;

Whereas, The District cannot accommodate Charter School’s request for a single site at Virgil Middle School;

Whereas, 9 different charter schools (including Charter School) requested space in Region East for the Next Fiscal Year;

Whereas, District staff determined that Virgil Middle School (the only District school site or general geographic area in which Charter School wishes to be located) will not have sufficient classroom space to accommodate Charter School’s entire projected in-district classroom ADA in the Next Fiscal Year;

Whereas, The District cannot accommodate Charter School’s entire in-district classroom ADA at Virgil Middle School;

Whereas, To accommodate Charter School's entire in-district classroom ADA at Virgil Middle School would present substantial, disproportionate safety concerns for both Charter School's students and students attending their District school;

Whereas, To accommodate all of Charter School's students at Virgil Middle School would require the displacement of a significant number of children attending Virgil Middle School, and potentially additional District schools;

Whereas, Involuntarily displacing children out of their existing District schools has far-reaching safety, instructional, and social implications including: prohibiting children from safely walking to school; subjecting children to possible gang violence; increasing high-school drop-out rates; and impairing parental involvement in their children's schools;

Whereas, Based on these safety and instructional considerations, District staff recommends keeping the student populations of Virgil Middle School and other District schools intact;

Whereas, Alternatively, over-crowding a school's campus in order to provide a single-site offer to Charter School would have equally severe safety and operational ramifications, making this course of action infeasible;

Whereas, The District can provide Charter School with a multi-site contiguous offer of reasonably equivalent facilities at the "Recommended Co-Locations";

Whereas, Providing Charter School space at the Recommended Co-Locations minimizes the number of sites assigned to Charter School;

Whereas, Because of the short distance between the Recommended Co-Locations in a school district spanning 710 square miles and serving over 27 cities, the Recommended Co-Locations are contiguous facilities;

Whereas, By providing space to Charter School at the Recommended Co-Locations, the District has made reasonable efforts to provide Charter School with facilities near to where Charter School wishes to locate; and

Whereas, The District can make a complete and contiguous, multi-site offer to accommodate Charter School's entire in-district classroom ADA; therefore be it

Resolved, That pursuant to California Code of Regulations, title 5, section 11969.2, subdivision (d), for the reasons set forth herein and as further expressed by District staff, the Governing Board of the Los Angeles Unified School District finds that the District cannot accommodate Charter School at a single school site;

Resolved, That pursuant to Education Code sections 35160-35160.1 and 47614, and California Code of Regulations, title 5, section 11969.1, et seq., for the reasons set forth herein and as further expressed by District staff, the Governing Board of the Los Angeles Unified School District

authorizes a preliminary proposal and final offer of facilities to Charter School for the Next Fiscal Year at multiple District school sites; and therefore be it finally

Resolved, That pursuant to Education Code section 47614, subdivision (b), for the reasons set forth herein and as further expressed by District staff, if to the extent that part of Charter School's operations which existed at the Virgil Middle School site for the 2023-24 school year must be accommodated at the John H Liechty Middle School site for the Next Fiscal Year constitutes a "move" of Charter School, the Governing Board of the Los Angeles Unified School District determines that such a move is necessary.

ATTACHMENT 5(a): EXTERA PUBLIC SCHOOL**Staff Report on Deliberative Process for Determining Why Extera Public School Cannot be Accommodated at a Single Site****Charter School's Facilities Request**

1. On or before November 1, 2023, Extera Public School ("Charter School") submitted a Proposition 39 Online Facilities Request Form ("Facilities Request") to the District, requesting use of District facilities for a projected in-district classroom average daily attendance ("ADA") of 267.43 in grades TK-8 for the 2024-25 school year ("Next Fiscal Year"). Charter School identified 28 different District schools that its charter school students would otherwise attend. Charter School's facilities request was one of 46 that the District received for the Next Fiscal Year. Charter School requested facilities at 2nd St. EL and Breed EL ("Requested Sites"). Charter School is currently operating at 2nd St EL and Breed EL.

2. District staff reviewed information provided in support of Charter School's ADA projections and determined that a reasonable in-district classroom ADA projection for Charter School is 267.43.

3. Charter School's facilities request states: "Based upon the needs of the Charter School and the residency of the currently enrolled students and projected student enrollment, the Charter School desires to continue the location of its facilities in Boyle Heights and specifically at the two co-locations where the Charter School's students and families are currently served. The Charter School seeks to continue its current co-locations on the 2nd Street and Breed Street campuses and requests sufficient allocation of classrooms at the two campuses to allow the School to operate each class in its own classroom without the use of doubled-up classes."

4. If Charter School's request can be satisfied, further analysis is unnecessary. Therefore, rather than attempt to locate Charter School on a single site, pursuant to Education Code

section 47614, District staff engaged in an effort to satisfy Charter School's request and provide a multi-site co-location at the Requested Sites.

5. Charter School requested to locate on two campuses. The District has the ability to locate Charter School at the two facilities where it wishes to locate. Consequently, District staff concluded it could not accommodate Charter School on a single site and comply with Education Code section 47614.

6. Therefore, District staff recommends making this complete offer of contiguous space to Charter School at Requested Sites ("Recommended Co-Locations").

ATTACHMENT 5(b): EXTERA PUBLIC SCHOOL

Board of Education Finding that Extera Public School Cannot Be Accommodated at a Single Site and Written Statement of Reasons Explaining the Finding (Cal. Code Regs., tit. 5, § 11969.2, subd. (d))

Whereas, Under Proposition 39, the Los Angeles Unified School District (“District”) is required to fairly share space between public school pupils, charter and non-charter students alike;

Whereas, In making an allocation of space, the District attempts to place a charter school applicant on one school site or, when that is not feasible, alternatively attempts to minimize the number of school sites on which the charter school applicant is placed;

Whereas, In making an allocation of space, the District materially considers the safety implications to charter and District school students of making a multi-site offer, and balances the safety, instructional, and social consequences of displacing children from their District schools, as well as the burdens associated with such an action on their parents and the community;

Whereas, For the Next Fiscal Year, 46 charter schools requested facilities under the Proposition 39 process, asking for approximately 13,110 seats from the District;

Whereas, Charter School submitted an application for Proposition 39 facilities for the Next Fiscal Year;

Whereas, Charter School’s facilities request states that it wishes to remain at its current two campuses;

Whereas, Rather than attempt to locate Charter School on a single site, pursuant to Education Code section 47614, District staff engaged in an effort to satisfy Charter School’s request and provide a multi-site co-location at Requested Sites;

Whereas, The District has the ability to co-locate Charter School where it wishes;

Whereas, The District cannot accommodate Charter School on a single site and comply with Education Code section 47614;

Whereas, By providing space to Charter School at the Recommended Co-Locations, the District has made reasonable efforts to provide Charter School with facilities near to where Charter School wishes to locate; and

Whereas, The District can make a complete and contiguous, multi-site offer to accommodate Charter School’s entire in-district classroom ADA; therefore be it

Resolved, That pursuant to California Code of Regulations, title 5, section 11969.2, subdivision (d), for the reasons set forth herein and as further expressed by District staff, the Governing Board

of the Los Angeles Unified School District finds that the District cannot accommodate Charter School at a single school site; and therefore be it finally

Resolved, that pursuant to Education Code sections 35160-35160.1 and 47614, and California Code of Regulations, title 5, section 11969.1, et seq., for the reasons set forth herein and as further expressed by District staff, the Governing Board of the Los Angeles Unified School District authorizes a preliminary proposal and final offer of facilities to Charter School for the Next Fiscal Year at multiple District school sites.

ATTACHMENT 6(a): GABRIELLA CHARTER SCHOOL 2**Staff Report on Deliberative Process for Determining Why Gabriella Charter School 2 Cannot be Accommodated at a Single Site****Charter School's Facilities Request**

1. On or before November 1, 2023, Gabriella Charter School 2 ("Charter School") submitted a Proposition 39 Online Facilities Request Form ("Facilities Request") to the District, requesting use of District facilities for a projected in-district classroom average daily attendance ("ADA") of 391.40 in grades TK-8 for the 2024-25 school year ("Next Fiscal Year"). Charter School identified 18 different District schools that its charter school students would otherwise attend. Charter School's Facilities Request was one of 46 that the District received for the Next Fiscal Year. Charter School requested facilities at Trinity Street Elementary or a single site location within a 1.25 mile radius of Trinity Street Elementary. Charter School is currently operating at Trinity Street Elementary and West Vernon Avenue Elementary.

2. District staff reviewed information provided in support of Charter School's ADA projections and determined that a reasonable in-district classroom ADA projection for Charter School is 391.40.

3. Education Code section 47614, subdivision (b) requires the District to provide charter schools with facilities sufficient for the charter school to accommodate all of its in-district students in conditions "reasonably equivalent" to those in which the students would be accommodated if they were attending other public schools of the district.

4. To determine whether the conditions of facilities provided to a charter school are "reasonably equivalent" to the school district facilities that charter school students would otherwise attend, the District adheres to the Proposition 39 implementing regulations (California Code of Regulations, title 5, section 11969.1, et seq.) which direct school districts to measure those facilities against the facilities used by district students at a "comparison group" of schools. As the

District is divided into high school attendance areas, in selecting comparison group schools, the District must follow California Code of Regulations, title 5, section 11969.3, subdivision (a)(2), which states, “[t]he comparison group shall be the district-operated schools with similar grade levels that serve students living in the high school attendance area... in which the largest number of students of the charter school reside.” District staff reviewed Charter School’s projected in-district classroom ADA broken down by grade level and its identification of the 18 different District schools its projected charter school students would otherwise attend. Based on the information provided by Charter School, District staff determined that the attendance area where the largest number of Charter School’s projected students reside is the Jefferson Zone of Choice attendance area. Consequently, based on the grade levels that Charter School projects it will serve, District staff identified the following as the District-operated schools with similar grade levels that serve students within the Jefferson Zone of Choice attendance area; i.e., Charter School’s comparison group schools: 20th Street Elementary, 28th Street Elementary, 49th Street Elementary, John Adams Middle School, Ascot Avenue Elementary, Aurora Elementary, George Washington Carver Middle School, William Jefferson Clinton Middle School, Estrella Elementary, Harmony Elementary, Hooper Avenue Elementary, Hooper Avenue Primary Center, Dolores Huerta Elementary, Quincy Jones Elementary, Ricardo Lizarraga Elementary, Los Angeles Academy Middle School, Main Street Elementary, Maple Primary Center, Dr. Julian Nava Learning Academy, Nevin Avenue Elementary, Sally Ride Elementary: A Smart Academy, San Pedro Street Elementary, Trinity Street Elementary, Wadsworth Avenue Elementary, and West Vernon Avenue Elementary.

5. The District also follows California Code of Regulations, title 5, section 11969.3, subdivision (b)(1), which requires that the facilities made available by a school district to a charter school shall be provided in the same ratio of teaching stations (classrooms) to ADA as those provided to students in the district attending comparison group schools. To implement a fair sharing of space, the District determines the ratio of ADA-to-classrooms provided for each of the

charter school's comparison group schools and uses an average of those figures to determine the number of classrooms to provide to the charter school. It also results in the District allocating classroom space sufficient to allow a charter school to maintain the same minimum number of seats in a classroom as maintained in the District's comparison group schools, that is, to maintain conditions reasonably equivalent to the comparison group schools as required by Proposition 39. In other words, it results in accommodating charter school students on District school sites as they would be accommodated if they otherwise attended those District schools. Consequently, this calculation is used to ensure the number of classrooms provided to charter schools is equivalent to the number of classrooms provided at their comparison group schools.

6. Relying upon an in-district classroom ADA projection of 391.40 for the Next Fiscal Year, and an average ADA to classrooms provided ratio at the comparison group schools of 18.55, the District determined that Charter School is entitled to 21 teaching stations (classrooms) and one space to be used as its administrative office. The District also determined that Charter School is entitled to 2 special education space(s).

7. Charter School's facilities request states: "GCS 2 is requesting a single site location. GCS 2 would prefer to remain on our current split campuses (Trinity and West Vernon) if a single site location within a 1.25 mile radius of Trinity Elementary is not possible."

8. Based on the foregoing, if the in-district classroom ADA of Charter School cannot be accommodated entirely at Trinity Street Elementary or another single site within 1.25 miles of Trinity Street Elementary in the Next Fiscal Year, District staff recommends allocating Charter School facilities at Trinity Street Elementary and additional school site(s).

9. Education Code section 47614, subdivision (b), provides that facilities provided to a charter school by a school district must be, among other things, "contiguous." The definition of "contiguous" expressed in California Code of Regulations, title 5, section 11969.2, subdivision (d), states that facilities are "contiguous" if they are contained on the school site or immediately adjacent to the school site, and that if the in-district classroom ADA of a charter school cannot be

accommodated on any single school district school site, contiguous facilities also includes facilities located at more than one site, provided that the school district shall minimize the number of sites assigned and shall consider student safety. As explained below, pursuant to Proposition 39, District staff first engaged in an effort to create a single-site offer to accommodate Charter School's projected total in-district classroom ADA in the Next Fiscal Year. District staff evaluated space at Trinity Street Elementary (the District school site at which Charter School wishes to locate) and determined that Trinity Street Elementary will not have sufficient classroom space to accommodate Charter School's total in-district classroom ADA in the Next Fiscal Year. District staff then expanded its search to other schools near Trinity Street Elementary ("Other Considered Sites"), including, but not limited to, West Vernon Avenue Elementary, Ricardo Lizarraga Elementary, Maple Primary Center, William Jefferson Clinton Middle School, Dr. Theodore T Alexander Jr. Science Center School, Marguerite Poindexter LaMotte Elementary, George Washington Carver Middle School, Harmony Elementary School, Dolores Huerta Elementary School, Quincy Jones Elementary, Main Street Elementary, 49th Street Elementary, Wadsworth Avenue Elementary, John Adams Middle School, and 28th Street Elementary. The District determined, however, that it is not possible to accommodate Charter School's entire in-district student population on a single site in the Next Fiscal Year.

10. Therefore, District staff recommends providing space at the following locations to Charter School to accommodate its total in-district classroom ADA for the Next Fiscal Year: Trinity Street Elementary and West Vernon Avenue Elementary (collectively, the "Recommended Co-Locations"). By providing space to Charter School at the Recommended Co-Locations, the District has made reasonable efforts to provide Charter School with facilities near to where Charter School wishes to locate and to minimize the number of sites assigned to Charter School.

**Process District Staff Followed to Locate Space for Charter School Pursuant to
Proposition 39**

11. The District's Charter Schools Division ("CSD") determined that in the 2023-24

school year, more than 148,194 students enrolled in charter schools authorized by the District. This figure reflects a 1,865 student decrease compared to the number of students enrolled during the previous school year. In the 2023-24 school year, the District had the most charter students attending schools authorized by a District of any school district in the nation. The District ensured that every eligible in-district charter student was offered a seat.

12. For the 2024-25 Proposition 39 cycle, the District is applying a comprehensive process to ensure that every eligible in-district charter school student is offered a seat at a District campus. The District is following a critical schedule of steps, from receiving the initial request for facilities by a charter school to making facilities ready for occupancy, in order to timely meet the Proposition 39 timeline. The general process District staff is following in administrating Charter School's Facilities Request is the same that it used to process each of the other facilities requests the District received from charter schools for the Next Fiscal Year. That process is as follows:

13. Beginning in September 2023, School Management Services and Master Planning & Demographics ("SMS-MPD") staff, which includes District personnel in the District's Facilities Services Division experienced in public school facilities utilization that assess all of the educational space within the District, conducted a comprehensive analysis of the use of District classrooms school facilities, called E-CAR. E-CAR was implemented at the beginning of the Proposition 39 process to assess capacity at school sites throughout the District, and commenced with a preparation period during which SMS-MPD staff examined materials submitted by all District schools in the previous year for accuracy, as well as for consistency with previous assessments' classroom usage and availability determinations. The SMS-MPD staff applied standard formulae for the usage of classrooms in order to generate an objective and uniform assessment of the amount of total classroom space at District school sites. The purpose of this calculus is to assess the number of classrooms required to accommodate instructional program enrollment, based on grade level and specific course subject matters at secondary schools.

14. Next, the E-CAR process involves District school principals at more than 700 District school sites logging into an online application to validate their school's enrollment and to

review and confirm details regarding the school site's classrooms and their respective utilization. Specifically, the principals identified and validated classroom space utilized as teaching stations and "set-asides" (classrooms used for purposes other than general education), along with classroom numbers, locations, and sizes. Additionally, the principals identified classrooms occupied by special education programs, charter schools, preschools, alternative education programs, option programs, and other third-party users, as well as swing space needed for construction projects, and classrooms that are out of service or mandated for removal due to legal and/or safety/physical condition requirements. The purpose of E-CAR is to accurately assess the current capacity of each District school site in several respects: the number and size of classrooms, the manner in which those classrooms are currently used, and the school's operating capacity. E-CAR entails a detailed review of the present use of District school sites and an analysis of the projected future uses of those facilities. The analysis includes reporting of data by individual schools, which is reviewed by SMS-MPD staff to confirm its accuracy and to ensure that space is used efficiently and uniformly throughout the District.

15. To ensure that District school administrators are provided the resources necessary for a complete and accurate assessment of their school's capacity, they were instructed to reference the following resource materials for their school site: A current school map; the school's former or most recent Norm Day classification report (which details the number of students enrolled at that school on September 15, 2023); the Norm Day classification report for any magnet centers and/or dual language programs located on the school site; the Classroom Inventory and Allocation Worksheet pages from the prior school year's Capacity Assessment Review report, which contains information for classroom counts and allocations into precisely-defined categories; and the number of teaching positions in all categories, including general education, special day, magnet, dual-language, physical education, and off-norm-funded positions.

16. Categorizing classrooms in this way is important because a school's capacity involves more than its raw seats and room numbers. The District must determine whether a school site has facilities available to sufficiently serve the particular requirements of a school, such as

grade levels, special education programs, magnet centers, Small Learning Communities, Personalized Learning Environments, legal mandates, and other student needs.

17. District staff reviewed the foregoing data regarding specific capacity information at District school sites for the Next Fiscal Year. Utilizing this data, SMS-MPD provided CSD with the number of estimated available classrooms, at each District school site given specific operating capacities per programmatic and mandated qualifiers. When planning for maximal use of available school facilities, and in interpreting data generated during the course of facilities planning, it is absolutely critical to understand the difference between “unallocated classrooms” and “available seats.” To illustrate, a hypothetical District school may not have any unallocated classrooms but may have individual available seats in classrooms currently occupied. As a result, the school may be able to absorb 100 students into its existing classrooms by identifying two free seats spread out among 50 of its classrooms that are used for instruction appropriate to the grade level and subject matter requirements for the students being absorbed. Thus, it is an entirely different proposition to provide and integrate 100 seats across a campus than to provide four or five unallocated classrooms with the same total number of contiguous available seats. In many instances, there may be many available seats in a school, but no unallocated classrooms. This is especially the case for District middle and high schools where the students do not sit in one classroom all day, like an elementary school, but instead attend four or more different classes per day, each in different classrooms and with different teachers and groups of students, in order to receive the mandated curriculum.

18. SMS-MPD generated each instructional program’s operating capacity using a complex mathematical formula which took into account all aspects of the schools’ operations. The operating capacity also accounted for classrooms designated as “set asides.” Public school districts are required to provide special education space, and a parent center at each school which is classified as a set-aside. Also, pre-kindergarten and adult education students are served in classrooms at school sites across the District.

19. District staff analyzed each District school’s estimated available seats and classrooms for the Next Fiscal Year based on the data.

20. As a public institution, the District is required to provide an education to every student who chooses to enroll. The District previously planned its programming and staffing based on estimated enrollment projections, but in the event projections were short, the District was still obligated to provide an education to students who were not originally anticipated. As a safeguard against the overcrowding of classrooms in such situations, the District historically prepared to reserve 75 seats at every secondary school and 50 seats at every elementary school for additional unanticipated enrollment. Importantly, however, beginning in 2013 and continuing this year, District staff examined the actual historical enrollment data over the last several years at each school site to determine if a trend could be empirically established demonstrating unanticipated growth. Based upon this analysis, the District determined that no seats at any District school sites offered to a charter school should be reserved for unanticipated growth.

21. The District uses the definition contained in California Code of Regulations, title 5, section 11969.3, subdivision (a)(2) to determine comparison group schools. No two schools are identical; however, on a grade-alike basis, a significant majority of the District's schools share reasonably equivalent conditions, especially when taking into account age, quality of materials and state of maintenance, school site size, conditions of surfaces as well as mechanical, plumbing, electrical and fire-life systems, including conformity to applicable codes, availability and condition of technology infrastructure, the condition of the facility as a safe learning environment, including, but not limited to, the suitability of lighting, noise mitigation, and size for intended use, the conditions of the facility's furnishings and equipment, and the condition of athletic fields and play area space. As part of this process, District staff determined whether the conditions of school facilities offered to a charter school were reasonably equivalent to those of the comparison group schools.

Matching Guidelines Utilized by the District for Charter School

22. In accordance with applicable law, the District is guided by the following matching guidelines in order to make contiguous offers of space to charter schools in facilities with

reasonably equivalent conditions to those which would accommodate the charter students if they otherwise attended District schools:

- Consider student safety and welfare
- Identify reasonably equivalent facilities
- Minimize the number of sites assigned
- Make reasonable efforts to provide facilities near to where the charter school wishes to locate
- Avoid moving a charter school unnecessarily
- Minimize disruption to District and charter programs
- Fairly balance the needs of District and charter programs
- Avoid displacing any District students from their school of attendance
- Maximize use of unallocated classroom space (i.e., those with no designated use and would be vacant/unassigned in a particular fiscal year, as identified in the District's annual comprehensive analysis of space on District school sites. Classrooms used to provide additional programming or services are not considered unallocated classroom space, and are categorized according to their specific designation).

23. District staff makes every reasonable effort to locate space on a single site, or on multiple sites only if necessary or specifically requested by the charter school, in the charter school applicant's geographic area of interest. Consequently, District staff first attempts to accommodate charter schools at a single school site and looks for available facilities sufficient to accommodate the entirety of a charter school's projected in-district classroom ADA within its desired area of geographic interest. Only when no single school site can be feasibly identified based upon school site design and occupancy limitations, as well as after taking into account the paramount considerations of both District and charter school student safety and welfare, does the District make offers that contemplate the use of multiple school sites.

24. District staff first identifies the classroom inventory by grade level configuration in each geographic region. Grade-alike matches typically provide reasonably equivalent space to charter schools; therefore, wherever possible, District staff allocates space to charter applicants on grade-alike school facilities.

25. District staff next identifies which charter school applicants are currently located in District facilities that they have identified in their geographic area of interest for the following Proposition 39 cycle and, when feasible, matches those charter schools to those school sites.

District staff then examines and identifies the geographic areas of interest of other charter school applicants. As described above, multiple charter schools often request space in the exact same location so District staff must assess conflicting geographic as well as particular site interests. In doing so, District staff examines whether the potential match would utilize all available classrooms and whether the match represents a full, single-site offer. Priority is given to those charters where these two goals can be achieved.

26. Based on an examination of these criteria, District staff makes a preliminary match of available classrooms at a particular site to the projected in-district classroom ADA of each charter school. District staff attempts to find the most geographically relevant grade-alike matches. District staff seeks to minimize disruption to and fairly balance the needs of District and charter programs. For multi-site scenarios, District staff eliminates set-asides whenever reasonably possible to reduce the number of sites assigned to a charter school, which often results in being able to transform multi-site offers to single-site offers. While endeavoring to preserve programmatic spaces essential to enriching instruction and student health and human services, District staff may need to engage in the materially disruptive measure of eliminating or otherwise impacting set-asides used to provide services at District schools in order to share space fairly among charter and non-charter students in the District. Set-asides are divided into two categories: District set-asides and School set-asides.

27. School set-asides allocate space for instructional, safety, and health programs that are specific to a particular school. For example, Title I funding coordinator offices are considered School set-asides. Title I funding provides financial assistance to schools with high numbers or high percentages of low-income children to help ensure that all children meet challenging state academic standards. The District uses Title I funds to provide additional academic support and learning opportunities to help low-achieving children master challenging curricula and meet state standards in core academic subjects. Such funds support extra instruction in reading and mathematics, as well as special preschool, after-school, and summer programs to extend and

reinforce the regular school curriculum. Additionally, School set-asides are used to allocate space for small learning community (“SLC”) offices. An SLC, also referred to as a School-Within-A-School, is a form of school structure in secondary schools to subdivide large school populations into smaller, autonomous groups of students and teachers. SLCs include structures such as freshman academies, multi-grade academies organized around career interests or other themes, “houses” in which small groups of students remain together throughout high school, and autonomous schools-within-a-school, as well as personalization strategies, such as student advisories, family advocate systems, and mentoring programs. Research continues to show that small schools and SLCs have the necessary elements to counteract the inherent negative effects of poverty and poor academic achievement for low-income students and/or students of color. (Cotton, *New Small Learning Communities: Findings from Recent Literature*, Portland, Ore: Northwest Regional Educational Laboratory (2001); Jimerson, *The Hobbit Effect: Why Small Works in Public Schools*, The Rural School and Community Trust (August 2006).)

28. At the middle school level, School set-asides are used, for example, for Personal Learning Environment (“PLE”) offices, the middle school equivalent to an SLC. Likewise, School set-asides may be used for the District’s Response to Instruction and Intervention (“RTI²”) program. RTI² integrates assessment and intervention within a multi-level prevention system to maximize student achievement and to reduce behavior problems. With RTI², schools identify students at risk for poor learning outcomes, monitor student progress, provide evidence-based interventions and adjust the intensity and nature of those interventions depending on a student’s responsiveness, and identify students with learning disabilities or other disabilities. In order to provide space to charter schools requesting Proposition 39 facilities, District staff has eliminated or reduced the number of School set-asides on certain campuses. This instructional disruption unfortunately disproportionately affects low-income, low-performing, or disabled District neighborhood children, those who need assistance the most. However, District staff has taken these disruptive measures in order to share facilities fairly with charter schools.

29. District set-asides use school space to implement key District-wide instructional, health, and safety programs. For example, these set-asides include space for District police, regional special educational testing centers, health center clinics, food service, and Beyond the Bell programs, among others. Eliminating these set-asides would deny or interfere with students' ability to receive the special education and related services to which they are entitled, or force students to travel as much as 50 miles to the next closest center. In the 2023-24 fiscal year, the District's school-based health clinics are projected to provide approximately 156,000 visits to children who would otherwise have been challenged to access health care. The demand for health services remains as high as it did in the previous school year, and to eliminate these clinics would deprive the neediest children of vital services. Additionally, Beyond the Bell programs ensure that all children and youth in the District have access to high-quality, safe, and supervised academic, enrichment, and recreation programs that inspire learning and achievement beyond the regular school day (before and after school and Saturdays). The three components of Beyond the Bell include academic tutorial, recreational, and enrichment programs vital to the safety and wellbeing of school children. Improved school attendance and test scores have been attributed to student participation in Beyond the Bell's after-school programs. By providing supervision and engagement during after school hours when many parents may be working outside the home, Beyond the Bell's programs help reduce the risk that children might engage in drug or alcohol use, sexual activity, and/or crime. To eliminate Beyond the Bell programs would expose the thousands of children who utilize these programs on a daily basis to danger, harming their academic performance and their overall wellbeing.

30. Although District and School set-asides provide space for programs that are vital to the curriculum of a particular school or to District-wide goals, in order to share space fairly, District staff has cut into these set-asides where doing so would minimize the number of sites offered to a charter school in order to make a complete offer of space.

31. For the Next Fiscal Year, District staff had to grapple with the conflicting needs of 46 different charter school applicants and cycled through its comprehensive space matching process as conscientiously as possible, shifting space and potential matches to fulfill the District's obligation to share space fairly among all students – charter school students and those students attending District schools alike. In doing so, District staff kept in the forefront considerations of student safety and welfare.

32. Often, many charter schools request to be located at the same school site, requiring District staff to assess conflicting geographic as well as particular site interests. In fact, 9 different charter schools (including Charter School) requested space in Region East for the Next Fiscal Year. District staff had to contend with the conflicting needs of these 9 charter schools, as well as all 46 eligible charter school applicants, shifting space and potential matches to fulfill the District's obligation to share space fairly among all in-district students. The process is extraordinarily dynamic with a complex set of ever-changing pieces, decisions regarding any one of which can result in very real ripple effects for students and programs across multiple school sites.

33. The District's space matching guidelines are just that – guidelines. They cannot be applied in a vacuum and without rationale. In allocating space to charter schools, the District must consider the impact on other public school students, both those attending District schools and those attending other charter schools requesting space. District staff applied the District's matching guidelines in conjunction with thoughtful considerations of the real world impacts on all public students in providing co-location offers to charter schools for the Next Fiscal Year.

34. The District began its space analysis for Charter School by examining data from E-CAR for Trinity Street Elementary related to the 2024-25 school year. As explained above, the E-CAR enrollment for Trinity Street Elementary is reflected in classroom usage as of September 15, 2023, which is known as "Norm Day." The E-CAR data is a "snapshot in time" that reflects classroom availability and usage at a particular school site at the time it is prepared. It is the baseline for the District's comprehensive space analysis of the current and projected utilization

and availability of space for a charter school. It does not contemplate any prospective future revisions or factor in projected classroom usage for any subsequent school year, or changes in space utilization needs that occur after the E-CAR data is prepared, such as, for example, increases or decreases in the District school site's enrollment projections for the upcoming school year, planned programmatic expansions, adjustments to ADA-to-classrooms ratios and/or assigned teachers, changes to grade levels served, construction projects, removal of portable classrooms, charter schools' potentially forthcoming Proposition 39 facilities requests, the planned occupancy by other charter schools or District programs, or any other factor that would result in an adjustment of the number of available classrooms for the Next Fiscal Year. E-CAR data indicated 0 unassigned/unallocated standard size classrooms at Trinity Street Elementary at Norm Day. Charter School occupies 12 exclusive use spaces at the school site in the current school year.

35. In the second week of November 2023, Region Offices were provided information regarding charter schools that had requested Proposition 39 space, and potential space availability at District school sites. Region East was advised of the District school site(s) and/or general geographic area in which Charter School wishes to locate, and that it was entitled to exclusively use a total of 24 spaces (21 instructional spaces, 2 special education spaces, and one administrative office space) for the Next Fiscal Year. Region East was also advised that there were 9 charter schools that had requested facilities within that same Region.

36. Meetings were also conducted between CSD, SMS-MPD, and others, so that additional District stakeholders such as Region Office leadership and school-site staff could provide further valuable input regarding important information, such as impacts of a potential co-location at a particular school site or unique site conditions that might make it unsuitable. Various provisional matches within each Region were identified and deliberated, and participants thoughtfully discussed potential recommendations as part of the District's comprehensive compliance effort. Per established protocols, the District also invited labor partners, including United Teachers Los Angeles, to Advisory meetings to offer feedback.

37. During the course of the meetings and numerous additional discussions, CSD, Region East, District administrators, SMS-MPD, and others discussed that Trinity Street Elementary and Other Considered Sites will not have adequate availability of space in the Next Fiscal Year to accommodate Charter School's entire projected in-district classroom ADA due to the planned programmatic needs as accounted for in the E-CAR. Information considered included, but was not limited to, the following:

School Site	Distance from Centroid of the Requested Sites (miles)	Projected Number of Available Spaces in Next Fiscal Year
West Vernon Avenue Elementary	0	18
Ricardo Lizarraga Elementary	0.51	0
Maple Primary Center	0.66	0
William Jefferson Clinton Middle School*	0.72	0
Dr. Theodore T Alexander Jr. Science Center School	0.89	0
Marguerite Poindexter LaMotte Elementary	0.95	0
George Washington Carver Middle School	0.96	4
Harmony Elementary School	1	0
Dolores Huerta Elementary School	1.03	0
Quincy Jones Elementary*	1.07	0
Main Street Elementary	1.07	0
49 th Street Elementary	1.13	2
Wadsworth Avenue Elementary	1.13	0
John Adams Middle School	1.17	3
28 th Street Elementary	1.25	0

*Identified as a Proposition 39 co-location site for another charter school

Also evaluated were the needs, as operationally feasible and permitted by law, to support the District's 100 Priority Schools, Black Student Achievement Program (BSAP) schools, and Community Schools, and avoid outcomes that would compromise District schools' capacity to serve neighborhood children and/or result in grade span arrangements that negatively impact student safety and actively deter students from attending District schools. Due to these circumstances, Trinity Street Elementary and Other Considered Sites will be unable to accommodate Charter School's entire projected in-district classroom ADA in the Next Fiscal Year.

38. In summary, the District has no realistic ability to allocate 24 exclusive use classroom spaces to Charter School at the Trinity Street Elementary school site or Other Considered Sites for the Next Fiscal Year. Allocating such space to Charter School would present significant safety, educational, scheduling, facilities, and operational challenges, and result in significantly harmful negative impacts, displacements, and disruptions to students at Trinity Street Elementary or Other Considered Sites. Allocating such space to Charter School would result in an unfair sharing of space between Charter School and Trinity Street Elementary or Other Considered Sites.

39. If Charter School was provided 24 classroom spaces at Trinity Street Elementary or Other Considered Sites, it would so severely diminish the Trinity Street Elementary or Other Considered Sites program's usable instructional space that it could require some teachers to hold classes outside of classroom settings. Alternatively, Trinity Street Elementary or Other Considered Sites could either overcrowd its existing classrooms by reducing its teaching staff and increasing the number of student desks in classrooms or require two teachers to teach class simultaneously in one classroom. Both options would not only overburden the teachers forced to teach those classes, but would also unfairly crowd students and block safe access to doors. None of these possibilities are realistically feasible.

40. District staff has determined that the quality of the education for students attending school at Trinity Street Elementary, Other Considered Sites, and Charter School would suffer significantly if Charter School were provided 24 classroom spaces at Trinity Street Elementary, or Other Considered Sites. Existing space constraints at Trinity Street Elementary and Other Considered Sites have already substantially impacted Trinity Street Elementary and Other Considered Sites' students, teachers, staff, and administrators. Provision of any additional classroom space to Charter School in the Next Fiscal Year would further exacerbate the negative harmful impacts to such a point that it would be impossible for all of the students to share space fairly and receive a proper education. It would also result in increased emotional hardship and

further loss of morale in students, teachers, staff, and administrators alike.

41. To accommodate Charter School's entire in-district classroom ADA at Trinity Street Elementary or Other Considered Sites would also present substantial safety concerns for both charter and non-charter District students. By way of example, District staff estimated that to accommodate all of Charter School's students at Trinity Street Elementary or Other Considered Sites would require the forcible displacement of a significant number of students attending Trinity Street Elementary or Other Considered Sites. Displacing students out of Trinity Street Elementary, or Other Considered Sites would have far-reaching safety, instructional, and social implications.

42. For instance, many Trinity Street Elementary and Other Considered Sites students walk to and from their school. Recent District budgetary cutbacks and the harsh economic climate have made the ability to walk to school a necessity for many families with in-district children. The District school bus program has realized service cuts and route eliminations which have affected many students. As a result of past budget deficits, transportation funding was reduced as part of stabilization efforts. The latest impact came in July 2012, when the District was forced to implement a change to the eligible busing distance for secondary schools from three miles to five miles. These cuts disproportionately affect poorer students and make the ability to walk to school even more crucial.

43. Not only is the ability to walk to school at Trinity Street Elementary and Other Considered Sites a necessity for some students, but walking to school also provides key health benefits. According to the California Department of Public Health ("DPH"), close to one-third of California's children are overweight or obese. The DPH's California Active Communities ("CAC"), in collaboration with CA4Health (a project of the Public Health Institute, with funding from the Centers for Disease Control and Prevention) has determined that a child's overall health is affected by levels of physical inactivity which can be directly linked to time spent in automobiles versus in active transportation such as walking. Walking or biking to school provides an opportunity for purposeful physical activity toward the accumulation of the recommended 60

minutes or more of daily physical activity for children and youth. (Martin, Moeti and Pullen-Seufert, *Implementing Safe Routes to School: Application for the Socioecological Model and Issues to Consider* (2008).) Active transportation – such as walking and biking – to school can help increase physical activity levels of students and their families. (ChangeLabSolutions, *Incorporating Safe Routes to School into Local School Wellness Policies* (July 2015).) Physical activity reduces the risk of obesity and related chronic diseases, and improves mental health, attendance, and academic performance. (*Ibid.*) Active transportation can also have broad community benefits, including reducing traffic congestion and air pollution, creating safer streets, encouraging cost savings, and building a stronger sense of community. (*Ibid.*) Increasing physical activity through walking and biking to school can help address high obesity rates. (*Ibid.*)

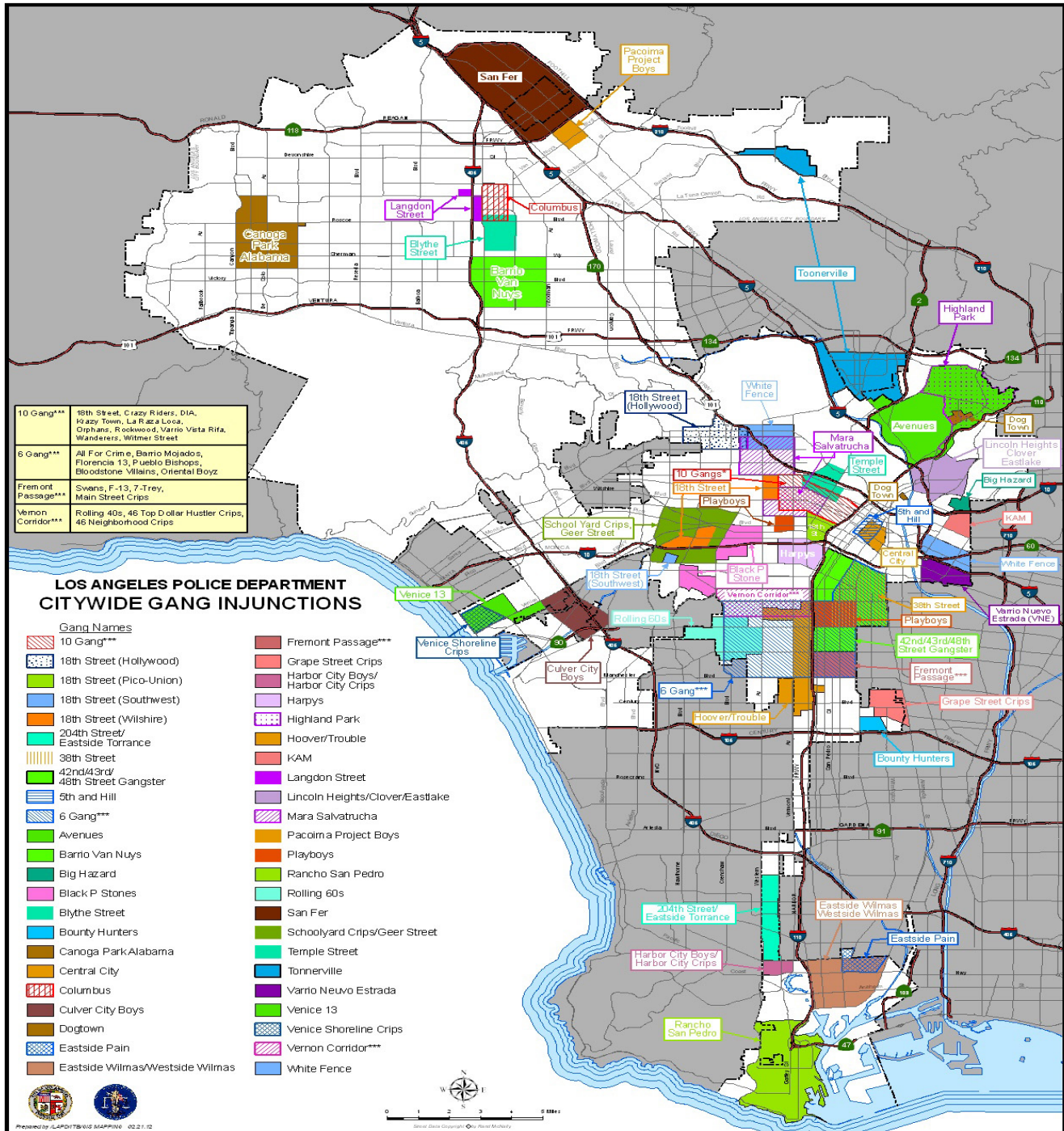
44. Empirical studies have determined that distance is a key impediment to children walking to school safely. (Martin, Moeti and Pullen-Seufert, *Implementing Safe Routes to School: Application for the Socioecological Model and Issues to Consider* (2008).) A study published in the *Journal of Public Health Policy* examines the multi-level correlates of walking to and from school. Of the physical environmental factors examined, the strongest negative correlates to walking to school were distance and safety concerns. (Zhu & Lee, *Correlates of Walking to School and Implications for Public Policies*, *Journal of Public Health Policy* (2009).) Recognizing distance as a barrier to the ability for a child to walk to school, CA4Health, the CAC, and the DPH support school siting as well as joint use policies and practices that encourage kids to walk or bike to school.

45. Displacing a significant number of students from Trinity Street Elementary or Other Considered Sites to make additional room for Charter School would prevent a significant number of the children who currently have the ability to safely walk to school from being able to do so. Conversely, Charter School draws its attendance from 18 different District schools. Therefore, providing a single-site offer at Trinity Street Elementary or Other Considered Sites to Charter School would endanger a significant number of children currently attending their nearby school.

Moreover, the forcible displacements would not just be limited to the children attending Trinity Street Elementary or Other Considered Sites. Instead, those students would need to be absorbed into other District schools which may have insufficient space, programs and/or resources to house the influx of students, and would thereby cause the additional forcible displacement of children from these absorbing schools. This would create a ripple effect of forcible displacements necessitating hundreds of children to relocate for the benefit of a far lesser number of Charter School's children. Such a decision would pose disproportionate harm to a significant number of students attending school at Trinity Street Elementary, Other Considered Sites, and to those District students displaced by the influx of these students, and thus produce inequity in the sharing of facilities.

46. Not only does distance play a factor in children safely walking to school due to traffic dangers, but several Los Angeles neighborhoods are plagued by gang violence. In order to create safe passages to and from school in neighborhoods suffering from gang-related violence, meaningful programs and efforts to mitigate these risks have been launched, such as Kid Watch LA which instituted the Walking School Bus for District students. The Walking School Bus enlists parent and community volunteers to accompany groups of small children as they walk to and from their school.

47. According to the Los Angeles Police Department, the District is located within the territory known as the “gang capital” of the nation, with more than 450 competing gangs. Gang violence is unfortunately prevalent on some campuses and within the neighborhoods of several District schools. As shown by the map depicting former gang injunctions in Los Angeles below, Los Angeles gangs claim particular territories:



48. On March 15, 2018, the City of Los Angeles was enjoined from enforcing these gang injunctions. (See, *Youth Justice Coalition, et al., v. City of Los Angeles, et al.*, CV 16-07932 VAP.) The inability to enforce these injunctions may result in an increase in gang-related activity and crime.

49. Involuntarily displacing students who themselves or whose parents are tied to a particular gang and placing them in a different school located in the territory of another gang would potentially breed gang warfare and violence affecting all children, teachers, staff, and parents at a particular school.

50. Pulling children out of their District schools and placing charter students at those school sites prevents the displaced children from taking advantage of safety measures such as the Walking School Bus and other relevant considerations their families have made, and therefore unfairly endangers the safety of those displaced children. These harms disproportionately affect students attending District schools. As parents of charter school students have elected to send their child to a school outside of his or her local attendance area, the parents have secured a means of transporting their child to this school. However, parents of children who attend District schools may not have the means to find alternate transportation and need to rely on children walking to their school. With the aforementioned reduction of several school bus routes and potential further elimination of transportation funding, many forcibly displaced children will be forced to walk long, unsafe distances or take unsafe public transit routes.

51. Displacing children attending Trinity Street Elementary or Other Considered Sites for the purpose of making a single-site offer to Charter School would have additional instructional and social ramifications. California has an accountability system reported through the California School Dashboard. The state's accountability system includes a three-level identification and support system for local educational agencies, and categorizes district performance levels using a system of five status levels (ranging from Very High, High, Medium, Low and Very Low). The 2022 Dashboard showed the District was assigned a Medium Status level for two of the six state indicators based on the performance of all student groups: English Learner Progress and Graduate Rate indicators. A Low status level was assigned to English Language Arts ("ELA") and Mathematics, and a Very Low status level for Suspension Rate. The District received one Very High-status level for Chronic Absenteeism. Of the thirteen student groups reported, four were in

the Very Low status level, five in Low, three in High, and one in Very High. For the 2023 Dashboard, District performance levels were categorized using a system of five colors, stated in order from lowest to highest performing (Red, Orange, Yellow, Green, and Blue), except in the College/Career Indicator. The 2023 Dashboard results indicate that the District received an Orange performance level for English Learner Progress, Graduation Rate, and English Language Arts (Academic Indicator). The District also received a Yellow performance level for Chronic Absenteeism and Mathematics (Academic Indicator). Though the District received a Yellow indicator for Chronic Absenteeism, it is important to note that the District decreased its chronic absenteeism by 8.8-percentage points to 31% from 39.8% in 2022. In addition, the District received a Blue performance level for its Suspension Rate, and a Medium status level for the College/Career Indicator. In examining the performance of the thirteen student groups, the Dashboard indicates that no student received a Red performance level for Chronic Absenteeism. Among the other indicators, only three of thirteen student groups received at least one Red performance Level. In contrast, twelve student groups received at least one Blue performance level.

52. The District is continuing its efforts to improve performance in all state indicators. Displacing District children attending their District school at Trinity Street Elementary or Other Considered Sites would thwart these efforts, and have instructional and social ramifications. Studies have empirically established that disrupting a child's trajectory to his or her district high school effectively increases drop-out rates. A review of 25 years of research conducted by the California Dropout Research Project identified strong predictors of dropping out of high school. The compilation study identified non-promotional school changes (student mobility) during middle school and high school as a key predictor of a child dropping out of school. (Rumberger & Lim, *Why Students Drop Out: A Review of 25 Years of Research*, California Dropout Research Project (October 2008).)

53. In 1998, a seminal study on the educational consequences of student mobility found a high causal connection between student mobility and an increased risk of high school drop-out. The staggering results of this study indicate that controlling for other predictors, students who made even one non-promotional school change between the eighth and twelfth grades were twice as likely to not complete high school as students who did not change schools. (Rumberger & Larson, *Student Mobility and the Increased Risk of High School Dropout*, American Journal of Education 107 (November 1998).)

54. The safety and welfare of all students is the District's paramount concern and principal charge. The data is indisputable that children who drop out of school are at far greater risk of a vast array of physical, social, and economic harm than those who stay in school and complete their secondary education. This paramount concern of the District remains a material consideration when weighing whether to forcibly displace children from their existing school (such as Trinity Street Elementary or Other Considered Sites) in order to make way for students who would attend school at that site (such as Charter School) from distant neighborhoods, especially when other solutions for sharing space fairly are feasible.

55. An additional impact of such displacement would be the difficulty of sustaining the same level of parental involvement in the absorbing schools. California State Board of Education Policy #89-01 acknowledges that a critical dimension of effective schooling is parental involvement. This policy initiative states that research studies demonstrate parental involvement at school propels a child's educational career. Forcibly displacing students attending Trinity Street Elementary or Other Considered Sites would make it more challenging for those children to reap the benefits of parental involvement in their new schools.

56. An alternative to displacing students attending Trinity Street Elementary or Other Considered Sites would be to overcrowd the site by adding more of Charter School's students. However, this would cause severe safety and operational ramifications due to the design capacity of the Trinity Street Elementary site or Other Considered Sites, making this course of action

infeasible. Adding Charter School's students to the Trinity Street Elementary site, Other Considered Sites, or any other District campus with insufficient space to feasibly accommodate Charter School's total in-district classroom ADA would raise both schools' classroom loading ratios, thereby disadvantaging both of these schools' children. Likewise, having children over a school site's capacity sharing space would pose a great risk to student safety and well-being.

57. In making decisions regarding allocations of space, District staff placed the safety of students attending Charter School, Trinity Street Elementary, Other Considered Sites, and other charter and District schools at the forefront of the decision-making process. District staff made substantial efforts to locate charter schools, including Charter School, at or near their desired geographic location and further made material efforts to minimize the number of sites on which each charter school was located. As Charter School's parents/guardians have made a decision to place their child in a school outside of their District school, they have had the opportunity to weigh the safety implications of this decision for their child. On the contrary, the families of forcibly displaced students would have no place in such a decision-making process. Thus, forcibly displacing children from Trinity Street Elementary, Other Considered Sites, and/or other impacted District schools would not afford their parents/guardians the same opportunity. In addition, the decision to forcibly displace students to make way for Charter School students necessarily will have safety impacts upon the displaced children, whereas, given the fact that many Charter School students already voluntarily travel to attend Charter School, these children may not face any increased safety risk by being required to, for example, travel five miles east instead of five miles south.

58. Based on the foregoing, the District determined that it was simply not feasible to provide Charter School with a single-site offer at Trinity Street Elementary or Other Considered Sites for the Next Fiscal Year.

59. While it is always the District's goal to accommodate a charter school's entire program on a single District school site, sometimes charter schools must be offered space on more

than one site, particularly if, as in the case of Charter School, the charter school has a large projected in-district classroom ADA. Because only a total of 14 spaces (11 teaching stations, 2 special education spaces, and one administrative office space) could be provided to Charter School at Trinity Street Elementary, a portion of Charter School's in-district classroom ADA would need to be accommodated at one or more additional site(s). Therefore, in order to ensure a sufficient allocation of special education and administrative office spaces are provided to Charter School at each District school site, the District has identified 13 classrooms (10 instructional spaces, 2 special education spaces, and one administrative office space) at one or more additional District school site(s).

60. Although it would be preferable to accommodate Charter School's entire program at the Trinity Street Elementary site or Other Considered Sites for the Next Fiscal Year, for the reasons set forth herein it is not possible to provide Charter School with 24 classrooms at the Trinity Street Elementary site or Other Considered Sites without presenting significant, safety, educational, scheduling, facilities, and operational challenges. The West Vernon Avenue Elementary site is within Region East and Board District 5, and is located 0.9 miles from the Trinity Street Elementary site according to Google Maps. Additionally, Charter School is currently occupying space at both Trinity Street Elementary and West Vernon Avenue Elementary, and expressly requested to remain at both of these sites if it could not be accommodated entirely on a single site at or within a 1.25-mile radius of Trinity Elementary School. Considering that the District spans over 710 square miles and serves over 27 cities, and based on the plain language of California Code of Regulations, title 5, section 11969.2, subdivision (d), the West Vernon Avenue Elementary site is "contiguous" with the Trinity Street Elementary site.

61. Based on all of the foregoing considerations, District staff recommends providing Charter School with a multi-site offer of contiguous facilities at the Recommended Co-Locations.

ATTACHMENT 6(b): GABRIELLA CHARTER SCHOOL 2**Board of Education Finding that Gabriella Charter School 2 Cannot Be Accommodated at a Single Site and Written Statement of Reasons Explaining the Finding (Cal. Code Regs., tit. 5, § 11969.2, subd. (d))**

Whereas, Under Proposition 39, the Los Angeles Unified School District (“District”) is required to fairly share space between public school pupils, charter and non-charter students alike;

Whereas, In making an allocation of space, the District attempts to place a charter school applicant on one school site or, when that is not feasible, alternatively attempts to minimize the number of school sites on which the charter school applicant is placed;

Whereas, In making an allocation of space, the District materially considers the safety implications to charter and District school students of making a multi-site offer, and balances the safety, instructional, and social consequences of displacing children from their District schools, as well as the burdens associated with such an action on their parents and the community;

Whereas, For the Next Fiscal Year, 46 charter schools requested facilities under the Proposition 39 process, asking for approximately 13,110 seats from the District;

Whereas, Charter School submitted an application for Proposition 39 facilities for the Next Fiscal Year;

Whereas, The Board hereby incorporates by reference the entire Staff Report on the Deliberative Process for Determining Why Charter School Cannot be Accommodated at a Single Site for the Next Fiscal Year;

Whereas, District staff engaged in an effort to create a single-site offer to accommodate Charter School’s total in-district classroom ADA;

Whereas, The District cannot accommodate Charter School’s request for a single site at any of the District school site(s) and/or in the geographic area in which Charter School wishes to locate;

Whereas, 9 different charter schools (including Charter School) requested space in Region East for the Next Fiscal Year;

Whereas, District staff determined that Trinity Street Elementary (the District school site or general geographic area in which Charter School wishes to be located) will not have sufficient classroom space to accommodate Charter School’s entire projected in-district classroom ADA in the Next Fiscal Year;

Whereas, District staff then expanded its search to additional District schools near to the Trinity Street Elementary site, but determined that it is not possible to accommodate Charter School’s entire student population on a single site in the Next Fiscal Year;

Whereas, The District cannot accommodate Charter School's entire in-district classroom ADA at a single school site;

Whereas, To accommodate Charter School's entire in-district classroom ADA at Trinity Street Elementary or any other single District school site would present substantial, disproportionate safety concerns for both Charter School's students and students attending their District school;

Whereas, To accommodate all of Charter School's students at Trinity Street Elementary would require the displacement of a significant number of children attending Trinity Street Elementary, and potentially additional District schools;

Whereas, Involuntarily displacing children out of their existing District schools has far-reaching safety, instructional, and social implications including: prohibiting children from safely walking to school; subjecting children to possible gang violence; increasing high-school drop-out rates; and impairing parental involvement in their children's schools;

Whereas, Based on these safety and instructional considerations, District staff recommends keeping the student populations of Trinity Street Elementary and other District schools intact;

Whereas, Alternatively, over-crowding a school's campus in order to provide a single-site offer to Charter School would have equally severe safety and operational ramifications, making this course of action infeasible;

Whereas, The District can provide Charter School with a multi-site contiguous offer of reasonably equivalent facilities at the "Recommended Co-Locations";

Whereas, Providing Charter School space at the Recommended Co-Locations minimizes the number of sites assigned to Charter School;

Whereas, Because of the short distance between the Recommended Co-Locations in a school district spanning 710 square miles and serving over 27 cities, the Recommended Co-Locations, they are contiguous facilities;

Whereas, By providing space to Charter School at the Recommended Co-Locations, the District has made reasonable efforts to provide Charter School with facilities near to where Charter School wishes to locate; and

Whereas, The District can make a complete and contiguous, multi-site offer to accommodate Charter School's entire in-district classroom ADA; therefore be it

Resolved, That pursuant to California Code of Regulations, title 5, section 11969.2, subdivision (d), for the reasons set forth herein and as further expressed by District staff, the Governing Board of the Los Angeles Unified School District finds that the District cannot accommodate Charter School at a single school site; and therefore be it finally

Resolved, That pursuant to Education Code sections 35160-35160.1 and 47614, and California Code of Regulations, title 5, section 11969.1, et seq., for the reasons set forth herein and as further expressed by District staff, the Governing Board of the Los Angeles Unified School District authorizes a preliminary proposal and final offer of facilities to Charter School for the Next Fiscal Year at multiple District school sites.

ATTACHMENT 7(a): INGENIUM CHARTER MIDDLE SCHOOL**Staff Report on Deliberative Process for Determining Why Ingenium Charter Middle School
Cannot be Accommodated at a Single Site****Charter School's Facilities Request**

1. On or before November 1, 2023, Ingenium Charter Middle School ("Charter School") submitted a Proposition 39 Online Facilities Request Form ("Facilities Request") to the District, requesting use of District facilities for a projected in-district classroom average daily attendance ("ADA") of 163.76 in grades 6-8 for the 2024-25 school year ("Next Fiscal Year"). Charter School identified 12 different District schools that its charter school students would otherwise attend. Charter School's Facilities Request was one of 46 that the District received for the Next Fiscal Year. Charter School requested facilities at John A. Sutter Middle School. Charter School is currently operating at John A. Sutter Middle School.

2. District staff reviewed information provided in support of Charter School's ADA projections and determined that a reasonable in-district classroom ADA projection for Charter School is 163.76.

3. Education Code section 47614, subdivision (b) requires the District to provide charter schools with facilities sufficient for the charter school to accommodate all of its in-district students in conditions "reasonably equivalent" to those in which the students would be accommodated if they were attending other public schools of the district.

4. To determine whether the conditions of facilities provided to a charter school are "reasonably equivalent" to the school district facilities that charter school students would otherwise attend, the District adheres to the Proposition 39 implementing regulations (California Code of Regulations, title 5, section 11969.1, et seq.) which direct school districts to measure those facilities against the facilities used by district students at a "comparison group" of schools. As the District is divided into high school attendance areas, in selecting comparison group schools, the

District must follow California Code of Regulations, title 5, section 11969.3, subdivision (a)(2), which states, “[t]he comparison group shall be the district-operated schools with similar grade levels that serve students living in the high school attendance area... in which the largest number of students of the charter school reside.” District staff reviewed Charter School’s projected in-district classroom ADA broken down by grade level and its identification of the 12 different District schools its projected charter school students would otherwise attend. Based on the information provided by Charter School, District staff determined that the attendance area where the largest number of Charter School’s projected students reside is the Canoga Park Senior High attendance area. Consequently, based on the grade levels that Charter School projects it will serve, District staff identified the following as the District-operated schools with similar grade levels that serve students within the Canoga Park Senior High attendance area; i.e., Charter School’s comparison group schools: Canoga Park Middle School.

5. The District also follows California Code of Regulations, title 5, section 11969.3, subdivision (b)(1), which requires that the facilities made available by a school district to a charter school shall be provided in the same ratio of teaching stations (classrooms) to ADA as those provided to students in the district attending comparison group schools. To implement a fair sharing of space, the District determines the ratio of ADA-to-classrooms provided for each of the charter school’s comparison group schools and uses an average of those figures to determine the number of classrooms to provide to the charter school. It also results in the District allocating classroom space sufficient to allow a charter school to maintain the same minimum number of seats in a classroom as maintained in the District’s comparison group schools, that is, to maintain conditions reasonably equivalent to the comparison group schools as required by Proposition 39. In other words, it results in accommodating charter school students on District school sites as they would be accommodated if they otherwise attended those District schools. Consequently, this calculation is used to ensure the number of classrooms provided to charter schools is equivalent to the number of classrooms provided at their comparison group schools.

6. Relying upon an in-district classroom ADA projection of 163.76 for the Next Fiscal Year, and an average ADA-to-classrooms provided ratio at the comparison group schools of 20.56, the District determined that Charter School is entitled to 8 teaching stations (classrooms) and one classroom space to be used as its administrative office. The District also determined that Charter School is entitled to 2 special education classroom(s).

7. Charter School's facilities request states: "More than 80% of ICMS families live within a three-mile radius of its current location at Sutter MS, and many of the students walk or take public transportation to school. Thus, it is particularly imperative to the ICMS community to continue to be located on the site of Sutter MS."

8. Based on the foregoing, if the in-district classroom ADA of Charter School cannot be accommodated entirely at John A. Sutter Middle School in the Next Fiscal Year, District staff recommends allocating Charter School facilities at John A. Sutter Middle School and additional school site(s).

9. Education Code section 47614, subdivision (b), provides that facilities provided to a charter school by a school district must be, among other things, "contiguous." The definition of "contiguous" expressed in California Code of Regulations, title 5, section 11969.2, subdivision (d), states that facilities are "contiguous" if they are contained on the school site or immediately adjacent to the school site, and that if the in-district classroom ADA of a charter school cannot be accommodated on any single school district school site, contiguous facilities also includes facilities located at more than one site, provided that the school district shall minimize the number of sites assigned and shall consider student safety. As explained below, pursuant to Proposition 39, District staff first engaged in an effort to create a single-site offer to accommodate Charter School's projected total in-district classroom ADA in the Next Fiscal Year at John A. Sutter Middle School. District staff evaluated space at John A. Sutter Middle School (the District school site at which Charter School wishes to locate) and determined that John A. Sutter Middle School will not have sufficient classroom space to accommodate Charter School's total in-district classroom ADA in

the Next Fiscal Year. Rather than attempt to locate Charter School on a single site different from the requested site, pursuant to Education Code section 47614, District staff engaged in an effort to satisfy Charter School's request and provide a multi-site allocation of contiguous facilities.

10. Therefore, District staff recommends providing space at the following locations to Charter School to accommodate its total in-district classroom ADA for the Next Fiscal Year: John A. Sutter Middle School and Woodland Hills Academy (collectively, the "Recommended Co-Locations"). By providing space to Charter School at the Recommended Co-Locations, the District has made reasonable efforts to provide Charter School with facilities near to where Charter School wishes to locate and to minimize the number of sites assigned to Charter School.

Process District Staff Followed to Locate Space for Charter School Pursuant to Proposition 39

11. The District's Charter Schools Division ("CSD") determined that in the 2023-24 school year, more than 148,194 students enrolled in charter schools authorized by the District. This figure reflects a 1,865 student decrease compared to the number of students enrolled during the previous school year. In the 2023-24 school year, the District had the most charter students attending schools authorized by a District of any school district in the nation. The District ensured that every eligible in-district charter student was offered a seat.

12. For the 2024-25 Proposition 39 cycle, the District is applying a comprehensive process to ensure that every eligible in-district charter school student is offered a seat at a District campus. The District is following a critical schedule of steps, from receiving the initial request for facilities by a charter school to making facilities ready for occupancy, in order to timely meet the Proposition 39 timeline. The general process District staff is following in administering Charter School's Facilities Request is the same that it used to process each of the other facilities requests the District received from charter schools for the Next Fiscal Year. That process is as follows:

13. Beginning in September 2023, School Management Services and Master Planning & Demographics ("SMS-MPD") staff, which includes District personnel in the District's Facilities

Services Division experienced in public school facilities utilization that assess all of the educational space within the District, conducted a comprehensive analysis of the use of District classrooms school facilities, called E-CAR. E-CAR was implemented at the beginning of the Proposition 39 process to assess capacity at school sites throughout the District, and commenced with a preparation period during which SMS-MPD staff examined materials submitted by all District schools in the previous year for accuracy, as well as for consistency with previous assessments' classroom usage and availability determinations. The SMS-MPD staff applied standard formulae for the usage of classrooms in order to generate an objective and uniform assessment of the amount of total classroom space at District school sites. The purpose of this calculus is to assess the number of classrooms required to accommodate instructional program enrollment, based on grade level and specific course subject matters at secondary schools.

14. Next, the E-CAR process involves District school principals at more than 700 District school sites logging into an online application to validate their school's enrollment and to review and confirm details regarding the school site's classrooms and their respective utilization. Specifically, the principals identified and validated classroom space utilized as teaching stations and "set-asides" (classrooms used for purposes other than general education), along with classroom numbers, locations, and sizes. Additionally, the principals identified classrooms occupied by special education programs, charter schools, preschools, alternative education programs, option programs, and other third-party users, as well as swing space needed for construction projects, and classrooms that are out of service or mandated for removal due to legal and/or safety/physical condition requirements. The purpose of E-CAR is to accurately assess the current capacity of each District school site in several respects: the number and size of classrooms, the manner in which those classrooms are currently used, and the school's operating capacity. E-CAR entails a detailed review of the present use of District school sites and an analysis of the projected future uses of those facilities. The analysis includes reporting of data by individual

schools, which is reviewed by SMS-MPD staff to confirm its accuracy and to ensure that space is used efficiently and uniformly throughout the District.

15. To ensure that District school administrators are provided the resources necessary for a complete and accurate assessment of their school's capacity, they were instructed to reference the following resource materials for their school site: A current school map; the school's former or most recent Norm Day classification report (which details the number of students enrolled at that school on September 15, 2023); the Norm Day classification report for any magnet centers and/or dual language programs located on the school site; the Classroom Inventory and Allocation Worksheet pages from the prior school year's Capacity Assessment Review report, which contains information for classroom counts and allocations into precisely-defined categories; and the number of teaching positions in all categories, including general education, special day, magnet, dual-language, physical education, and off-norm-funded positions.

16. Categorizing classrooms in this way is important because a school's capacity involves more than its raw seats and room numbers. The District must determine whether a school site has facilities available to sufficiently serve the particular requirements of a school, such as grade levels, special education programs, magnet centers, Small Learning Communities, Personalized Learning Environments, legal mandates, and other student needs.

17. District staff reviewed the foregoing data regarding specific capacity information at District school sites for the Next Fiscal Year. Utilizing this data, SMS-MPD provided CSD with the number of estimated available classrooms, at each District school site given specific operating capacities per programmatic and mandated qualifiers. When planning for maximal use of available school facilities, and in interpreting data generated during the course of facilities planning, it is absolutely critical to understand the difference between "unallocated classrooms" and "available seats." To illustrate, a hypothetical District school may not have any unallocated classrooms but may have individual available seats in classrooms currently occupied. As a result, the school may be able to absorb 100 students into its existing classrooms by identifying two free seats spread out

among 50 of its classrooms that are used for instruction appropriate to the grade level and subject matter requirements for the students being absorbed. Thus, it is an entirely different proposition to provide and integrate 100 seats across a campus than to provide four or five unallocated classrooms with the same total number of contiguous available seats. In many instances, there may be many available seats in a school, but no unallocated classrooms. This is especially the case for District middle and high schools where the students do not sit in one classroom all day, like an elementary school, but instead attend four or more different classes per day, each in different classrooms and with different teachers and groups of students, in order to receive the mandated curriculum.

18. SMS-MPD generated each instructional program's operating capacity using a complex mathematical formula which took into account all aspects of the schools' operations. The operating capacity also accounted for classrooms designated as "set asides." Public school districts are required to provide special education space, and a parent center at each school which is classified as a set-aside. Also, pre-kindergarten and adult education students are served in classrooms at school sites across the District.

19. District staff analyzed each District school's estimated available seats and classrooms for the Next Fiscal Year based on the data.

20. As a public institution, the District is required to provide an education to every student who chooses to enroll. The District previously planned its programming and staffing based on estimated enrollment projections, but in the event projections were short, the District was still obligated to provide an education to students who were not originally anticipated. As a safeguard against the overcrowding of classrooms in such situations, the District historically prepared to reserve 75 seats at every secondary school and 50 seats at every elementary school for additional unanticipated enrollment. Importantly, however, beginning in 2013 and continuing this year, District staff examined the actual historical enrollment data over the last several years at each school site to determine if a trend could be empirically established demonstrating unanticipated

growth. Based upon this analysis, the District determined that no seats at any District school sites offered to a charter school should be reserved for unanticipated growth.

21. The District uses the definition contained in California Code of Regulations, title 5, section 11969.3, subdivision (a)(2) to determine comparison group schools. No two schools are identical; however, on a grade-alike basis, a significant majority of the District's schools share reasonably equivalent conditions, especially when taking into account age, quality of materials and state of maintenance, school site size, conditions of surfaces as well as mechanical, plumbing, electrical and fire-life systems, including conformity to applicable codes, availability and condition of technology infrastructure, the condition of the facility as a safe learning environment, including, but not limited to, the suitability of lighting, noise mitigation, and size for intended use, the conditions of the facility's furnishings and equipment, and the condition of athletic fields and play area space. As part of this process, District staff determined whether the conditions of school facilities offered to a charter school were reasonably equivalent to those of the comparison group schools.

Matching Guidelines Utilized by the District for Charter School

22. In accordance with applicable law, the District is guided by the following matching guidelines in order to make contiguous offers of space to charter schools in facilities with reasonably equivalent conditions to those which would accommodate the charter students if they otherwise attended District schools:

- Consider student safety and welfare
- Identify reasonably equivalent facilities
- Minimize the number of sites assigned
- Make reasonable efforts to provide facilities near to where the charter school wishes to locate
- Avoid moving a charter school unnecessarily
- Minimize disruption to District and charter programs
- Fairly balance the needs of District and charter programs
- Avoid displacing any District students from their school of attendance
- Maximize use of unallocated classroom space (i.e., those with no designated use and would be vacant/unassigned in a particular fiscal year, as identified in the District's annual comprehensive analysis of space on District school sites. Classrooms used

to provide additional programming or services are not considered unallocated classroom space, and are categorized according to their specific designation).

23. District staff makes every reasonable effort to locate space on a single site, or on multiple sites only if necessary or specifically requested by the charter school, in the charter school applicant's geographic area of interest. Consequently, District staff first attempts to accommodate charter schools at a single school site and looks for available facilities sufficient to accommodate the entirety of a charter school's projected in-district classroom ADA within its desired area of geographic interest. Only when no single school site can be feasibly identified based upon school site design and occupancy limitations, as well as after taking into account the paramount considerations of both District and charter school student safety and welfare, does the District make offers that contemplate the use of multiple school sites.

24. District staff first identifies the classroom inventory by grade level configuration in each geographic region. Grade-alike matches typically provide reasonably equivalent space to charter schools; therefore, wherever possible, District staff allocates space to charter applicants on grade-alike school facilities.

25. District staff next identifies which charter school applicants are currently located in District facilities that they have identified in their geographic area of interest for the following Proposition 39 cycle and, when feasible, matches those charter schools to those school sites. District staff then examines and identifies the geographic areas of interest of other charter school applicants. As described above, multiple charter schools often request space in the exact same location so District staff must assess conflicting geographic as well as particular site interests. In doing so, District staff examines whether the potential match would utilize all available classrooms and whether the match represents a full, single-site offer. Priority is given to those charters where these two goals can be achieved.

26. Based on an examination of these criteria, District staff makes a preliminary match of available classrooms at a particular site to the projected in-district classroom ADA of each charter school. District staff attempts to find the most geographically relevant grade-alike matches.

District staff seeks to minimize disruption to and fairly balance the needs of District and charter programs. For multi-site scenarios, District staff eliminates set-asides whenever reasonably possible to reduce the number of sites assigned to a charter school, which often results in being able to transform multi-site offers to single-site offers. While endeavoring to preserve programmatic spaces essential to enriching instruction and student health and human services, District staff may need to engage in the materially disruptive measure of eliminating or otherwise impacting set-asides used to provide services at District schools in order to share space fairly among charter and non-charter students in the District. Set-asides are divided into two categories: District set-asides and School set-asides.

27. School set-asides allocate space for instructional, safety, and health programs that are specific to a particular school. For example, Title I funding coordinator offices are considered School set-asides. Title I funding provides financial assistance to schools with high numbers or high percentages of low-income children to help ensure that all children meet challenging state academic standards. The District uses Title I funds to provide additional academic support and learning opportunities to help low-achieving children master challenging curricula and meet state standards in core academic subjects. Such funds support extra instruction in reading and mathematics, as well as special preschool, after-school, and summer programs to extend and reinforce the regular school curriculum. Additionally, School set-asides are used to allocate space for small learning community (“SLC”) offices. An SLC, also referred to as a School-Within-A-School, is a form of school structure in secondary schools to subdivide large school populations into smaller, autonomous groups of students and teachers. SLCs include structures such as freshman academies, multi-grade academies organized around career interests or other themes, “houses” in which small groups of students remain together throughout high school, and autonomous schools-within-a-school, as well as personalization strategies, such as student advisories, family advocate systems, and mentoring programs. Research continues to show that small schools and SLCs have the necessary elements to counteract the inherent negative effects of

poverty and poor academic achievement for low-income students and/or students of color. (Cotton, *New Small Learning Communities: Findings from Recent Literature*, Portland, Ore: Northwest Regional Educational Laboratory (2001); Jimerson, *The Hobbit Effect: Why Small Works in Public Schools*, The Rural School and Community Trust (August 2006).)

28. At the middle school level, School set-asides are used, for example, for Personal Learning Environment (“PLE”) offices, the middle school equivalent to an SLC. Likewise, School set-asides may be used for the District’s Response to Instruction and Intervention (“RTI²”) program. RTI² integrates assessment and intervention within a multi-level prevention system to maximize student achievement and to reduce behavior problems. With RTI², schools identify students at risk for poor learning outcomes, monitor student progress, provide evidence-based interventions and adjust the intensity and nature of those interventions depending on a student’s responsiveness, and identify students with learning disabilities or other disabilities. In order to provide space to charter schools requesting Proposition 39 facilities, District staff has eliminated or reduced the number of School set-asides on certain campuses. This instructional disruption unfortunately disproportionately affects low-income, low-performing, or disabled District neighborhood children, those who need assistance the most. However, District staff has taken these disruptive measures in order to share facilities fairly with charter schools.

29. District set-asides use school space to implement key District-wide instructional, health, and safety programs. For example, these set-asides include space for District police, regional special educational testing centers, health center clinics, food service, and Beyond the Bell programs, among others. Eliminating these set-asides would deny or interfere with students’ ability to receive the special education and related services to which they are entitled, or force students to travel as much as 50 miles to the next closest center. In the 2023-24 fiscal year, the District’s school-based health clinics are projected to provide approximately 156,000 visits to children who would otherwise have been challenged to access health care. The demand for health services remains as high as it did in the previous school year, and to eliminate these clinics would

deprive the neediest children of vital services. Additionally, Beyond the Bell programs ensure that all children and youth in the District have access to high-quality, safe, and supervised academic, enrichment, and recreation programs that inspire learning and achievement beyond the regular school day (before and after school and Saturdays). The three components of Beyond the Bell include academic tutorial, recreational, and enrichment programs vital to the safety and wellbeing of school children. Improved school attendance and test scores have been attributed to student participation in Beyond the Bell's after-school programs. By providing supervision and engagement during after school hours when many parents may be working outside the home, Beyond the Bell's programs help reduce the risk that children might engage in drug or alcohol use, sexual activity, and/or crime. To eliminate Beyond the Bell programs would expose the thousands of children who utilize these programs on a daily basis to danger, harming their academic performance and their overall wellbeing.

30. Although District and School set-asides provide space for programs that are vital to the curriculum of a particular school or to District-wide goals, in order to share space fairly, District staff has cut into these set-asides where doing so would minimize the number of sites offered to a charter school in order to make a complete offer of space.

31. For the Next Fiscal Year, District staff had to grapple with the conflicting needs of 46 different charter school applicants and cycled through its comprehensive space matching process as conscientiously as possible, shifting space and potential matches to fulfill the District's obligation to share space fairly among all students – charter school students and those students attending District schools alike. In doing so, District staff kept in the forefront considerations of student safety and welfare.

32. Often, many charter schools request to be located at the same school site, requiring District staff to assess conflicting geographic as well as particular site interests. In fact, 13 different charter schools (including Charter School) requested space in Region North for the Next Fiscal Year. District staff had to contend with the conflicting needs of these 13 charter schools, as well

as all 46 eligible charter school applicants, shifting space and potential matches to fulfill the District's obligation to share space fairly among all in-district students. The process is extraordinarily dynamic with a complex set of ever-changing pieces, decisions regarding any one of which can result in very real ripple effects for students and programs across multiple school sites.

33. The District's space matching guidelines are just that – guidelines. They cannot be applied in a vacuum and without rationale. In allocating space to charter schools, the District must consider the impact on other public school students, both those attending District schools and those attending other charter schools requesting space. District staff applied the District's matching guidelines in conjunction with thoughtful considerations of the real world impacts on all public students in providing co-location offers to charter schools for the Next Fiscal Year.

34. The District began its space analysis for Charter School by examining data from E-CAR for John A. Sutter Middle School related to the 2024-25 school year. As explained above, the E-CAR enrollment for John A. Sutter Middle School is reflected in classroom usage as of September 15, 2023, which is known as "Norm Day." The E-CAR data is a "snapshot in time" that reflects classroom availability and usage at a particular school site at the time it is prepared. It is the baseline for the District's comprehensive space analysis of the current and projected utilization and availability of space for a charter school. It does not contemplate any prospective future revisions or factor in projected classroom usage for any subsequent school year, or changes in space utilization needs that occur after the E-CAR data is prepared, such as, for example, increases or decreases in the District school site's enrollment projections for the upcoming school year, planned programmatic expansions, adjustments to ADA-to-classrooms ratios and/or assigned teachers, changes to grade levels served, construction projects, removal of portable classrooms, charter schools' potentially forthcoming Proposition 39 facilities requests, the planned occupancy by other charter schools or District programs, or any other factor that would result in an adjustment of the number of available classrooms for the Next Fiscal Year. E-CAR data indicated 0

unassigned/unallocated standard size classrooms at John A. Sutter Middle School at Norm Day. Charter School occupies 9 classrooms at the school site in the current school year.

35. In the second week of November 2023, Region Offices were provided information regarding charter schools that had requested Proposition 39 space, and potential space availability at District school sites. Region North was advised of the District school site(s) and/or general geographic area in which Charter School wishes to locate, and that it was entitled to exclusively use a total of 11 spaces (8 instructional spaces, 2 special education spaces, and one administrative office space) for the Next Fiscal Year. Region North was also advised that there were 13 charter schools that had requested facilities within that same Region.

36. Meetings were also conducted between CSD, SMS-MPD, and others, so that additional District stakeholders such as Region Office leadership and school-site staff could provide further valuable input regarding important information, such as impacts of a potential co-location at a particular school site or unique site conditions that might make it unsuitable. Various provisional matches within each Region were identified and deliberated, and participants thoughtfully discussed potential recommendations as part of the District's comprehensive compliance effort. Per established protocols, the District also invited labor partners, including United Teachers Los Angeles, to Advisory meetings to offer feedback.

37. During the course of the meetings and numerous additional discussions, CSD, Region North, District administrators, SMS-MPD, and others discussed that John A. Sutter Middle School will not have adequate availability of space in the Next Fiscal Year to accommodate Charter School's entire projected in-district classroom ADA due to the planned programmatic needs as accounted for in the E-CAR. Also evaluated were the needs, as operationally feasible and permitted by law, to support the District's 100 Priority Schools, Black Student Achievement Program (BSAP) schools, and Community Schools, and avoid outcomes that would compromise District schools' capacity to serve neighborhood children and/or result in grade span arrangements that negatively impact student safety and actively deter students from attending District schools.

Due to these circumstances, John A. Sutter Middle School will be unable to accommodate Charter School's entire projected in-district classroom ADA in the Next Fiscal Year.

38. In summary, the District has no realistic ability to allocate 11 exclusive use classroom spaces to Charter School at the John A. Sutter Middle School site for the Next Fiscal Year. Allocating such space to Charter School would present significant safety, educational, scheduling, facilities, and operational challenges, and result in significantly harmful negative impacts, displacements, and disruptions to John A. Sutter Middle School students. Allocating such space to Charter School would result in an unfair sharing of space between Charter School and John A. Sutter Middle School on this school site.

39. If Charter School was provided 11 classroom spaces at John A. Sutter Middle School, it would so severely diminish the John A. Sutter Middle School program's usable instructional space that it could require some of its teachers to hold classes outside of classroom settings. Alternatively, John A. Sutter Middle School could either overcrowd its existing classrooms by reducing its teaching staff and increasing the number of student desks in classrooms or require two teachers to teach class simultaneously in one classroom. Both options would not only overburden the teachers forced to teach those classes, but would also unfairly crowd students and block safe access to doors. None of these possibilities are realistically feasible.

40. District staff has determined that the quality of the education for both John A. Sutter Middle School students and Charter School students would suffer significantly if Charter School were provided 11 classroom spaces at John A. Sutter Middle School. John A. Sutter Middle School's existing space constraints have already substantially impacted John A. Sutter Middle School students, teachers, staff, and administrators. Provision of facilities sufficient to accommodate the entirety of charter school's projected in-district classroom ADA in the Next Fiscal Year would further exacerbate the negative harmful impacts to such a point that it would be impossible for all of the students to share space fairly and receive a proper education. It would also result in increased emotional hardship and further loss of morale in students, teachers, staff,

and administrators alike.

41. To accommodate Charter School's entire in-district classroom ADA at John A. Sutter Middle School would also present substantial safety concerns for both charter and non-charter District students. By way of example, District staff estimated that to accommodate all of Charter School's students at John A. Sutter Middle School would require the forcible displacement of a significant number of students attending John A. Sutter Middle School. Displacing students out of John A. Sutter Middle School would have far-reaching safety, instructional, and social implications.

42. For instance, many John A. Sutter Middle School students walk to and from their school. Recent District budgetary cutbacks and the harsh economic climate have made the ability to walk to school a necessity for many families with in-district children. The District school bus program has realized service cuts and route eliminations which have affected many students. As a result of past budget deficits, transportation funding was reduced as part of stabilization efforts. The latest impact came in July 2012, when the District was forced to implement a change to the eligible busing distance for secondary schools from three miles to five miles. These cuts disproportionately affect poorer students and make the ability to walk to school even more crucial.

43. Not only is the ability to walk to school at John A. Sutter Middle School a necessity for some students, but walking to school also provides key health benefits. According to the California Department of Public Health ("DPH"), close to one-third of California's children are overweight or obese. The DPH's California Active Communities ("CAC"), in collaboration with CA4Health (a project of the Public Health Institute, with funding from the Centers for Disease Control and Prevention) has determined that a child's overall health is affected by levels of physical inactivity which can be directly linked to time spent in automobiles versus in active transportation such as walking. Walking or biking to school provides an opportunity for purposeful physical activity toward the accumulation of the recommended 60 minutes or more of daily physical activity for children and youth. (Martin, Moeti and Pullen-Seufert, *Implementing*

Safe Routes to School: Application for the Socioecological Model and Issues to Consider (2008).) Active transportation – such as walking and biking – to school can help increase physical activity levels of students and their families. (ChangeLabSolutions, *Incorporating Safe Routes to School into Local School Wellness Policies* (July 2015).) Physical activity reduces the risk of obesity and related chronic diseases, and improves mental health, attendance, and academic performance. (*Ibid.*) Active transportation can also have broad community benefits, including reducing traffic congestion and air pollution, creating safer streets, encouraging cost savings, and building a stronger sense of community. (*Ibid.*) Increasing physical activity through walking and biking to school can help address high obesity rates. (*Ibid.*)

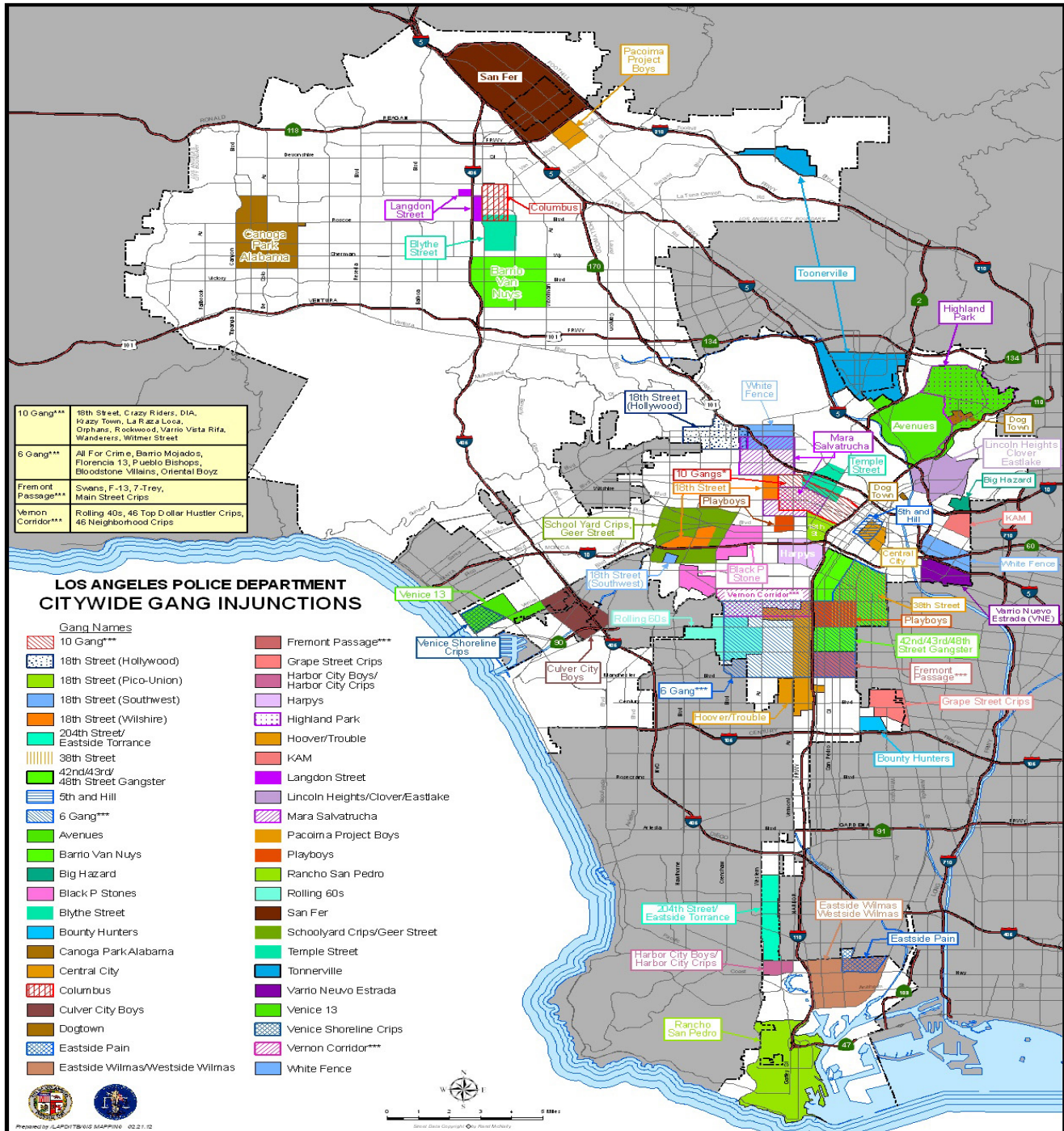
44. Empirical studies have determined that distance is a key impediment to children walking to school safely. (Martin, Moeti and Pullen-Seufert, *Implementing Safe Routes to School: Application for the Socioecological Model and Issues to Consider* (2008).) A study published in the *Journal of Public Health Policy* examines the multi-level correlates of walking to and from school. Of the physical environmental factors examined, the strongest negative correlates to walking to school were distance and safety concerns. (Zhu & Lee, *Correlates of Walking to School and Implications for Public Policies*, *Journal of Public Health Policy* (2009).) Recognizing distance as a barrier to the ability for a child to walk to school, CA4Health, the CAC, and the DPH support school siting as well as joint use policies and practices that encourage kids to walk or bike to school.

45. Displacing a significant number of students from John A. Sutter Middle School to make additional room for Charter School would prevent a significant number of John A. Sutter Middle School children who currently have the ability to safely walk to school from being able to do so. Conversely, Charter School draws its attendance from 12 different District schools. Therefore, providing a single-site offer at John A. Sutter Middle School to Charter School would endanger a significant number of children currently attending their nearby school. Moreover, the forcible displacements would not just be limited to the children attending John A. Sutter Middle

School. Instead, those students would need to be absorbed into other District schools which may have insufficient space, programs and/or resources to house the influx of students, and would thereby cause the additional forcible displacement of children from these absorbing schools. This would create a ripple effect of forcible displacements necessitating hundreds of children to relocate for the benefit of a far lesser number of Charter School's children. Such a decision would pose disproportionate harm to a significant number of John A. Sutter Middle School students and to those District students displaced by the influx of these students, and thus produce inequity in the sharing of facilities.

46. Not only does distance play a factor in children safely walking to school due to traffic dangers, but several Los Angeles neighborhoods are plagued by gang violence. In order to create safe passages to and from school in neighborhoods suffering from gang-related violence, meaningful programs and efforts to mitigate these risks have been launched, such as Kid Watch LA which instituted the Walking School Bus for District students. The Walking School Bus enlists parent and community volunteers to accompany groups of small children as they walk to and from their school.

47. According to the Los Angeles Police Department, the District is located within the territory known as the "gang capital" of the nation, with more than 450 competing gangs. Gang violence is unfortunately prevalent on some campuses and within the neighborhoods of several District schools. As shown by the map depicting former gang injunctions in Los Angeles below, Los Angeles gangs claim particular territories:



48. On March 15, 2018, the City of Los Angeles was enjoined from enforcing these gang injunctions. (See, *Youth Justice Coalition, et al., v. City of Los Angeles, et al.*, CV 16-07932 VAP.) The inability to enforce these injunctions may result in an increase in gang-related activity and crime.

49. Involuntarily displacing students who themselves or whose parents are tied to a particular gang and placing them in a different school located in the territory of another gang would potentially breed gang warfare and violence affecting all children, teachers, staff, and parents at a particular school.

50. Pulling children out of their District schools and placing charter students at those school sites prevents the displaced children from taking advantage of safety measures such as the Walking School Bus and other relevant considerations their families have made, and therefore unfairly endangers the safety of those displaced children. These harms disproportionately affect students attending District schools. As parents of charter school students have elected to send their child to a school outside of his or her local attendance area, the parents have secured a means of transporting their child to this school. However, parents of children who attend District schools may not have the means to find alternate transportation and need to rely on children walking to their school. With the aforementioned reduction of several school bus routes and potential further elimination of transportation funding, many forcibly displaced children will be forced to walk long, unsafe distances or take unsafe public transit routes.

51. Displacing children attending John A. Sutter Middle School for the purpose of making a single-site offer to Charter School would have additional instructional and social ramifications. California has an accountability system reported through the California School Dashboard. The state's accountability system includes a three-level identification and support system for local educational agencies, and categorizes district performance levels using a system of five status levels (ranging from Very High, High, Medium, Low and Very Low). The 2022 Dashboard showed the District was assigned a Medium Status level for two of the six state indicators based on the performance of all student groups: English Learner Progress and Graduate Rate indicators. A Low status level was assigned to English Language Arts ("ELA") and Mathematics, and a Very Low status level for Suspension Rate. The District received one Very High-status level for Chronic Absenteeism. Of the thirteen student groups reported, four were in

the Very Low status level, five in Low, three in High, and one in Very High. For the 2023 Dashboard, District performance levels were categorized using a system of five colors, stated in order from lowest to highest performing (Red, Orange, Yellow, Green, and Blue), except in the College/Career Indicator. The 2023 Dashboard results indicate that the District received an Orange performance level for English Learner Progress, Graduation Rate, and English Language Arts (Academic Indicator). The District also received a Yellow performance level for Chronic Absenteeism and Mathematics (Academic Indicator). Though the District received a Yellow indicator for Chronic Absenteeism, it is important to note that the District decreased its chronic absenteeism by 8.8-percentage points to 31% from 39.8% in 2022. In addition, the District received a Blue performance level for its Suspension Rate, and a Medium status level for the College/Career Indicator. In examining the performance of the thirteen student groups, the Dashboard indicates that no student received a Red performance level for Chronic Absenteeism. Among the other indicators, only three of thirteen student groups received at least one Red performance Level. In contrast, twelve student groups received at least one Blue performance level.

52. The District is continuing its efforts to improve performance in all state indicators. Displacing District children attending their District school at John A. Sutter Middle School would thwart these efforts, and have instructional and social ramifications. Studies have empirically established that disrupting a child's trajectory to his or her district high school effectively increases drop-out rates. A review of 25 years of research conducted by the California Dropout Research Project identified strong predictors of dropping out of high school. The compilation study identified non-promotional school changes (student mobility) during middle school and high school as a key predictor of a child dropping out of school. (Rumberger & Lim, *Why Students Drop Out: A Review of 25 Years of Research*, California Dropout Research Project (October 2008).)

53. In 1998, a seminal study on the educational consequences of student mobility found a high causal connection between student mobility and an increased risk of high school drop-out. The staggering results of this study indicate that controlling for other predictors, students who made even one non-promotional school change between the eighth and twelfth grades were twice as likely to not complete high school as students who did not change schools. (Rumberger & Larson, *Student Mobility and the Increased Risk of High School Dropout*, American Journal of Education 107 (November 1998).)

54. The safety and welfare of all students is the District's paramount concern and principal charge. The data is indisputable that children who drop out of school are at far greater risk of a vast array of physical, social, and economic harm than those who stay in school and complete their secondary education. This paramount concern of the District remains a material consideration when weighing whether to forcibly displace children from their existing school (such as John A. Sutter Middle School) in order to make way for students who would attend school at that site (such as Charter School) from distant neighborhoods, especially when other solutions for sharing space fairly are feasible.

55. An additional impact of such displacement would be the difficulty of sustaining the same level of parental involvement in the absorbing schools. California State Board of Education Policy #89-01 acknowledges that a critical dimension of effective schooling is parental involvement. This policy initiative states that research studies demonstrate parental involvement at school propels a child's educational career. Forcibly displacing students attending John A. Sutter Middle School would make it more challenging for those children to reap the benefits of parental involvement in their new schools.

56. An alternative to displacing students attending John A. Sutter Middle School would be to overcrowd the site by adding more of Charter School's students. However, this would cause severe safety and operational ramifications due to the design capacity of the John A. Sutter Middle School site, making this course of action infeasible. Adding Charter School's students to the John

A. Sutter Middle School site or any other District campus with insufficient space to feasibly accommodate Charter School's total in-district classroom ADA would raise both schools' classroom loading ratios, thereby disadvantaging both of these schools' children. Likewise, having children over a school site's capacity sharing space would pose a great risk to student safety and well-being.

57. In making decisions regarding allocations of space, District staff placed the safety of students attending Charter School, John A. Sutter Middle School, and other charter and District schools at the forefront of the decision-making process. District staff made substantial efforts to locate charter schools, including Charter School, at or near their desired geographic location and further made material efforts to minimize the number of sites on which each charter school was located. As Charter School's parents/guardians have made a decision to place their child in a school outside of their District school, they have had the opportunity to weigh the safety implications of this decision for their child. On the contrary, the families of forcibly displaced students would have no place in such a decision-making process. Thus, forcibly displacing children from John A. Sutter Middle School and/or other impacted District schools would not afford their parents/guardians the same opportunity. In addition, the decision to forcibly displace students to make way for Charter School students necessarily will have safety impacts upon the displaced children, whereas, given the fact that many Charter School students already voluntarily travel to attend Charter School, these children may not face any increased safety risk by being required to, for example, travel five miles east instead of five miles south.

58. Based on the foregoing, the District determined that it was simply not feasible to provide Charter School with a single-site offer at John A. Sutter Middle School, and because only a total of 9 spaces (6 teaching stations, 2 special education spaces, and one administrative office space) could be provided to Charter School at John A. Sutter Middle School for the Next Fiscal Year, a portion of Charter School's in-district classroom ADA would need to be accommodated at one or more additional site(s). Therefore, in order to ensure a sufficient allocation of special

education and administrative office spaces are provided to Charter School at each District school site, the District has identified 5 classrooms (2 instructional spaces, 2 special education spaces, and one administrative office space) at one or more additional District school site(s). While it is always the District's goal to accommodate a charter school's entire program on a single District school site, sometimes charter schools must be offered space on more than one site, particularly if, as in the case of Charter School, the charter school has a large projected in-district classroom ADA and has indicated in its facilities request a preference not to be moved from its current site.

59. Based on the geographic area of interest identified in Charter School's Facilities Request, the District reviewed and considered the space availability at various alternative nearby District sites with reasonably equivalent facilities in order to accommodate the remainder of Charter School's ADA that could not be accommodated at John A. Sutter Middle School.

60. Although it would be preferable to accommodate Charter School's entire program at the John A. Sutter Middle School site for the Next Fiscal Year, for the reasons set forth herein it is not possible to provide Charter School with 11 classrooms at the John A. Sutter Middle School site without presenting significant, safety, educational, scheduling, facilities, and operational challenges. The Woodland Hills Academy site, which is within Region North and Board District 4, and is located 3.0 miles from the John A. Sutter Middle School site according to Google Maps, is the closest reasonably equivalent school site that could also accommodate Charter School. Considering that the District spans over 710 square miles and serves over 27 cities, and based on the plain language of California Code of Regulations, title 5, section 11969.2, subdivision (d), the Woodland Hills Academy site is "contiguous" with the John A. Sutter Middle School site.

61. Based on all of the foregoing considerations, District staff recommends providing Charter School with a multi-site offer of contiguous facilities at the Recommended Co-Locations.

ATTACHMENT 7(b): INGENIUM CHARTER MIDDLE SCHOOL**Board of Education Finding that Ingenium Charter Middle School Cannot Be Accommodated at a Single Site and Written Statement of Reasons Explaining the Finding (Cal. Code Regs., tit. 5, § 11969.2, subd. (d))**

Whereas, Under Proposition 39, the Los Angeles Unified School District (“District”) is required to fairly share space between public school pupils, charter and non-charter students alike;

Whereas, In making an allocation of space, the District attempts to place a charter school applicant on one school site or, when that is not feasible, alternatively attempts to minimize the number of school sites on which the charter school applicant is placed;

Whereas, In making an allocation of space, the District materially considers the safety implications to charter and District school students of making a multi-site offer, and balances the safety, instructional, and social consequences of displacing children from their District schools, as well as the burdens associated with such an action on their parents and the community;

Whereas, For the Next Fiscal Year, 46 charter schools requested facilities under the Proposition 39 process, asking for approximately 13,110 seats from the District;

Whereas, Charter School submitted an application for Proposition 39 facilities for the Next Fiscal Year;

Whereas, The Board hereby incorporates by reference the entire Staff Report on the Deliberative Process for Determining Why Charter School Cannot be Accommodated at a Single Site for the Next Fiscal Year;

Whereas, District staff engaged in an effort to create a single-site offer to accommodate Charter School’s total in-district classroom ADA;

Whereas, The District cannot accommodate Charter School’s request for a single site at John A. Sutter Middle School;

Whereas, 13 different charter schools (including Charter School) requested space in Region North for the Next Fiscal Year;

Whereas, District staff determined that John A. Sutter Middle School (the only District school site or general geographic area in which Charter School wishes to be located) will not have sufficient classroom space to accommodate Charter School’s entire projected in-district classroom ADA in the Next Fiscal Year;

Whereas, The District cannot accommodate Charter School’s entire in-district classroom ADA at John A. Sutter Middle School;

Whereas, To accommodate Charter School's entire in-district classroom ADA at John A. Sutter Middle School would present substantial, disproportionate safety concerns for both Charter School's students and students attending their District school;

Whereas, To accommodate all of Charter School's students at John A. Sutter Middle School would require the displacement of a significant number of children attending John A. Sutter Middle School, and potentially additional District schools;

Whereas, Involuntarily displacing children out of their existing District schools has far-reaching safety, instructional, and social implications including: prohibiting children from safely walking to school; subjecting children to possible gang violence; increasing high-school drop-out rates; and impairing parental involvement in their children's schools;

Whereas, Based on these safety and instructional considerations, District staff recommends keeping the student populations of John A. Sutter Middle School and other District schools intact;

Whereas, Alternatively, over-crowding a school's campus in order to provide a single-site offer to Charter School would have equally severe safety and operational ramifications, making this course of action infeasible;

Whereas, The District can provide Charter School with a multi-site contiguous offer of reasonably equivalent facilities at the "Recommended Co-Locations";

Whereas, Providing Charter School space at the Recommended Co-Locations minimizes the number of sites assigned to Charter School;

Whereas, Because of the short distance between the Recommended Co-Locations in a school district spanning 710 square miles and serving over 27 cities, the Recommended Co-Locations are contiguous facilities;

Whereas, By providing space to Charter School at the Recommended Co-Locations, the District has made reasonable efforts to provide Charter School with facilities near to where Charter School wishes to locate; and

Whereas, The District can make a complete and contiguous, multi-site offer to accommodate Charter School's entire in-district classroom ADA; therefore be it

Resolved, That pursuant to California Code of Regulations, title 5, section 11969.2, subdivision (d), for the reasons set forth herein and as further expressed by District staff, the Governing Board of the Los Angeles Unified School District finds that the District cannot accommodate Charter School at a single school site; and therefore be it finally

Resolved, That pursuant to Education Code sections 35160-35160.1 and 47614, and California Code of Regulations, title 5, section 11969.1, et seq., for the reasons set forth herein and as further expressed by District staff, the Governing Board of the Los Angeles Unified School District

authorizes a preliminary proposal and final offer of facilities to Charter School for the Next Fiscal Year at multiple District school sites.

ATTACHMENT 8(a): ISANA OCTAVIA ACADEMY**Staff Report on Deliberative Process for Determining Why ISANA Octavia Academy Cannot be Accommodated at a Single Site****Charter School's Facilities Request**

1. On or before November 1, 2023, ISANA Octavia Academy ("Charter School") submitted a Proposition 39 Online Facilities Request Form ("Facilities Request") to the District, requesting use of District facilities for a projected in-district classroom average daily attendance ("ADA") of 322.05 in grades TK-8 for the 2024-25 school year ("Next Fiscal Year"). Charter School identified 46 different District schools that its charter school students would otherwise attend. Charter School's facilities request was one of 46 that the District received for the Next Fiscal Year. Charter School requested facilities at Fletcher Dr. EL and Irving MS ("Requested Sites"). Charter School is currently operating at Fletcher Dr. EL and Irving MS.

2. District staff reviewed information provided in support of Charter School's ADA projections and determined that a reasonable in-district classroom ADA projection for Charter School is 322.05.

3. Charter School's facilities request states: "ISANA Octavia Academy requests to maintain its colocations at Fletcher Dr ES and Irving MS...."

4. If Charter School's request can be satisfied, further analysis is unnecessary. Therefore, rather than attempt to locate Charter School on a single site, pursuant to Education Code section 47614, District staff engaged in an effort to satisfy Charter School's request and provide a multi-site co-location at the Requested Sites.

5. Charter School requested to locate on two campuses. The District has the ability to locate Charter School at the two facilities where it wishes to locate. Consequently, District staff concluded it could not accommodate Charter School on a single site and comply with Education Code section 47614.

6. Therefore, District staff recommends making this complete offer of contiguous space to Charter School at Requested Sites (“Recommended Co-Locations”).

ATTACHMENT 8(b): ISANA OCTAVIA ACADEMY

Board of Education Finding that ISANA Octavia Academy Cannot Be Accommodated at a Single Site and Written Statement of Reasons Explaining the Finding (Cal. Code Regs., tit. 5, § 11969.2, subd. (d))

Whereas, Under Proposition 39, the Los Angeles Unified School District (“District”) is required to fairly share space between public school pupils, charter and non-charter students alike;

Whereas, In making an allocation of space, the District attempts to place a charter school applicant on one school site or, when that is not feasible, alternatively attempts to minimize the number of school sites on which the charter school applicant is placed;

Whereas, In making an allocation of space, the District materially considers the safety implications to charter and District school students of making a multi-site offer, and balances the safety, instructional, and social consequences of displacing children from their District schools, as well as the burdens associated with such an action on their parents and the community;

Whereas, For the Next Fiscal Year, 46 charter schools requested facilities under the Proposition 39 process, asking for approximately 13,110 seats from the District;

Whereas, Charter School submitted an application for Proposition 39 facilities for the Next Fiscal Year;

Whereas, Charter School’s facilities request states that it wishes to remain at its current two campuses;

Whereas, Rather than attempt to locate Charter School on a single site, pursuant to Education Code section 47614, District staff engaged in an effort to satisfy Charter School’s request and provide a multi-site co-location at Requested Sites;

Whereas, The District has the ability to co-locate Charter School where it wishes;

Whereas, The District cannot accommodate Charter School on a single site and comply with Education Code section 47614;

Whereas, By providing space to Charter School at the Recommended Co-Locations, the District has made reasonable efforts to provide Charter School with facilities near to where Charter School wishes to locate; and

Whereas, The District can make a complete and contiguous, multi-site offer to accommodate Charter School’s entire in-district classroom ADA; therefore be it

Resolved, That pursuant to California Code of Regulations, title 5, section 11969.2, subdivision (d), for the reasons set forth herein and as further expressed by District staff, the Governing Board

of the Los Angeles Unified School District finds that the District cannot accommodate Charter School at a single school site; and therefore be it finally

Resolved, That pursuant to Education Code sections 35160-35160.1 and 47614, and California Code of Regulations, title 5, section 11969.1, et seq., for the reasons set forth herein and as further expressed by District staff, the Governing Board of the Los Angeles Unified School District authorizes a preliminary proposal and final offer of facilities to Charter School for the Next Fiscal Year at multiple District school sites.

ATTACHMENT 9(a): ISANA PALMATI ACADEMY**Staff Report on Deliberative Process for Determining Why ISANA Palmati Academy Cannot be Accommodated at a Single Site****Charter School's Facilities Request**

1. On or before November 1, 2023, ISANA Palmati Academy ("Charter School") submitted a Proposition 39 Online Facilities Request Form ("Facilities Request") to the District, requesting use of District facilities for a projected in-district classroom average daily attendance ("ADA") of 348.65 in grades TK-8 for the 2024-25 school year ("Next Fiscal Year"). Charter School identified 66 different District schools that its charter school students would otherwise attend. Charter School's facilities request was one of 46 that the District received for the Next Fiscal Year. Charter School requested facilities at Glenwood EL and Romer MS ("Requested Sites"). Charter School is currently operating at Glenwood EL and Romer MS.

2. District staff reviewed information provided in support of Charter School's ADA projections and determined that a reasonable in-district classroom ADA projection for Charter School is 348.65.

3. Charter School's facilities request states: "ISANA Palmati Academy requests that the District allocates space at Roy Romer MS and Glenwood ES to maintain the continuity of its current instructional program."

4. If Charter School's request can be satisfied, further analysis is unnecessary. Therefore, rather than attempt to locate Charter School on a single site, pursuant to Education Code section 47614, District staff engaged in an effort to satisfy Charter School's request and provide a multi-site co-location at the Requested Sites.

5. Charter School requested to locate on two campuses. The District has the ability to locate Charter School at the two facilities where it wishes to locate. Consequently, District staff

concluded it could not accommodate Charter School on a single site and comply with Education Code section 47614.

6. Therefore, District staff recommends making this complete offer of contiguous space to Charter School at Requested Sites (“Recommended Co-Locations”).

ATTACHMENT 9(b): ISANA PALMATI ACADEMY

Board of Education Finding that ISANA Palmati Academy Cannot Be Accommodated at a Single Site and Written Statement of Reasons Explaining the Finding (Cal. Code Regs., tit. 5, § 11969.2, subd. (d))

Whereas, Under Proposition 39, the Los Angeles Unified School District (“District”) is required to fairly share space between public school pupils, charter and non-charter students alike;

Whereas, In making an allocation of space, the District attempts to place a charter school applicant on one school site or, when that is not feasible, alternatively attempts to minimize the number of school sites on which the charter school applicant is placed;

Whereas, In making an allocation of space, the District materially considers the safety implications to charter and District school students of making a multi-site offer, and balances the safety, instructional, and social consequences of displacing children from their District schools, as well as the burdens associated with such an action on their parents and the community;

Whereas, For the Next Fiscal Year, 46 charter schools requested facilities under the Proposition 39 process, asking for approximately 13,110 seats from the District;

Whereas, Charter School submitted an application for Proposition 39 facilities for the Next Fiscal Year;

Whereas, Charter School’s facilities request states that it wishes to remain at its current two campuses;

Whereas, Rather than attempt to locate Charter School on a single site, pursuant to Education Code section 47614, District staff engaged in an effort to satisfy Charter School’s request and provide a multi-site co-location at Requested Sites;

Whereas, The District has the ability to co-locate Charter School where it wishes;

Whereas, The District cannot accommodate Charter School on a single site and comply with Education Code section 47614;

Whereas, By providing space to Charter School at the Recommended Co-Locations, the District has made reasonable efforts to provide Charter School with facilities near to where Charter School wishes to locate; and

Whereas, The District can make a complete and contiguous, multi-site offer to accommodate Charter School’s entire in-district classroom ADA; therefore be it

Resolved, That pursuant to California Code of Regulations, title 5, section 11969.2, subdivision (d), for the reasons set forth herein and as further expressed by District staff, the Governing Board

of the Los Angeles Unified School District finds that the District cannot accommodate Charter School at a single school site; and therefore be it finally

Resolved, That pursuant to Education Code sections 35160-35160.1 and 47614, and California Code of Regulations, title 5, section 11969.1, et seq., for the reasons set forth herein and as further expressed by District staff, the Governing Board of the Los Angeles Unified School District authorizes a preliminary proposal and final offer of facilities to Charter School for the Next Fiscal Year at multiple District school sites.

ATTACHMENT 10(a): LASHON ACADEMY**Staff Report on Deliberative Process for Determining Why Lashon Academy Cannot be Accommodated at a Single Site****Charter School's Facilities Request**

1. On or before November 1, 2023, Lashon Academy ("Charter School") submitted a Proposition 39 Online Facilities Request Form ("Facilities Request") to the District, requesting use of District facilities for a projected in-district classroom average daily attendance ("ADA") of 615.95 in grades TK-8 for the 2024-25 school year ("Next Fiscal Year"). Charter School identified 111 different District schools that its charter school students would otherwise attend. Charter School's facilities request was one of 46 that the District received for the Next Fiscal Year. Charter School requested facilities at Fulton College Preparatory School and Valerio EL ("Requested Sites"). Charter School is currently operating at Fulton College Preparatory School and Valerio EL.

2. District staff reviewed information provided in support of Charter School's ADA projections and determined that a reasonable in-district classroom ADA projection for Charter School is 604.31.

3. Charter School's facilities request states: "Lashon Academy's educational program requires the same setup on which to operate. Lashon Academy would like to stay at Fulton College Prep and Valerio as it is centrally located in the geographic middle of where our student population resides. It will thus serve our students' needs."

4. If Charter School's request can be satisfied, further analysis is unnecessary. Therefore, rather than attempt to locate Charter School on a single site, pursuant to Education Code section 47614, District staff engaged in an effort to satisfy Charter School's request and provide a multi-site co-location at the Requested Sites.

5. Charter School requested to locate on two campuses. The District has the ability to locate Charter School at the two facilities where it wishes to locate. Consequently, District staff

concluded it could not accommodate Charter School on a single site and comply with Education Code section 47614.

6. Therefore, District staff recommends making this complete offer of contiguous space to Charter School at Requested Sites (“Recommended Co-Locations”).

ATTACHMENT 10(b): LASHON ACADEMY

Board of Education Finding that Lashon Academy Cannot Be Accommodated at a Single Site and Written Statement of Reasons Explaining the Finding (Cal. Code Regs., tit. 5, § 11969.2, subd. (d))

Whereas, Under Proposition 39, the Los Angeles Unified School District (“District”) is required to fairly share space between public school pupils, charter and non-charter students alike;

Whereas, In making an allocation of space, the District attempts to place a charter school applicant on one school site or, when that is not feasible, alternatively attempts to minimize the number of school sites on which the charter school applicant is placed;

Whereas, In making an allocation of space, the District materially considers the safety implications to charter and District school students of making a multi-site offer, and balances the safety, instructional, and social consequences of displacing children from their District schools, as well as the burdens associated with such an action on their parents and the community;

Whereas, For the Next Fiscal Year, 46 charter schools requested facilities under the Proposition 39 process, asking for approximately 13,110 seats from the District;

Whereas, Charter School submitted an application for Proposition 39 facilities for the Next Fiscal Year;

Whereas, Charter School’s facilities request states that it wishes to remain at its current two campuses;

Whereas, Rather than attempt to locate Charter School on a single site, pursuant to Education Code section 47614, District staff engaged in an effort to satisfy Charter School’s request and provide a multi-site co-location at Requested Sites;

Whereas, The District has the ability to co-locate Charter School where it wishes;

Whereas, The District cannot accommodate Charter School on a single site and comply with Education Code section 47614;

Whereas, By providing space to Charter School at the Recommended Co-Locations, the District has made reasonable efforts to provide Charter School with facilities near to where Charter School wishes to locate; and

Whereas, The District can make a complete and contiguous, multi-site offer to accommodate Charter School’s entire in-district classroom ADA; therefore be it

Resolved, That pursuant to California Code of Regulations, title 5, section 11969.2, subdivision (d), for the reasons set forth herein and as further expressed by District staff, the Governing Board

of the Los Angeles Unified School District finds that the District cannot accommodate Charter School at a single school site; and therefore be it finally

Resolved, That pursuant to Education Code sections 35160-35160.1 and 47614, and California Code of Regulations, title 5, section 11969.1, et seq., for the reasons set forth herein and as further expressed by District staff, the Governing Board of the Los Angeles Unified School District authorizes a preliminary proposal and final offer of facilities to Charter School for the Next Fiscal Year at multiple District school sites.

ATTACHMENT 11(a): MAGNOLIA SCIENCE ACADEMY 7**Staff Report on Deliberative Process for Determining Why Magnolia Science Academy 7 Cannot be Accommodated at a Single Site****Charter School's Facilities Request**

1. On or before November 1, 2023, Magnolia Science Academy 7 ("Charter School") submitted a Proposition 39 Online Facilities Request Form ("Facilities Request") to the District, requesting use of District facilities for a projected in-district classroom average daily attendance ("ADA") of 261.90 in grades TK-5 for the 2024-25 school year ("Next Fiscal Year"). Charter School identified 50 different District schools that its charter school students would otherwise attend. Charter School's Facilities Request was one of 46 that the District received for the Next Fiscal Year. Charter School requested facilities at Lorne Street Elementary, Shirley Avenue Elementary, or Sunny Brae Avenue Elementary ("Requested Sites"). Charter School is currently operating on a private site.

2. District staff reviewed information provided in support of Charter School's ADA projections and determined that a reasonable in-district classroom ADA projection for Charter School is 261.90.

3. Education Code section 47614, subdivision (b) requires the District to provide charter schools with facilities sufficient for the charter school to accommodate all of its in-district students in conditions "reasonably equivalent" to those in which the students would be accommodated if they were attending other public schools of the district.

4. To determine whether the conditions of facilities provided to a charter school are "reasonably equivalent" to the school district facilities that charter school students would otherwise attend, the District adheres to the Proposition 39 implementing regulations (California Code of Regulations, title 5, section 11969.1, et seq.) which direct school districts to measure those facilities against the facilities used by district students at a "comparison group" of schools. As the District is

divided into high school attendance areas, in selecting comparison group schools, the District must follow California Code of Regulations, title 5, section 11969.3, subdivision (a)(2), which states, “[t]he comparison group shall be the district-operated schools with similar grade levels that serve students living in the high school attendance area... in which the largest number of students of the charter school reside.” District staff reviewed Charter School’s projected in-district classroom ADA broken down by grade level and its identification of the 50 different District schools its projected charter school students would otherwise attend. Based on the information provided by Charter School, District staff determined that the attendance area where the largest number of Charter School’s projected students reside is the Cleveland Senior High attendance area. Consequently, based on the grade levels that Charter School projects it will serve, District staff identified the following as the District-operated schools with similar grade levels that serve students within the Cleveland Senior High attendance area; i.e., Charter School’s comparison group schools: Blythe Street Elementary, Calahan Street Elementary, Cantara Street Elementary, Lorne Street Elementary, Melvin Avenue Elementary, Stanley Mosk Elementary, Napa Street Elementary, and Winnetka Avenue Elementary.

5. The District also follows California Code of Regulations, title 5, section 11969.3, subdivision (b)(1), which requires that the facilities made available by a school district to a charter school shall be provided in the same ratio of teaching stations (classrooms) to ADA as those provided to students in the district attending comparison group schools. To implement a fair sharing of space, the District determines the ratio of ADA-to-classrooms provided for each of the charter school’s comparison group schools and uses an average of those figures to determine the number of classrooms to provide to the charter school. It also results in the District allocating classroom space sufficient to allow a charter school to maintain the same minimum number of seats in a classroom as maintained in the District’s comparison group schools, that is, to maintain conditions reasonably equivalent to the comparison group schools as required by Proposition 39. In other words, it results in accommodating charter school students on District school sites as they would be accommodated

if they otherwise attended those District schools. Consequently, this calculation is used to ensure the number of classrooms provided to charter schools is equivalent to the number of classrooms provided at their comparison group schools.

6. Relying upon an in-district classroom ADA projection of 261.90 for the Next Fiscal Year, and an average ADA to classrooms provided ratio at the comparison group schools of 19.40, the District determined that Charter School is entitled to 13 teaching stations (classrooms) and one classroom space to be used as its administrative office. The District also determined that Charter School is entitled to 2 special education classrooms.

7. Based on the foregoing, if the in-district classroom ADA of Charter School cannot be accommodated entirely at any one of the Requested Sites, or another single site, in the Next Fiscal Year, District staff recommends allocating Charter School facilities at Sunny Brae Avenue Elementary, Shirley Avenue Elementary, and Lorne Street Elementary.

8. Education Code section 47614, subdivision (b), provides that facilities provided to a charter school by a school district must be, among other things, “contiguous.” The definition of “contiguous” expressed in California Code of Regulations, title 5, section 11969.2, subdivision (d), states that facilities are “contiguous” if they are contained on the school site or immediately adjacent to the school site, and that if the in-district classroom ADA of a charter school cannot be accommodated on any single school district school site, contiguous facilities also includes facilities located at more than one site, provided that the school district shall minimize the number of sites assigned and shall consider student safety. As explained below, pursuant to Proposition 39, District staff first engaged in an effort to create a single-site offer to accommodate Charter School’s projected total in-district classroom ADA in the Next Fiscal Year at one of the Requested Sites. District staff evaluated space at each of the Requested Sites (the District school sites at which Charter School wishes to locate) and determined that none of the Requested Sites will have sufficient classroom space to accommodate Charter School’s total in-district classroom ADA in the Next Fiscal Year. District staff then expanded its search to other schools near the Requested Sites (“Other Considered

Sites”). The District determined, however, that it is not possible to accommodate Charter School’s entire in-district student population on a single site in the Next Fiscal Year.

9. Therefore, District staff recommends providing space at the following locations to Charter School to accommodate its total in-district classroom ADA for the Next Fiscal Year: Sunny Brae Avenue Elementary, Shirley Avenue Elementary, and Lorne Street Elementary (collectively, the “Recommended Co-Locations”). By providing space to Charter School at the Recommended Co-Locations, the District has made reasonable efforts to provide Charter School with facilities near to where Charter School wishes to locate and to minimize the number of sites assigned to Charter School.

**Process District Staff Followed to Locate Space for Charter School Pursuant to
Proposition 39**

10. The District’s Charter Schools Division (“CSD”) determined that in the 2023-24 school year, more than 148,194 students enrolled in charter schools authorized by the District. This figure reflects a 1,865 student decrease compared to the number of students enrolled during the previous school year. In the 2023-24 school year, the District had the most charter students attending schools authorized by a District of any school district in the nation. The District ensured that every eligible in-district charter student was offered a seat.

11. For the 2024-25 Proposition 39 cycle, the District is applying a comprehensive process to ensure that every eligible in-district charter school student is offered a seat at a District campus. The District is following a critical schedule of steps, from receiving the initial request for facilities by a charter school to making facilities ready for occupancy, in order to timely meet the Proposition 39 timeline. The general process District staff followed in administering Charter School’s Facilities Request is the same that it used to process each of the other facilities requests the District received from charter schools for the Next Fiscal Year. That process is as follows:

12. Beginning in September 2023, School Management Services and Master Planning & Demographics (“SMS-MPD”) staff, which includes District personnel in the District’s Facilities Services Division experienced in public school facilities utilization that assess all of the educational

space within the District, conducted a comprehensive analysis of the use of District classrooms school facilities, called E-CAR. E-CAR was implemented at the beginning of the Proposition 39 process to assess capacity at school sites throughout the District, and commenced with a preparation period during which SMS-MPD staff examined materials submitted by all District schools in the previous year for accuracy, as well as for consistency with previous assessments' classroom usage and availability determinations. The SMS-MPD staff applied standard formulae for the usage of classrooms in order to generate an objective and uniform assessment of the amount of total classroom space at District school sites. The purpose of this calculus is to assess the number of classrooms required to accommodate instructional program enrollment, based on grade level and specific course subject matters at secondary schools.

13. Next, the E-CAR process involves District school principals at more than 700 District school sites logging into an online application to validate their school's enrollment and to review and confirm details regarding the school site's classrooms and their respective utilization. Specifically, the principals identified and validated classroom space utilized as teaching stations and "set-asides" (classrooms used for purposes other than general education), along with classroom numbers, locations, and sizes. Additionally, the principals identified classrooms occupied by special education programs, charter schools, preschools, alternative education programs, option programs, and other third-party users, as well as swing space needed for construction projects, and classrooms that are out of service or mandated for removal due to legal and/or safety/physical condition requirements. The purpose of E-CAR is to accurately assess the current capacity of each District school site in several respects: the number and size of classrooms, the manner in which those classrooms are currently used, and the school's operating capacity. E-CAR entails a detailed review of the present use of District school sites and an analysis of the projected future uses of those facilities. The analysis includes reporting of data by individual schools, which is reviewed by SMS-MPD staff to confirm its accuracy and to ensure that space is used efficiently and uniformly throughout the District.

14. To ensure that District school administrators are provided the resources necessary for a complete and accurate assessment of their school's capacity, they were instructed to reference the

following resource materials for their school site: A current school map; the school’s former or most recent Norm Day classification report (which details the number of students enrolled at that school on September 15, 2023); the Norm Day classification report for any magnet centers and/or dual language programs located on the school site; the Classroom Inventory and Allocation Worksheet pages from the prior school year’s Capacity Assessment Review report, which contains information for classroom counts and allocations into precisely-defined categories; and the number of teaching positions in all categories, including general education, special day, magnet, dual-language, physical education, and off-norm-funded positions.

15. Categorizing classrooms in this way is important because a school’s capacity involves more than its raw seats and room numbers. The District must determine whether a school site has facilities available to sufficiently serve the particular requirements of a school, such as grade levels, special education programs, magnet centers, Small Learning Communities, Personalized Learning Environments, legal mandates, and other student needs.

16. District staff reviewed the foregoing data regarding specific capacity information at District school sites for the Next Fiscal Year. Utilizing this data, SMS-MPD provided CSD with the number of estimated classrooms, at each District school site given specific operating capacities per programmatic and mandated qualifiers. When planning for maximal use of available school facilities, and in interpreting data generated during the course of facilities planning, it is absolutely critical to understand the difference between “unallocated classrooms” and “available seats.” To illustrate, a hypothetical District school may not have any unallocated classrooms but may have individual available seats in classrooms currently occupied. As a result, the school may be able to absorb 100 students into its existing classrooms by identifying two free seats spread out among 50 of its classrooms that are used for instruction appropriate to the grade level and subject matter requirements for the students being absorbed. Thus, it is an entirely different proposition to provide and integrate 100 seats across a campus than to provide four or five unallocated classrooms with the same total number of contiguous available seats. In many instances, there may be many available seats in a school, but no unallocated classrooms. This is especially the case for District middle and high schools where the students do not sit in one classroom all day, like an elementary school, but

instead attend four or more different classes per day, each in different classrooms and with different teachers and groups of students, in order to receive the mandated curriculum.

17. SMS-MPD generated each instructional program's operating capacity using a complex mathematical formula which took into account all aspects of the schools' operations. The operating capacity also accounted for classrooms designated as "set asides." Public school districts are required to provide special education space, and a parent center at each school which is classified as a set-aside. Also, pre-kindergarten and adult education students are served in classrooms at school sites across the District.

18. District staff analyzed each District school's estimated available seats and classrooms for the Next Fiscal Year based on the data.

19. As a public institution, the District is required to provide an education to every student who chooses to enroll. The District previously planned its programming and staffing based on estimated enrollment projections, but in the event projections were short, the District was still obligated to provide an education to students who were not originally anticipated. As a safeguard against the overcrowding of classrooms in such situations, the District historically prepared to reserve 75 seats at every secondary school and 50 seats at every elementary school for additional unanticipated enrollment. Importantly, however, beginning in 2013 and continuing this year, District staff examined the actual historical enrollment data over the last several years at each school site to determine if a trend could be empirically established demonstrating unanticipated growth. Based upon this analysis, the District determined that no seats at any District school sites offered to a charter school should be reserved for unanticipated growth.

20. The District uses the definition contained in California Code of Regulations, title 5, section 11969.3, subdivision (a)(2) to determine comparison group schools. No two schools are identical; however, on a grade-alike basis, a significant majority of the District's schools share reasonably equivalent conditions, especially when taking into account age, quality of materials and state of maintenance, school site size, conditions of surfaces as well as mechanical, plumbing, electrical and fire-life systems, including conformity to applicable codes, availability and condition

of technology infrastructure, the condition of the facility as a safe learning environment, including, but not limited to, the suitability of lighting, noise mitigation, and size for intended use, the conditions of the facility's furnishings and equipment, and the condition of athletic fields and play area space. As part of this process, District staff determined whether the conditions of school facilities offered to a charter school were reasonably equivalent to those of the comparison group schools.

Matching Guidelines Utilized by the District for Charter School

21. In accordance with applicable law, the District is guided by the following matching guidelines in order to make contiguous offers of space to charter schools in facilities with reasonably equivalent conditions to those which would accommodate the charter students if they otherwise attended District schools:

- Consider student safety and welfare
- Identify reasonably equivalent facilities
- Minimize the number of sites assigned
- Make reasonable efforts to provide facilities near to where the charter school wishes to locate
- Avoid moving a charter school unnecessarily
- Minimize disruption to District and charter programs
- Fairly balance the needs of District and charter programs
- Avoid displacing any District students from their school of attendance
- Maximize use of unallocated classroom space (i.e., those with no designated use and would be vacant/unassigned in a particular fiscal year, as identified in the District's annual comprehensive analysis of space on District school sites. Classrooms used to provide additional programming or services are not considered unallocated classroom space, and are categorized according to their specific designation).

22. District staff makes every reasonable effort to locate space on a single site, or on multiple sites only if necessary or specifically requested by the charter school, in the charter school applicant's geographic area of interest. Consequently, District staff first attempts to accommodate charter schools at a single school site and looks for available facilities sufficient to accommodate the entirety of a charter school's projected in-district classroom ADA within its desired area of geographic interest. Only when no single school site can be feasibly identified based upon school site design and occupancy limitations, as well as after taking into account the paramount

considerations of both District and charter school student safety and welfare, does the District make offers that contemplate the use of multiple school sites.

23. District staff first identifies the classroom inventory by grade level configuration in each geographic region. Grade-alike matches typically provide reasonably equivalent space to charter schools; therefore, wherever possible, District staff allocates space to charter applicants on grade-alike school facilities.

24. District staff next identifies which charter school applicants are currently located in District facilities that they have identified in their geographic area of interest for the following Proposition 39 cycle and, when feasible, matches those charter schools to those school sites. District staff then examines and identifies the geographic areas of interest of other charter school applicants. As described above, multiple charter schools often request space in the exact same location so District staff must assess conflicting geographic as well as particular site interests. In doing so, District staff examines whether the potential match would utilize all available classrooms and whether the match represents a full, single-site offer. Priority is given to those charters where these two goals can be achieved.

25. Based on an examination of these criteria, District staff makes a preliminary match of available classrooms at a particular site to the projected in-district classroom ADA of each charter school. District staff attempts to find the most geographically relevant grade-alike matches. District staff seeks to minimize disruption to and fairly balance the needs of District and charter programs. For multi-site scenarios, District staff eliminates set-asides whenever reasonably possible to reduce the number of sites assigned to a charter school, which often results in being able to transform multi-site offers to single-site offers. While endeavoring to preserve programmatic spaces essential to enriching instruction and student health and human services, District staff may need to engage in the materially disruptive measure of eliminating or otherwise impacting set-asides used to provide services at District schools in order to share space fairly among charter and non-charter students in the District. Set-asides are divided into two categories: District set-asides and School set-asides.

26. School set-asides allocate space for instructional, safety, and health programs that are specific to a particular school. For example, Title I funding coordinator offices are considered School set-asides. Title I funding provides financial assistance to schools with high numbers or high percentages of low-income children to help ensure that all children meet challenging state academic standards. The District uses Title I funds to provide additional academic support and learning opportunities to help low-achieving children master challenging curricula and meet state standards in core academic subjects. Such funds support extra instruction in reading and mathematics, as well as special preschool, after-school, and summer programs to extend and reinforce the regular school curriculum. Additionally, School set-asides are used to allocate space for small learning community (“SLC”) offices. An SLC, also referred to as a School-Within-A-School, is a form of school structure in secondary schools to subdivide large school populations into smaller, autonomous groups of students and teachers. SLCs include structures such as freshman academies, multi-grade academies organized around career interests or other themes, “houses” in which small groups of students remain together throughout high school, and autonomous schools-within-a-school, as well as personalization strategies, such as student advisories, family advocate systems, and mentoring programs. Research continues to show that small schools and SLCs have the necessary elements to counteract the inherent negative effects of poverty and poor academic achievement for low-income students and/or students of color. (Cotton, *New Small Learning Communities: Findings from Recent Literature*, Portland, Ore: Northwest Regional Educational Laboratory (2001); Jimerson, *The Hobbit Effect: Why Small Works in Public Schools*, The Rural School and Community Trust (August 2006).)

27. At the middle school level, School set-asides are used, for example, for Personal Learning Environment (“PLE”) offices, the middle school equivalent to an SLC. Likewise, School set-asides may be used for the District’s Response to Instruction and Intervention (“RTI²”) program. RTI² integrates assessment and intervention within a multi-level prevention system to maximize student achievement and to reduce behavior problems. With RTI², schools identify students at risk for poor learning outcomes, monitor student progress, provide evidence-based interventions and

adjust the intensity and nature of those interventions depending on a student's responsiveness, and identify students with learning disabilities or other disabilities. In order to provide space to charter schools requesting Proposition 39 facilities, District staff has eliminated or reduced the number of School set-asides on certain campuses. This instructional disruption unfortunately disproportionately affects low-income, low-performing, or disabled District neighborhood children, those who need assistance the most. However, District staff has taken these disruptive measures in order to share facilities fairly with charter schools.

28. District set-asides use school space to implement key District-wide instructional, health, and safety programs. For example, these set-asides include space for District police, regional special educational testing centers, health center clinics, food service, and Beyond the Bell programs, among others. Eliminating these set-asides would deny or interfere with students' ability to receive the special education and related services to which they are entitled, or force students to travel as much as 50 miles to the next closest center. In the 2023-24 fiscal year, the District's school-based health clinics are projected to provide approximately 156,000 visits to children who would otherwise have been challenged to access health care. The demand for health services remains as high as it did in the previous school year, and to eliminate these clinics would deprive the neediest children of vital services. Additionally, Beyond the Bell programs ensure that all children and youth in the District have access to high-quality, safe, and supervised academic, enrichment, and recreation programs that inspire learning and achievement beyond the regular school day (before and after school and Saturdays). The three components of Beyond the Bell include academic tutorial, recreational, and enrichment programs vital to the safety and wellbeing of school children. Improved school attendance and test scores have been attributed to student participation in Beyond the Bell's after-school programs. By providing supervision and engagement during after school hours when many parents may be working outside the home, Beyond the Bell's programs help reduce the risk that children might engage in drug or alcohol use sexual activity, and/or crime. To eliminate Beyond

the Bell programs would expose the thousands of children who utilize these programs on a daily basis to danger, harming their academic performance and their overall wellbeing.

29. Although District and School set-asides provide space for programs that are vital to the curriculum of a particular school or to District-wide goals, in order to share space fairly, District staff has cut into these set-asides where doing so would minimize the number of sites offered to a charter school in order to make a complete offer of space.

30. For the Next Fiscal Year, District staff had to grapple with the conflicting needs of 46 different charter school applicants and cycled through its comprehensive space matching process as conscientiously as possible, shifting space and potential matches to fulfill the District's obligation to share space fairly among all students – charter school students and those students attending District schools alike. In doing so, District staff kept in the forefront considerations of student safety and welfare.

31. Often, many charter schools request to be located at the same school site, requiring District staff to assess conflicting geographic as well as particular site interests. In fact, 13 different charter schools (including Charter School) requested space in Region North for the Next Fiscal Year. District staff had to contend with the conflicting needs of these 13 charter schools, as well as all 46 eligible charter school applicants, shifting space and potential matches to fulfill the District's obligation to share space fairly among all in-district students. The process is extraordinarily dynamic with a complex set of ever-changing pieces, decisions regarding any one of which can result in very real ripple effects for students and programs across multiple school sites.

32. The District's space matching guidelines are just that – guidelines. They cannot be applied in a vacuum and without rationale. In allocating space to charter schools, the District must consider the impact on other public school students, both those attending District schools and those attending other charter schools requesting space. District staff applied the District's matching guidelines in conjunction with thoughtful considerations of the real world impacts on all public students in providing co-location offers to charter schools for the Next Fiscal Year.

33. The District began its space analysis for Charter School by examining data from E-CAR for the Requested Sites related to the 2024-25 school year. As explained above, the E-CAR enrollment for the Requested Sites is reflected in classroom usage as of September 15, 2023, which is known as “Norm Day.” The E-CAR data is a “snapshot in time” that reflects classroom availability and usage at a particular school site at the time it is prepared. It is the baseline for the District’s comprehensive space analysis of the current and projected utilization and availability of space for a charter school. It does not contemplate any prospective future revisions or factor in projected classroom usage for any subsequent school year, or changes in space utilization needs that occur after the E-CAR data is prepared, such as, for example, increases or decreases in the District school site’s enrollment projections for the upcoming school year, planned programmatic expansions, adjustments to ADA-to-classrooms ratios and/or assigned teachers, changes to grade levels served, construction projects, removal of portable classrooms, charter schools’ potentially forthcoming Proposition 39 facilities requests, the planned occupancy by other charter schools or District programs, or any other factor that would result in an adjustment of the number of available classrooms for the Next Fiscal Year. E-CAR data indicated 0 unassigned/unallocated standard size classrooms at Lorne Street Elementary, 0 unassigned/unallocated standard size classrooms at Shirley Avenue Elementary, and 0 unassigned/unallocated standard size classrooms at Sunny Brae Avenue Elementary at Norm Day.

34. In the second week of November 2023, Region Offices were provided information regarding charter schools that had requested Proposition 39 space, and potential space availability at District school sites. Region North was advised of the District school site(s) and/or general geographic area in which Charter School wishes to locate, and that it was entitled to exclusively use a total of 16 spaces (13 instructional spaces, 2 special education spaces, and one administrative office space) for the Next Fiscal Year. Region North was also advised that there were 13 charter schools that had requested facilities within that same Region.

35. Meetings were also conducted between CSD, SMS-MPD, and others, so that additional

District stakeholders such as Region Office leadership and school-site staff could provide further valuable input regarding important information, such as impacts of a potential co-location at a particular school site or unique site conditions that might make it unsuitable. Various provisional matches within each Region were identified and deliberated, and participants thoughtfully discussed potential recommendations as part of the District's comprehensive compliance effort. Per established protocols, the District also invited labor partners, including United Teachers Los Angeles, to Advisory meetings to offer feedback.

36. During the course of the meetings and numerous additional discussions, CSD, Region North, District administrators, SMS-MPD, and others discussed that none of the Requested Sites or Other Considered Sites will have adequate availability of space in the Next Fiscal Year to accommodate Charter School's entire projected in-district classroom ADA due to the planned programmatic needs as accounted for in the E-CAR. Information considered included, but was not limited to, the following:

School Site	Distance from Centroid of the Requested Sites (miles)	Projected Number of Available Spaces in Next Fiscal Year
Melvin Avenue Elementary	0.57	2
Blythe Street Elementary	0.69	0
Reseda Elementary	0.79	0
Stanley Mosk Elementary School	1.29	0
Napa Street Elementary	1.41	0
Garden Grove Elementary	1.43	0
Winnetka Avenue Elementary	1.61	0
Bertrand Avenue Elementary	1.8	0
Cantara Street Elementary	1.83	3
Fullbright Avenue Elementary	1.98	0
Vanalden Avenue Elementary	2.01	0
Newcastle Elementary School	2.27	0
Calvert Charter for Enriched Studies	2.37	0
Calahan Street Elementary	2.45	3
Anatola Avenue Elementary	2.45	0
Limerick Avenue Elementary	2.58	0

Lemay Street Elementary	2.6	0
Tarzana Elementary	2.67	0
Stagg Street Elementary	2.95	0
Hart Street Elementary	2.96	1
Emelita Street Elementary	3.06	0
Gault Street Elementary	3.16	0
Topeka Drive Charter for Advanced Studies	3.23	0
Wilbur Charter for Enriched Academics	3.54	0
Academy for Enriched Sciences Elementary Magnet	3.58	0
Superior Street Elementary	3.61	0
Canoga Park Elementary	3.78	0
Dearborn Elementary Charter Academy	3.78	1
Parthenia Academy of Arts and Technology	3.8	0
Nestle Avenue Charter	4.01	0
Nevada Avenue Elementary	4.14	0
Andasol Avenue Elementary	4.54	0
Balboa Elementary Gifted/Highly Gifted/High Ability Magnet	4.55	0
Capistrano Avenue Elementary	4.6	0
Serrania Avenue Charter for Enriched Studies	4.64	0
Beckford Charter for Enriched Studies	4.85	0
Cohasset Street Elementary	4.92	0
Darby Avenue Elementary	4.95	0
Encino Charter Elementary	4.96	0
Bassett Street Elementary	5	0
Hamlin Charter Academy	5	0
Germain Academy for Academic Achievement	5.04	0
Enadia Way Technology Charter	5.27	0
Mayall Street Academy of Arts/Technology Magnet	5.32	0
Gledhill Street Elementary	5.38	0
Granada Elementary	5.64	5
Chatsworth Park Elementary UP/CD Magnet	5.68	0
Langdon Avenue Elementary	5.7	0
Woodland Hills Charter Elementary for Enriched Studies	5.72	0
Justice Street Academy Charter	5.83	0
Columbus Avenue Elementary	6.06	0
Valerio Street Elementary*	6.1	0
Vintage Elementary Math/Science/Technology Magnet	6.13	0
Welby Way Charter Elementary Gifted Magnet	6.15	0
Noble Avenue Elementary	6.17	0
Woodlake Elementary Community Charter	6.25	0

Lanai Road Elementary	6.27	0
Rosa Parks Learning Center	6.32	1
Pomelo Community Charter School	6.35	0
Carlos Santana Arts Academy	6.35	0
Tulsa Street Elementary	6.4	0
Sylvan Park Elementary	6.42	0
Panorama City Elementary	6.58	0

* Identified as a Proposition 39 co-location site for another charter school

Also evaluated were the needs, as operationally feasible and permitted by law, to support the District's 100 Priority Schools, Black Student Achievement Program (BSAP) schools, and Community Schools, and avoid outcomes that would compromise District schools' capacity to serve neighborhood children and/or result in grade span arrangements that negatively impact student safety and actively deter students from attending District schools. Due to these circumstances, none of the Requested Sites or Other Considered Sites will be unable to accommodate Charter School's entire projected in-district classroom ADA in the Next Fiscal Year.

37. In summary, the District has no realistic ability to allocate 16 exclusive use classroom spaces to Charter School at the Requested Sites or Other Considered Sites for the Next Fiscal Year. Allocating such space to Charter School would present significant safety, educational, scheduling, facilities, and operational challenges, and result in significantly harmful negative impacts, displacements, and disruptions to students at the Requested Sites or Other Considered Sites. Allocating such space to Charter School would result in an unfair sharing of space between Charter School and the Requested Sites or Other Considered Sites.

38. If Charter School was provided 16 classroom spaces at the Requested Sites or Other Considered Sites, it would so severely diminish the Requested Sites or Other Considered Sites programs' usable instructional space that it could require some of its teachers to hold classes outside of classroom settings. Alternatively, the Requested Sites or Other Considered Sites could either overcrowd existing classrooms by reducing teaching staff and increasing the number of student desks in classrooms or require two teachers to teach class simultaneously in one classroom. Both options would not only overburden the teachers forced to teach those classes, but would also unfairly

crowd students and block safe access to doors. None of these possibilities are realistically feasible.

39. District staff has determined that the quality of the education for students attending school at the Requested Sites, Other Considered Sites, and Charter School would suffer significantly if Charter School were provided 16 classroom spaces at the Requested Sites or Other Considered Sites. Existing space constraints at the Requested Sites and Other Considered Sites have already substantially impacted students, teachers, staff, and administrators. Provision of facilities sufficient to accommodate the entirety of a charter school's projected in-district classroom ADA in the Next Fiscal Year would further exacerbate the negative harmful impacts to such a point that it would be impossible for all of the students to share space fairly and receive a proper education. It would also result in increased emotional hardship and further loss of morale in students, teachers, staff, and administrators alike.

40. To accommodate Charter School's entire in-district classroom ADA at the Requested Sites or Other Considered Sites would also present substantial safety concerns for both charter and non-charter District students. By way of example, District staff estimated that to accommodate all of Charter School's students at the Requested Sites or Other Considered Sites would require the forcible displacement of a significant number of students attending school at the Requested Sites or Other Considered Sites. Displacing students out of the Requested Sites or Other Considered Sites would have far-reaching safety, instructional, and social implications.

41. For instance, many of the students attending school at the Requested Sites and Other Considered Sites walk to and from their school. Recent District budgetary cutbacks and the harsh economic climate have made the ability to walk to school a necessity for many families with in-district children. The District school bus program has realized service cuts and route eliminations which have affected many students. As a result of past budget deficits, transportation funding was reduced as part of stabilization efforts. The latest impact came in July 2012, when the District was forced to implement a change to the eligible busing distance for secondary schools from three miles to five miles. These cuts disproportionately affect poorer students and make the ability to walk to

school even more crucial.

42. Not only is the ability to walk to school at the Requested Sites and Other Considered Sites a necessity for some students, but walking to school also provides key health benefits. According to the California Department of Public Health (“DPH”), close to one-third of California’s children are overweight or obese. The DPH’s California Active Communities (“CAC”), in collaboration with CA4Health (a project of the Public Health Institute, with funding from the Centers for Disease Control and Prevention) has determined that a child’s overall health is affected by levels of physical inactivity which can be directly linked to time spent in automobiles versus in active transportation such as walking. Walking or biking to school provides an opportunity for purposeful physical activity toward the accumulation of the recommended 60 minutes or more of daily physical activity for children and youth. (Martin, Moeti and Pullen-Seufert, *Implementing Safe Routes to School: Application for the Socioecological Model and Issues to Consider* (2008).) Active transportation – such as walking and biking – to school can help increase physical activity levels of students and their families. (ChangeLabSolutions, *Incorporating Safe Routes to School into Local School Wellness Policies* (July 2015).) Physical activity reduces the risk of obesity and related chronic diseases, and improves mental health, attendance, and academic performance. (*Ibid.*) Active transportation can also have broad community benefits, including reducing traffic congestion and air pollution, creating safer streets, encouraging cost savings, and building a stronger sense of community. (*Ibid.*) Increasing physical activity through walking and biking to school can help address high obesity rates. (*Ibid.*)

43. Empirical studies have determined that distance is a key impediment to children walking to school safely. (Martin, Moeti and Pullen-Seufert, *Implementing Safe Routes to School: Application for the Socioecological Model and Issues to Consider* (2008).) A study published in the *Journal of Public Health Policy* examines the multi-level correlates of walking to and from school. Of the physical environmental factors examined, the strongest negative correlates to walking to school were distance and safety concerns. (Zhu & Lee, *Correlates of Walking to School and*

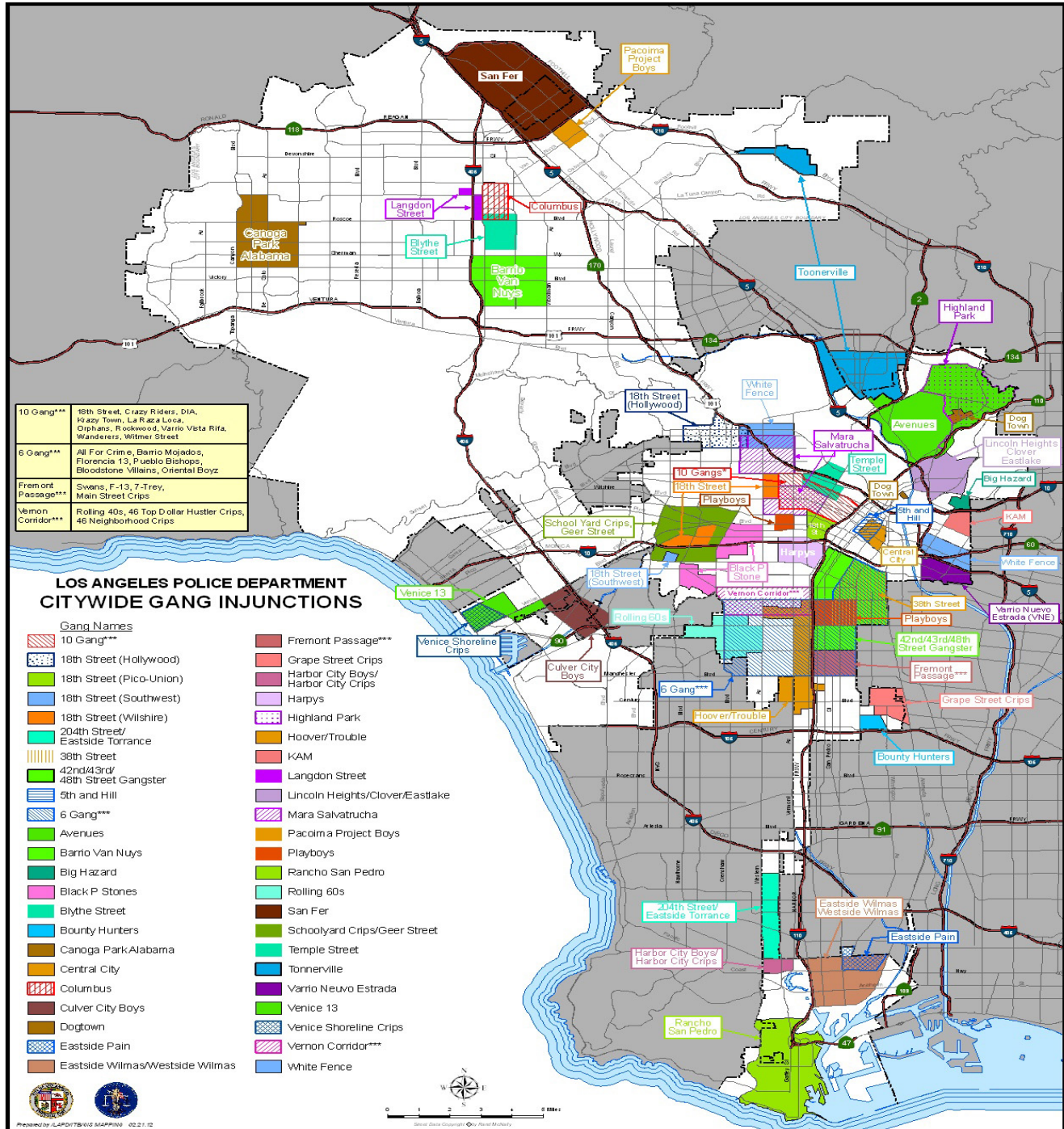
Implications for Public Policies, Journal of Public Health Policy (2009).) Recognizing distance as a barrier to the ability for a child to walk to school, CA4Health, the CAC, and the DPH support school siting as well as joint use policies and practices that encourage kids to walk or bike to school.

44. Displacing a significant number of students from the Requested Sites or Other Considered Sites to make room for Charter School would prevent a significant number of the children who currently have the ability to safely walk to school from being able to do so. Conversely, Charter School draws its attendance from 50 different District schools. Therefore, providing a single-site offer at the Requested Sites or Other Considered Sites to Charter School would endanger a significant number of children currently attending their nearby school. Moreover, the forcible displacements would not just be limited to the children attending school at the Requested Sites or Other Considered Sites. Instead, those students would need to be absorbed into other District schools which may have insufficient space, programs and/or resources to house the influx of students, and would thereby cause the additional forcible displacement of children from these absorbing schools. This would create a ripple effect of forcible displacements necessitating hundreds of children to relocate for the benefit of a far lesser number of Charter School's children. Such a decision would pose disproportionate harm to a significant number of students attending school at the Requested Sites, Other Considered Sites, and those District students displaced by the influx of these students, and thus produce inequity in the sharing of facilities.

45. Not only does distance play a factor in children safely walking to school due to traffic dangers, but several Los Angeles neighborhoods are plagued by gang violence. In order to create safe passages to and from school in neighborhoods suffering from gang-related violence, meaningful programs and efforts to mitigate these risks have been launched, such as Kid Watch LA which instituted the Walking School Bus for District students. The Walking School Bus enlists parent and community volunteers to accompany groups of small children as they walk to and from their school.

46. According to the Los Angeles Police Department, the District is located within the territory known as the "gang capital" of the nation, with more than 450 competing gangs. Gang

violence is unfortunately prevalent on some campuses and within the neighborhoods of several District schools. As shown by the map depicting former gang injunctions in Los Angeles below, Los Angeles gangs claim particular territories:



47. On March 15, 2018, the City of Los Angeles was enjoined from enforcing these gang injunctions. (See, *Youth Justice Coalition, et al., v. City of Los Angeles, et al.*, CV 16-07932 VAP.) The inability to enforce these injunctions may result in an increase in gang-related activity and crime.

48. Involuntarily displacing students who themselves or whose parents are tied to a particular gang and placing them in a different school located in the territory of another gang would potentially breed gang warfare and violence affecting all children, teachers, staff, and parents at a particular school.

49. Pulling children out of their District schools and placing charter students at those school sites prevents the displaced children from taking advantage of safety measures such as the Walking School Bus and other relevant considerations their families have made, and therefore unfairly endangers the safety of those displaced children. These harms disproportionately affect students attending District schools. As parents of charter school students have elected to send their child to a school outside of his or her local attendance area, the parents have secured a means of transporting their child to this school. However, parents of children who attend District schools may not have the means to find alternate transportation and need to rely on children walking to their school. With the aforementioned reduction of several school bus routes and potential further elimination of transportation funding, many forcibly displaced children will be forced to walk long, unsafe distances or take unsafe public transit routes.

50. Displacing children attending school at the Requested Sites or Other Considered Sites for the purpose of making a single-site offer to Charter School would have additional instructional and social ramifications. California has an accountability system reported through the California School Dashboard. The state's accountability system includes a three-level identification and support system for local educational agencies, and categorizes district performance levels using a system of five status levels (ranging from Very High, High, Medium, Low and Very Low). The 2022 Dashboard showed the District was assigned a Medium Status level for two of the six state indicators based on the performance of all student groups: English Learner Progress and Graduate

Rate indicators. A Low status level was assigned to English Language Arts (“ELA”) and Mathematics, and a Very Low status level for Suspension Rate. The District received one Very High-status level for Chronic Absenteeism. Of the thirteen student groups reported, four were in the Very Low status level, five in Low, three in High, and one in Very High. For the 2023 Dashboard, District performance levels were categorized using a system of five colors, stated in order from lowest to highest performing (Red, Orange, Yellow, Green, and Blue), except in the College/Career Indicator. The 2023 Dashboard results indicate that the District received an Orange performance level for English Learner Progress, Graduation Rate, and English Language Arts (Academic Indicator). The District also received a Yellow performance level for Chronic Absenteeism and Mathematics (Academic Indicator). Though the District received a Yellow indicator for Chronic Absenteeism, it is important to note that the District decreased its chronic absenteeism by 8.8-percentage points to 31% from 39.8% in 2022. In addition, the District received a Blue performance level for its Suspension Rate, and a Medium status level for the College/Career Indicator. In examining the performance of the thirteen student groups, the Dashboard indicates that no student received a Red performance level for Chronic Absenteeism. Among the other indicators, only three of thirteen student groups received at least one Red performance Level. In contrast, twelve student groups received at least one Blue performance level.

51. The District is continuing its efforts to improve performance in all state indicators. Displacing District children attending their District school at the Requested Sites or Other Considered Sites would thwart these efforts, and have instructional and social ramifications. Studies have empirically established that disrupting a child’s trajectory to his or her district high school effectively increases drop-out rates. A review of 25 years of research conducted by the California Dropout Research Project identified strong predictors of dropping out of high school. The compilation study identified non-promotional school changes (student mobility) during middle school and high school as a key predictor of a child dropping out of school. (Rumberger & Lim,

Why Students Drop Out: A Review of 25 Years of Research, California Dropout Research Project (October 2008).)

52. In 1998, a seminal study on the educational consequences of student mobility found a high causal connection between student mobility and an increased risk of high school drop-out. The staggering results of this study indicate that controlling for other predictors, students who made even one non-promotional school change between the eighth and twelfth grades were *twice* as likely to not complete high school as students who did not change schools. (Rumberger & Larson, *Student Mobility and the Increased Risk of High School Dropout*, American Journal of Education 107 (November 1998).)

53. The safety and welfare of all students is the District's paramount concern and principal charge. The data is indisputable that children who drop out of school are at far greater risk of a vast array of physical, social, and economic harm than those who stay in school and complete their secondary education. This paramount concern of the District remains a material consideration when weighing whether to forcibly displace children from their existing school (such as the Requested Sites or Other Considered Sites) in order to make way for students who would attend school at that site (such as Charter School) from distant neighborhoods, especially when other solutions for sharing space fairly are feasible.

54. An additional impact of such displacement would be the difficulty of sustaining the same level of parental involvement in the absorbing schools. California State Board of Education Policy #89-01 acknowledges that a critical dimension of effective schooling is parental involvement. This policy initiative states that research studies demonstrate parental involvement at school propels a child's educational career. Forcibly displacing students attending school at the Requested Sites or Other Considered Sites would make it more challenging for those children to reap the benefits of parental involvement in their new schools.

55. An alternative to displacing students attending school at the Requested Sites or Other Considered Sites would be to overcrowd the site by adding Charter School's entire in-district

classroom ADA. However, this would cause severe safety and operational ramifications due to the design capacity of the Requested Sites and Other Considered Sites, making this course of action infeasible. Adding Charter School's students to the Requested Sites, Other Considered Sites, or any other District campus with insufficient space to feasibly accommodate Charter School's total in-district classroom ADA would raise schools' classroom loading ratios, thereby disadvantaging these schools' children. Likewise, having children over a school site's capacity sharing space would pose a great risk to student safety and well-being.

56. In making decisions regarding allocations of space, District staff placed the safety of students attending Charter School, the Requested Sites, Other Considered Sites, and other charter and District schools at the forefront of the decision-making process. District staff made substantial efforts to locate charter schools, including Charter School, at or near their desired geographic location and further made material efforts to minimize the number of sites on which each charter school was located. As Charter School's parents/guardians have made a decision to place their child in a school outside of their District school, they have had the opportunity to weigh the safety implications of this decision for their child. On the contrary, the families of forcibly displaced students would have no place in such a decision-making process. Thus, forcibly displacing children from any of the Requested Sites, Other Considered Sites, and/or other impacted District schools would not afford their parents/guardians the same opportunity. In addition, the decision to forcibly displace students to make way for Charter School students necessarily will have safety impacts upon the displaced children, whereas, given the fact that many Charter School students already voluntarily travel to attend Charter School, these children may not face any increased safety risk by being required to, for example, travel five miles east instead of five miles south.

57. Based on the foregoing, the District determined that it was simply not feasible to provide Charter School with a single-site offer at any of the Requested Sites or Other Considered Sites for the Next Fiscal Year.

58. While it is always the District's goal to accommodate a charter school's entire program on a single District school site, sometimes charter schools must be offered space on more than one site, particularly if, as in the case of Charter School, the charter school has a large projected in-district classroom ADA. Therefore, the following spaces have been identified for allocation to Charter School at the Requested Sites in the Next Fiscal Year: 7 classrooms (4 instructional spaces, 2 special education spaces, and one administrative office space) at Sunny Brae Avenue Elementary; 8 classrooms (5 instructional spaces, 2 special education spaces, and one administrative office space) at Shirley Avenue Elementary; and 7 classrooms (4 instructional spaces, 2 special education spaces, and one administrative office space) at Lorne Street Elementary.

59. Although it would be preferable to accommodate Charter School's entire program at one of the Requested Sites or Other Considered Sites for the Next Fiscal Year, for the reasons set forth herein it is not possible to provide Charter School with 16 classrooms at any of the Requested Sites or Other Considered Sites without presenting significant, safety, educational, scheduling, facilities, and operational challenges. The Sunny Brae Avenue Elementary, Shirley Avenue Elementary, and Lorne Street Elementary sites are all within Region North and were identified by Charter School as sites within its area of geographic interest. The Sunny Brae Avenue Elementary and Lorne Street Elementary sites are within Board District 3 and the Shirley Avenue Elementary site is within Board District 4, and all three sites are less than 5 miles from one another. Considering that the District spans over 710 square miles and serves over 27 cities, and based on the plain language of California Code of Regulations, title 5, section 11969.2, subdivision (d), the Shirley Avenue Elementary, Lorne Street Elementary, and Sunny Brae Avenue Elementary sites are "contiguous."

60. Based on all of the foregoing considerations, District staff recommends providing Charter School with a multi-site offer of contiguous facilities at the Recommended Co-Locations.

ATTACHMENT 11(b): MAGNOLIA SCIENCE ACADEMY 7**Board of Education Finding that Magnolia Science Academy 7 Cannot Be Accommodated at a Single Site and Written Statement of Reasons Explaining the Finding (Cal. Code Regs., tit. 5, § 11969.2, subd. (d))**

Whereas, Under Proposition 39, the Los Angeles Unified School District (“District”) is required to fairly share space between public school pupils, charter and non-charter students alike;

Whereas, In making an allocation of space, the District attempts to place a charter school applicant on one school site or, when that is not feasible, alternatively attempts to minimize the number of school sites on which the charter school applicant is placed;

Whereas, In making an allocation of space, the District materially considers the safety implications to charter and District school students of making a multi-site offer, and balances the safety, instructional, and social consequences of displacing children from their District schools, as well as the burdens associated with such an action on their parents and the community;

Whereas, For the Next Fiscal Year, 46 charter schools requested facilities under the Proposition 39 process, asking for approximately 13,110 seats from the District;

Whereas, Charter School submitted an application for Proposition 39 facilities for the Next Fiscal Year;

Whereas, The Board hereby incorporates by reference the entire Staff Report on the Deliberative Process for Determining Why Charter School Cannot be Accommodated at a Single Site for the Next Fiscal Year;

Whereas, District staff engaged in an effort to create a single-site offer to accommodate Charter School’s total in-district classroom ADA;

Whereas, The District cannot accommodate Charter School’s request for a single site at any of the District school site(s) and/or in the geographic area in which Charter School wishes to locate;

Whereas, 13 different charter schools (including Charter School) requested space in Region North for the Next Fiscal Year;

Whereas, District staff determined that the Requested Sites (the District school sites or general geographic area in which Charter School wishes to be located) will not have sufficient classroom space to accommodate Charter School’s entire projected in-district classroom ADA in the Next Fiscal Year;

Whereas, District staff then expanded its search to Other Considered Sites near to the Requested Sites, but determined that it is not possible to accommodate Charter School’s entire student population on a single site in the Next Fiscal Year;

Whereas, The District cannot accommodate Charter School's entire in-district classroom ADA at a single school site;

Whereas, To accommodate Charter School's entire in-district classroom ADA at the one of the Requested Sites or Other Considered Sites would present substantial, disproportionate safety concerns for both Charter School's students and students attending their District school;

Whereas, To accommodate all of Charter School's students at the one of the Requested Sites or Other Considered Sites would require the displacement of a significant number of children attending school at the Requested Sites or Other Considered Sites, and potentially additional District schools;

Whereas, Involuntarily displacing children out of their existing District schools has far-reaching safety, instructional, and social implications including: prohibiting children from safely walking to school; subjecting children to possible gang violence; increasing high-school drop-out rates; and impairing parental involvement in their children's schools;

Whereas, Based on these safety and instructional considerations, District staff recommends keeping the student populations at the Requested Sites, Other Considered Sites, and the other District schools intact;

Whereas, Alternatively, over-crowding a school's campus in order to provide a single-site offer to Charter School would have equally severe safety and operational ramifications, making this course of action infeasible;

Whereas, The District can provide Charter School with a multi-site contiguous offer of reasonably equivalent facilities at the Recommended Co-Locations;

Whereas, Providing Charter School space at the Recommended Co-Locations minimizes the number of sites assigned to Charter School;

Whereas, Because of the short distance between the Recommended Co-Locations in a school district spanning 710 square miles and serving over 27 cities, they are contiguous facilities;

Whereas, By providing space to Charter School at the Recommended Co-Locations, the District has made reasonable efforts to provide Charter School with facilities near to where Charter School wishes to locate; and

Whereas, The District can make a complete and contiguous, multi-site offer to accommodate Charter School's entire in-district classroom ADA; therefore be it

Resolved, That pursuant to California Code of Regulations, title 5, section 11969.2, subdivision (d), for the reasons set forth herein and as further expressed by District staff, the Governing Board of the Los Angeles Unified School District finds that the District cannot accommodate Charter School at a single school site; and therefore be it finally

Resolved, That pursuant to Education Code sections 35160-35160.1 and 47614, and California Code of Regulations, title 5, section 11969.1, et seq., for the reasons set forth herein and as further expressed by District staff, the Governing Board of the Los Angeles Unified School District authorizes a preliminary proposal and final offer of facilities to Charter School for the Next Fiscal Year at multiple District school sites.

ATTACHMENT 12(a): SYNERGY CHARTER ACADEMY**Staff Report on Deliberative Process for Determining Why Synergy Charter Academy Cannot be Accommodated at a Single Site****Charter School's Facilities Request**

1. On or before November 1, 2023, Synergy Charter Academy ("Charter School") submitted a Proposition 39 Online Facilities Request Form ("Facilities Request") to the District, requesting use of District facilities for a projected in-district classroom average daily attendance ("ADA") of 318.25 in grades TK-5 for the 2024-25 school year ("Next Fiscal Year"). Charter School identified 21 different District schools that its charter school students would otherwise attend. Charter School's Facilities Request was one of 46 that the District received for the Next Fiscal Year. Charter School requested facilities at Quincy Jones Elementary. Charter School is currently operating at Quincy Jones Elementary.

2. District staff reviewed information provided in support of Charter School's ADA projections and determined that a reasonable in-district classroom ADA projection for Charter School is 317.80.

3. Education Code section 47614, subdivision (b) requires the District to provide charter schools with facilities sufficient for the charter school to accommodate all of its in-district students in conditions "reasonably equivalent" to those in which the students would be accommodated if they were attending other public schools of the district.

4. To determine whether the conditions of facilities provided to a charter school are "reasonably equivalent" to the school district facilities that charter school students would otherwise attend, the District adheres to the Proposition 39 implementing regulations (California Code of Regulations, title 5, section 11969.1, et seq.) which direct school districts to measure those facilities against the facilities used by district students at a "comparison group" of schools. As the District is divided into high school attendance areas, in selecting comparison group schools, the

District must follow California Code of Regulations, title 5, section 11969.3, subdivision (a)(2), which states, “[t]he comparison group shall be the district-operated schools with similar grade levels that serve students living in the high school attendance area... in which the largest number of students of the charter school reside.” District staff reviewed Charter School’s projected in-district classroom ADA broken down by grade level and its identification of the 21 different District schools its projected charter school students would otherwise attend. Based on the information provided by Charter School, District staff determined that the attendance area where the largest number of Charter School’s projected students reside is the Jefferson Zone of Choice attendance area. Consequently, based on the grade levels that Charter School projects it will serve, District staff identified the following as the District-operated schools with similar grade levels that serve students within the Jefferson Zone of Choice attendance area; i.e., Charter School’s comparison group schools: 20th Street Elementary, 28th Street Elementary, 49th Street Elementary, Ascot Avenue Elementary, Aurora Elementary, Estrella Elementary, Harmony Elementary, Hooper Avenue Elementary, Hooper Avenue Primary Center, Huerta Elementary, Quincy Jones Elementary, Ricardo Lizarraga Elementary, Main Street Elementary, Maple Primary Center, Nevin Avenue Elementary, Sally Ride Elementary: A Smart Academy, San Pedro St Elementary, Trinity Street Elementary, Wadsworth Avenue Elementary, and West Vernon Avenue Elementary.

5. The District also follows California Code of Regulations, title 5, section 11969.3, subdivision (b)(1), which requires that the facilities made available by a school district to a charter school shall be provided in the same ratio of teaching stations (classrooms) to ADA as those provided to students in the district attending comparison group schools. To implement a fair sharing of space, the District determines the ratio of ADA-to-classrooms provided for each of the charter school’s comparison group schools and uses an average of those figures to determine the number of classrooms to provide to the charter school. It also results in the District allocating classroom space sufficient to allow a charter school to maintain the same minimum number of

seats in a classroom as maintained in the District's comparison group schools, that is, to maintain conditions reasonably equivalent to the comparison group schools as required by Proposition 39. In other words, it results in accommodating charter school students on District school sites as they would be accommodated if they otherwise attended those District schools. Consequently, this calculation is used to ensure the number of classrooms provided to charter schools is equivalent to the number of classrooms provided at their comparison group schools.

6. Relying upon an in-district classroom ADA projection of 317.80 for the Next Fiscal Year, and an average ADA-to-classrooms provided ratio at the comparison group schools of 18.01, the District determined that Charter School is entitled to 18 teaching stations (classrooms) and one classroom space to be used as its administrative office. The District also determined that Charter School is entitled to 3 special education classroom(s).

7. Charter School's facilities request states: "Synergy Charter Academy has unique facility needs, which are currently met at the Quincy Jones Elementary school site. Therefore, Synergy Charter Academy would like to remain at Quincy Jones Elementary."

8. Based on the foregoing, if the in-district classroom ADA of Charter School cannot be accommodated entirely at Quincy Jones Elementary in the Next Fiscal Year, District staff recommends allocating Charter School facilities at Quincy Jones Elementary and additional school site(s).

9. Education Code section 47614, subdivision (b), provides that facilities provided to a charter school by a school district must be, among other things, "contiguous." The definition of "contiguous" expressed in California Code of Regulations, title 5, section 11969.2, subdivision (d), states that facilities are "contiguous" if they are contained on the school site or immediately adjacent to the school site, and that if the in-district classroom ADA of a charter school cannot be accommodated on any single school district school site, contiguous facilities also includes facilities located at more than one site, provided that the school district shall minimize the number of sites assigned and shall consider student safety. As explained below, pursuant to Proposition 39, District

staff first engaged in an effort to create a single-site offer to accommodate Charter School's projected total in-district classroom ADA in the Next Fiscal Year at Quincy Jones Elementary. District staff evaluated space at Quincy Jones Elementary (the District school site at which Charter School wishes to locate) and determined that Quincy Jones Elementary will not have sufficient classroom space to accommodate Charter School's total in-district classroom ADA in the Next Fiscal Year. Rather than attempt to locate Charter School on a single site different from the requested site, pursuant to Education Code section 47614, District staff engaged in an effort to satisfy Charter School's request and provide a multi-site allocation of contiguous facilities.

10. Therefore, District staff recommends providing space at the following locations to Charter School to accommodate its total in-district classroom ADA for the Next Fiscal Year: Quincy Jones Elementary and 28th Street Elementary (collectively, the "Recommended Co-Locations"). By providing space to Charter School at the Recommended Co-Locations, the District has made reasonable efforts to provide Charter School with facilities near to where Charter School wishes to locate and to minimize the number of sites assigned to Charter School.

Process District Staff Followed to Locate Space for Charter School Pursuant to

Proposition 39

11. The District's Charter Schools Division ("CSD") determined that in the 2023-24 school year, more than 148,194 students enrolled in charter schools authorized by the District. This figure reflects a 1,865 student decrease compared to the number of students enrolled during the previous school year. In the 2023-24 school year, the District had the most charter students attending schools authorized by a District of any school district in the nation. The District ensured that every eligible in-district charter student was offered a seat.

12. For the 2024-25 Proposition 39 cycle, the District is applying a comprehensive process to ensure that every eligible in-district charter school student is offered a seat at a District campus. The District is following a critical schedule of steps, from receiving the initial request for facilities by a charter school to making facilities ready for occupancy, in order to timely meet the

Proposition 39 timeline. The general process District staff is following in administrating Charter School's Facilities Request is the same that it used to process each of the other facilities requests the District received from charter schools for the Next Fiscal Year. That process is as follows:

13. Beginning in September 2023, School Management Services and Master Planning & Demographics ("SMS-MPD") staff, which includes District personnel in the District's Facilities Services Division experienced in public school facilities utilization that assess all of the educational space within the District, conducted a comprehensive analysis of the use of District classrooms school facilities, called E-CAR. E-CAR was implemented at the beginning of the Proposition 39 process to assess capacity at school sites throughout the District, and commenced with a preparation period during which SMS-MPD staff examined materials submitted by all District schools in the previous year for accuracy, as well as for consistency with previous assessments' classroom usage and availability determinations. The SMS-MPD staff applied standard formulae for the usage of classrooms in order to generate an objective and uniform assessment of the amount of total classroom space at District school sites. The purpose of this calculus is to assess the number of classrooms required to accommodate instructional program enrollment, based on grade level and specific course subject matters at secondary schools.

14. Next, the E-CAR process involves District school principals at more than 700 District school sites logging into an online application to validate their school's enrollment and to review and confirm details regarding the school site's classrooms and their respective utilization. Specifically, the principals identified and validated classroom space utilized as teaching stations and "set-asides" (classrooms used for purposes other than general education), along with classroom numbers, locations, and sizes. Additionally, the principals identified classrooms occupied by special education programs, charter schools, preschools, alternative education programs, option programs, and other third-party users, as well as swing space needed for construction projects, and classrooms that are out of service or mandated for removal due to legal and/or safety/physical condition requirements. The purpose of E-CAR is to accurately assess the

current capacity of each District school site in several respects: the number and size of classrooms, the manner in which those classrooms are currently used, and the school's operating capacity. E-CAR entails a detailed review of the present use of District school sites and an analysis of the projected future uses of those facilities. The analysis includes reporting of data by individual schools, which is reviewed by SMS-MPD staff to confirm its accuracy and to ensure that space is used efficiently and uniformly throughout the District.

15. To ensure that District school administrators are provided the resources necessary for a complete and accurate assessment of their school's capacity, they were instructed to reference the following resource materials for their school site: A current school map; the school's former or most recent Norm Day classification report (which details the number of students enrolled at that school on September 15, 2023); the Norm Day classification report for any magnet centers and/or dual language programs located on the school site; the Classroom Inventory and Allocation Worksheet pages from the prior school year's Capacity Assessment Review report, which contains information for classroom counts and allocations into precisely-defined categories; and the number of teaching positions in all categories, including general education, special day, magnet, dual-language, physical education, and off-norm-funded positions.

16. Categorizing classrooms in this way is important because a school's capacity involves more than its raw seats and room numbers. The District must determine whether a school site has facilities available to sufficiently serve the particular requirements of a school, such as grade levels, special education programs, magnet centers, Small Learning Communities, Personalized Learning Environments, legal mandates, and other student needs.

17. District staff reviewed the foregoing data regarding specific capacity information at District school sites for the Next Fiscal Year. Utilizing this data, SMS-MPD provided CSD with the number of estimated available classrooms, at each District school site given specific operating capacities per programmatic and mandated qualifiers. When planning for maximal use of available school facilities, and in interpreting data generated during the course of facilities planning, it is

absolutely critical to understand the difference between “unallocated classrooms” and “available seats.” To illustrate, a hypothetical District school may not have any unallocated classrooms but may have individual available seats in classrooms currently occupied. As a result, the school may be able to absorb 100 students into its existing classrooms by identifying two free seats spread out among 50 of its classrooms that are used for instruction appropriate to the grade level and subject matter requirements for the students being absorbed. Thus, it is an entirely different proposition to provide and integrate 100 seats across a campus than to provide four or five unallocated classrooms with the same total number of contiguous available seats. In many instances, there may be many available seats in a school, but no unallocated classrooms. This is especially the case for District middle and high schools where the students do not sit in one classroom all day, like an elementary school, but instead attend four or more different classes per day, each in different classrooms and with different teachers and groups of students, in order to receive the mandated curriculum.

18. SMS-MPD generated each instructional program’s operating capacity using a complex mathematical formula which took into account all aspects of the schools’ operations. The operating capacity also accounted for classrooms designated as “set asides.” Public school districts are required to provide special education space, and a parent center at each school which is classified as a set-aside. Also, pre-kindergarten and adult education students are served in classrooms at school sites across the District.

19. District staff analyzed each District school’s estimated available seats and classrooms for the Next Fiscal Year based on the data.

20. As a public institution, the District is required to provide an education to every student who chooses to enroll. The District previously planned its programming and staffing based on estimated enrollment projections, but in the event projections were short, the District was still obligated to provide an education to students who were not originally anticipated. As a safeguard against the overcrowding of classrooms in such situations, the District historically prepared to

reserve 75 seats at every secondary school and 50 seats at every elementary school for additional unanticipated enrollment. Importantly, however, beginning in 2013 and continuing this year, District staff examined the actual historical enrollment data over the last several years at each school site to determine if a trend could be empirically established demonstrating unanticipated growth. Based upon this analysis, the District determined that no seats at any District school sites offered to a charter school should be reserved for unanticipated growth.

21. The District uses the definition contained in California Code of Regulations, title 5, section 11969.3, subdivision (a)(2) to determine comparison group schools. No two schools are identical; however, on a grade-alike basis, a significant majority of the District's schools share reasonably equivalent conditions, especially when taking into account age, quality of materials and state of maintenance, school site size, conditions of surfaces as well as mechanical, plumbing, electrical and fire-life systems, including conformity to applicable codes, availability and condition of technology infrastructure, the condition of the facility as a safe learning environment, including, but not limited to, the suitability of lighting, noise mitigation, and size for intended use, the conditions of the facility's furnishings and equipment, and the condition of athletic fields and play area space. As part of this process, District staff determined whether the conditions of school facilities offered to a charter school were reasonably equivalent to those of the comparison group schools.

Matching Guidelines Utilized by the District for Charter School

22. In accordance with applicable law, the District is guided by the following matching guidelines in order to make contiguous offers of space to charter schools in facilities with reasonably equivalent conditions to those which would accommodate the charter students if they otherwise attended District schools:

- Consider student safety and welfare
- Identify reasonably equivalent facilities
- Minimize the number of sites assigned
- Make reasonable efforts to provide facilities near to where the charter school wishes to locate
- Avoid moving a charter school unnecessarily

- Minimize disruption to District and charter programs
- Fairly balance the needs of District and charter programs
- Avoid displacing any District students from their school of attendance
- Maximize use of unallocated classroom space (i.e., those with no designated use and would be vacant/unassigned in a particular fiscal year, as identified in the District's annual comprehensive analysis of space on District school sites. Classrooms used to provide additional programming or services are not considered unallocated classroom space, and are categorized according to their specific designation).

23. District staff makes every reasonable effort to locate space on a single site, or on multiple sites only if necessary or specifically requested by the charter school, in the charter school applicant's geographic area of interest. Consequently, District staff first attempts to accommodate charter schools at a single school site and looks for available facilities sufficient to accommodate the entirety of a charter school's projected in-district classroom ADA within its desired area of geographic interest. Only when no single school site can be feasibly identified based upon school site design and occupancy limitations, as well as after taking into account the paramount considerations of both District and charter school student safety and welfare, does the District make offers that contemplate the use of multiple school sites.

24. District staff first identifies the classroom inventory by grade level configuration in each geographic region. Grade-alike matches typically provide reasonably equivalent space to charter schools; therefore, wherever possible, District staff allocates space to charter applicants on grade-alike school facilities.

25. District staff next identifies which charter school applicants are currently located in District facilities that they have identified in their geographic area of interest for the following Proposition 39 cycle and, when feasible, matches those charter schools to those school sites. District staff then examines and identifies the geographic areas of interest of other charter school applicants. As described above, multiple charter schools often request space in the exact same location so District staff must assess conflicting geographic as well as particular site interests. In doing so, District staff examines whether the potential match would utilize all available classrooms

and whether the match represents a full, single-site offer. Priority is given to those charters where these two goals can be achieved.

26. Based on an examination of these criteria, District staff makes a preliminary match of available classrooms at a particular site to the projected in-district classroom ADA of each charter school. District staff attempts to find the most geographically relevant grade-alike matches. District staff seeks to minimize disruption to and fairly balance the needs of District and charter programs. For multi-site scenarios, District staff eliminates set-asides whenever reasonably possible to reduce the number of sites assigned to a charter school, which often results in being able to transform multi-site offers to single-site offers. While endeavoring to preserve programmatic spaces essential to enriching instruction and student health and human services, District staff may need to engage in the materially disruptive measure of eliminating or otherwise impacting set-asides used to provide services at District schools in order to share space fairly among charter and non-charter students in the District. Set-asides are divided into two categories: District set-asides and School set-asides.

27. School set-asides allocate space for instructional, safety, and health programs that are specific to a particular school. For example, Title I funding coordinator offices are considered School set-asides. Title I funding provides financial assistance to schools with high numbers or high percentages of low-income children to help ensure that all children meet challenging state academic standards. The District uses Title I funds to provide additional academic support and learning opportunities to help low-achieving children master challenging curricula and meet state standards in core academic subjects. Such funds support extra instruction in reading and mathematics, as well as special preschool, after-school, and summer programs to extend and reinforce the regular school curriculum. Additionally, School set-asides are used to allocate space for small learning community (“SLC”) offices. An SLC, also referred to as a School-Within-A-School, is a form of school structure in secondary schools to subdivide large school populations into smaller, autonomous groups of students and teachers. SLCs include structures such as

freshman academies, multi-grade academies organized around career interests or other themes, “houses” in which small groups of students remain together throughout high school, and autonomous schools-within-a-school, as well as personalization strategies, such as student advisories, family advocate systems, and mentoring programs. Research continues to show that small schools and SLCs have the necessary elements to counteract the inherent negative effects of poverty and poor academic achievement for low-income students and/or students of color. (Cotton, *New Small Learning Communities: Findings from Recent Literature*, Portland, Ore: Northwest Regional Educational Laboratory (2001); Jimerson, *The Hobbit Effect: Why Small Works in Public Schools*, The Rural School and Community Trust (August 2006).)

28. At the middle school level, School set-asides are used, for example, for Personal Learning Environment (“PLE”) offices, the middle school equivalent to an SLC. Likewise, School set-asides may be used for the District’s Response to Instruction and Intervention (“RTI²”) program. RTI² integrates assessment and intervention within a multi-level prevention system to maximize student achievement and to reduce behavior problems. With RTI², schools identify students at risk for poor learning outcomes, monitor student progress, provide evidence-based interventions and adjust the intensity and nature of those interventions depending on a student’s responsiveness, and identify students with learning disabilities or other disabilities. In order to provide space to charter schools requesting Proposition 39 facilities, District staff has eliminated or reduced the number of School set-asides on certain campuses. This instructional disruption unfortunately disproportionately affects low-income, low-performing, or disabled District neighborhood children, those who need assistance the most. However, District staff has taken these disruptive measures in order to share facilities fairly with charter schools.

29. District set-asides use school space to implement key District-wide instructional, health, and safety programs. For example, these set-asides include space for District police, regional special educational testing centers, health center clinics, food service, and Beyond the Bell programs, among others. Eliminating these set-asides would deny or interfere with students’

ability to receive the special education and related services to which they are entitled, or force students to travel as much as 50 miles to the next closest center. In the 2023-24 fiscal year, the District's school-based health clinics are projected to provide approximately 156,000 visits to children who would otherwise have been challenged to access health care. The demand for health services remains as high as it did in the previous school year, and to eliminate these clinics would deprive the neediest children of vital services. Additionally, Beyond the Bell programs ensure that all children and youth in the District have access to high-quality, safe, and supervised academic, enrichment, and recreation programs that inspire learning and achievement beyond the regular school day (before and after school and Saturdays). The three components of Beyond the Bell include academic tutorial, recreational, and enrichment programs vital to the safety and wellbeing of school children. Improved school attendance and test scores have been attributed to student participation in Beyond the Bell's after-school programs. By providing supervision and engagement during after school hours when many parents may be working outside the home, Beyond the Bell's programs help reduce the risk that children might engage in drug or alcohol use, sexual activity, and/or crime. To eliminate Beyond the Bell programs would expose the thousands of children who utilize these programs on a daily basis to danger, harming their academic performance and their overall wellbeing.

30. Although District and School set-asides provide space for programs that are vital to the curriculum of a particular school or to District-wide goals, in order to share space fairly, District staff has cut into these set-asides where doing so would minimize the number of sites offered to a charter school in order to make a complete offer of space.

31. For the Next Fiscal Year, District staff had to grapple with the conflicting needs of 46 different charter school applicants and cycled through its comprehensive space matching process as conscientiously as possible, shifting space and potential matches to fulfill the District's obligation to share space fairly among all students – charter school students and those students

attending District schools alike. In doing so, District staff kept in the forefront considerations of student safety and welfare.

32. Often, many charter schools request to be located at the same school site, requiring District staff to assess conflicting geographic as well as particular site interests. In fact, 9 different charter schools (including Charter School) requested space in Region East for the Next Fiscal Year. District staff had to contend with the conflicting needs of these 9 charter schools, as well as all 46 eligible charter school applicants, shifting space and potential matches to fulfill the District's obligation to share space fairly among all in-district students. The process is extraordinarily dynamic with a complex set of ever-changing pieces, decisions regarding any one of which can result in very real ripple effects for students and programs across multiple school sites.

33. The District's space matching guidelines are just that – guidelines. They cannot be applied in a vacuum and without rationale. In allocating space to charter schools, the District must consider the impact on other public school students, both those attending District schools and those attending other charter schools requesting space. District staff applied the District's matching guidelines in conjunction with thoughtful considerations of the real world impacts on all public students in providing co-location offers to charter schools for the Next Fiscal Year.

34. The District began its space analysis for Charter School by examining data from E-CAR for Quincy Jones Elementary related to the 2024-25 school year. As explained above, the E-CAR enrollment for Quincy Jones Elementary is reflected in classroom usage as of September 15, 2023, which is known as "Norm Day." The E-CAR data is a "snapshot in time" that reflects classroom availability and usage at a particular school site at the time it is prepared. It is the baseline for the District's comprehensive space analysis of the current and projected utilization and availability of space for a charter school. It does not contemplate any prospective future revisions or factor in projected classroom usage for any subsequent school year, or changes in space utilization needs that occur after the E-CAR data is prepared, such as, for example, increases or decreases in the District school site's enrollment projections for the upcoming school year,

planned programmatic expansions, adjustments to ADA-to-classrooms ratios and/or assigned teachers, changes to grade levels served, construction projects, removal of portable classrooms, charter schools' potentially forthcoming Proposition 39 facilities requests, the planned occupancy by other charter schools or District programs, or any other factor that would result in an adjustment of the number of available classrooms for the Next Fiscal Year. E-CAR data indicated 0 unassigned/unallocated standard size classrooms at Quincy Jones Elementary at Norm Day. Charter School occupies 17 rooms at the school site in the current school year.

35. In the second week of November 2023, Region Offices were provided information regarding charter schools that had requested Proposition 39 space, and potential space availability at District school sites. Region East was advised of the District school site(s) and/or general geographic area in which Charter School wishes to locate, and that it was entitled to exclusively use a total of 22 spaces (18 instructional spaces, 3 special education spaces, and one administrative office space) for the Next Fiscal Year. Region East was also advised that there were 9 charter schools that had requested facilities within that same Region.

36. Meetings were also conducted between CSD, SMS-MPD, and others, so that additional District stakeholders such as Region Office leadership and school-site staff could provide further valuable input regarding important information, such as impacts of a potential co-location at a particular school site or unique site conditions that might make it unsuitable. Various provisional matches within each Region were identified and deliberated, and participants thoughtfully discussed potential recommendations as part of the District's comprehensive compliance effort. Per established protocols, the District also invited labor partners, including United Teachers Los Angeles, to Advisory meetings to offer feedback.

37. During the course of the meetings and numerous additional discussions, CSD, Region East, District administrators, SMS-MPD, and others discussed that Quincy Jones Elementary will not have adequate availability of space in the Next Fiscal Year to accommodate Charter School's entire projected in-district classroom ADA due to the planned programmatic needs as accounted

for in the E-CAR. Also evaluated were the needs, as operationally feasible and permitted by law, to support the District's 100 Priority Schools, Black Student Achievement Program (BSAP) schools, and Community Schools, and avoid outcomes that would compromise District schools' capacity to serve neighborhood children and/or result in grade span arrangements that negatively impact student safety and actively deter students from attending District schools. Due to these circumstances, Quincy Jones Elementary will be unable to accommodate Charter School's entire projected in-district classroom ADA in the Next Fiscal Year.

38. In summary, the District has no realistic ability to allocate 22 exclusive use classroom spaces to Charter School at the Quincy Jones Elementary site for the Next Fiscal Year. Allocating such space to Charter School would present significant safety, educational, scheduling, facilities, and operational challenges, and result in significantly harmful negative impacts, displacements, and disruptions to Quincy Jones Elementary students. Allocating such space to Charter School would result in an unfair sharing of space between Charter School and Quincy Jones Elementary on this school site.

39. If Charter School was provided 22 classroom spaces at Quincy Jones Elementary, it would so severely diminish the Quincy Jones Elementary program's usable instructional space that it could require some of its teachers to hold classes outside of classroom settings. Alternatively, Quincy Jones Elementary could either overcrowd its existing classrooms by reducing its teaching staff and increasing the number of student desks in classrooms or require two teachers to teach class simultaneously in one classroom. Both options would not only overburden the teachers forced to teach those classes, but would also unfairly crowd students and block safe access to doors. None of these possibilities are realistically feasible.

40. District staff has determined that the quality of the education for both Quincy Jones Elementary students and Charter School students would suffer significantly if Charter School were provided 22 classroom spaces at Quincy Jones Elementary. Quincy Jones Elementary's existing space constraints have already substantially impacted Quincy Jones Elementary students, teachers,

staff, and administrators. Provision of facilities sufficient to accommodate the entirety of charter school's projected in-district classroom ADA in the Next Fiscal Year would further exacerbate the negative harmful impacts to such a point that it would be impossible for all of the students to share space fairly and receive a proper education. It would also result in increased emotional hardship and further loss of morale in students, teachers, staff, and administrators alike.

41. To accommodate Charter School's entire in-district classroom ADA at Quincy Jones Elementary would also present substantial safety concerns for both charter and non-charter District students. By way of example, District staff estimated that to accommodate all of Charter School's students at Quincy Jones Elementary would require the forcible displacement of a significant number of students attending Quincy Jones Elementary. Displacing students out of Quincy Jones Elementary would have far-reaching safety, instructional, and social implications.

42. For instance, many Quincy Jones Elementary students walk to and from their school. Recent District budgetary cutbacks and the harsh economic climate have made the ability to walk to school a necessity for many families with in-district children. The District school bus program has realized service cuts and route eliminations which have affected many students. As a result of past budget deficits, transportation funding was reduced as part of stabilization efforts. The latest impact came in July 2012, when the District was forced to implement a change to the eligible busing distance for secondary schools from three miles to five miles. These cuts disproportionately affect poorer students and make the ability to walk to school even more crucial.

43. Not only is the ability to walk to school at Quincy Jones Elementary a necessity for some students, but walking to school also provides key health benefits. According to the California Department of Public Health ("DPH"), close to one-third of California's children are overweight or obese. The DPH's California Active Communities ("CAC"), in collaboration with CA4Health (a project of the Public Health Institute, with funding from the Centers for Disease Control and Prevention) has determined that a child's overall health is affected by levels of physical inactivity which can be directly linked to time spent in automobiles versus in active transportation such as

walking. Walking or biking to school provides an opportunity for purposeful physical activity toward the accumulation of the recommended 60 minutes or more of daily physical activity for children and youth. (Martin, Moeti and Pullen-Seufert, *Implementing Safe Routes to School: Application for the Socioecological Model and Issues to Consider* (2008).) Active transportation – such as walking and biking – to school can help increase physical activity levels of students and their families. (ChangeLabSolutions, *Incorporating Safe Routes to School into Local School Wellness Policies* (July 2015).) Physical activity reduces the risk of obesity and related chronic diseases, and improves mental health, attendance, and academic performance. (*Ibid.*) Active transportation can also have broad community benefits, including reducing traffic congestion and air pollution, creating safer streets, encouraging cost savings, and building a stronger sense of community. (*Ibid.*) Increasing physical activity through walking and biking to school can help address high obesity rates. (*Ibid.*)

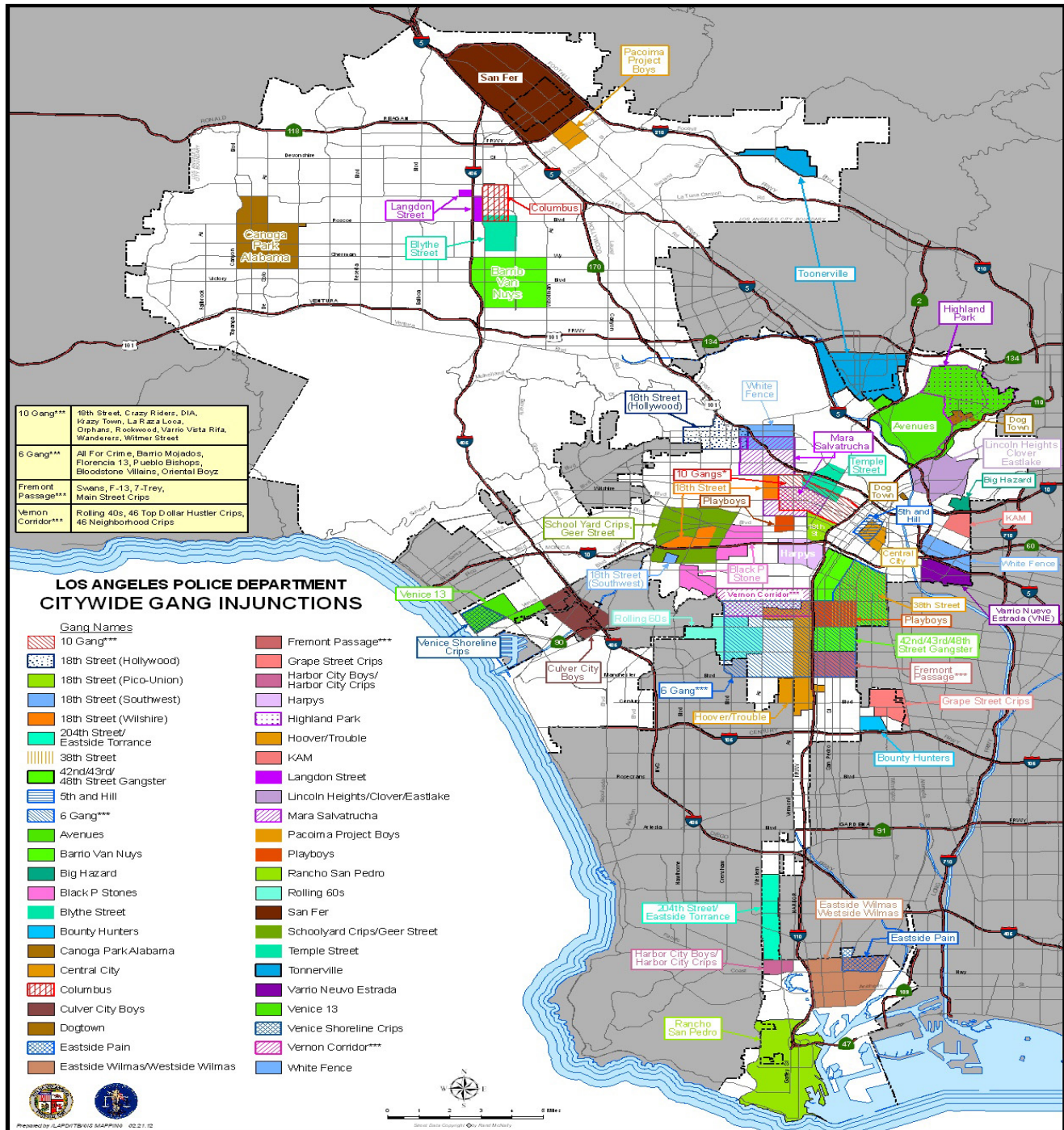
44. Empirical studies have determined that distance is a key impediment to children walking to school safely. (Martin, Moeti and Pullen-Seufert, *Implementing Safe Routes to School: Application for the Socioecological Model and Issues to Consider* (2008).) A study published in the Journal of Public Health Policy examines the multi-level correlates of walking to and from school. Of the physical environmental factors examined, the strongest negative correlates to walking to school were distance and safety concerns. (Zhu & Lee, *Correlates of Walking to School and Implications for Public Policies*, Journal of Public Health Policy (2009).) Recognizing distance as a barrier to the ability for a child to walk to school, CA4Health, the CAC, and the DPH support school siting as well as joint use policies and practices that encourage kids to walk or bike to school.

45. Displacing a significant number of students from Quincy Jones Elementary to make additional room for Charter School would prevent a significant number of Quincy Jones Elementary children who currently have the ability to safely walk to school from being able to do so. Conversely, Charter School draws its attendance from 21 different District schools. Therefore,

providing a single-site offer at Quincy Jones Elementary to Charter School would endanger a significant number of children currently attending their nearby school. Moreover, the forcible displacements would not just be limited to the children attending Quincy Jones Elementary. Instead, those students would need to be absorbed into other District schools which may have insufficient space, programs and/or resources to house the influx of students, and would thereby cause the additional forcible displacement of children from these absorbing schools. This would create a ripple effect of forcible displacements necessitating hundreds of children to relocate for the benefit of a far lesser number of Charter School's children. Such a decision would pose disproportionate harm to a significant number of Quincy Jones Elementary students and to those District students displaced by the influx of these students, and thus produce inequity in the sharing of facilities.

46. Not only does distance play a factor in children safely walking to school due to traffic dangers, but several Los Angeles neighborhoods are plagued by gang violence. In order to create safe passages to and from school in neighborhoods suffering from gang-related violence, meaningful programs and efforts to mitigate these risks have been launched, such as Kid Watch LA which instituted the Walking School Bus for District students. The Walking School Bus enlists parent and community volunteers to accompany groups of small children as they walk to and from their school.

47. According to the Los Angeles Police Department, the District is located within the territory known as the "gang capital" of the nation, with more than 450 competing gangs. Gang violence is unfortunately prevalent on some campuses and within the neighborhoods of several District schools. As shown by the map depicting former gang injunctions in Los Angeles below, Los Angeles gangs claim particular territories:



48. On March 15, 2018, the City of Los Angeles was enjoined from enforcing these gang injunctions. (See, *Youth Justice Coalition, et al., v. City of Los Angeles, et al.*, CV 16-07932 VAP.) The inability to enforce these injunctions may result in an increase in gang-related activity and crime.

49. Involuntarily displacing students who themselves or whose parents are tied to a particular gang and placing them in a different school located in the territory of another gang would potentially breed gang warfare and violence affecting all children, teachers, staff, and parents at a particular school.

50. Pulling children out of their District schools and placing charter students at those school sites prevents the displaced children from taking advantage of safety measures such as the Walking School Bus and other relevant considerations their families have made, and therefore unfairly endangers the safety of those displaced children. These harms disproportionately affect students attending District schools. As parents of charter school students have elected to send their child to a school outside of his or her local attendance area, the parents have secured a means of transporting their child to this school. However, parents of children who attend District schools may not have the means to find alternate transportation and need to rely on children walking to their school. With the aforementioned reduction of several school bus routes and potential further elimination of transportation funding, many forcibly displaced children will be forced to walk long, unsafe distances or take unsafe public transit routes.

51. Displacing children attending Quincy Jones Elementary for the purpose of making a single-site offer to Charter School would have additional instructional and social ramifications. California has an accountability system reported through the California School Dashboard. The state's accountability system includes a three-level identification and support system for local educational agencies, and categorizes district performance levels using a system of five status levels (ranging from Very High, High, Medium, Low and Very Low). The 2022 Dashboard showed the District was assigned a Medium Status level for two of the six state indicators based on the performance of all student groups: English Learner Progress and Graduate Rate indicators. A Low status level was assigned to English Language Arts ("ELA") and Mathematics, and a Very Low status level for Suspension Rate. The District received one Very High-status level for Chronic Absenteeism. Of the thirteen student groups reported, four were in the Very Low status level, five

in Low, three in High, and one in Very High. For the 2023 Dashboard, District performance levels were categorized using a system of five colors, stated in order from lowest to highest performing (Red, Orange, Yellow, Green, and Blue), except in the College/Career Indicator. The 2023 Dashboard results indicate that the District received an Orange performance level for English Learner Progress, Graduation Rate, and English Language Arts (Academic Indicator). The District also received a Yellow performance level for Chronic Absenteeism and Mathematics (Academic Indicator). Though the District received a Yellow indicator for Chronic Absenteeism, it is important to note that the District decreased its chronic absenteeism by 8.8-percentage points to 31% from 39.8% in 2022. In addition, the District received a Blue performance level for its Suspension Rate, and a Medium status level for the College/Career Indicator. In examining the performance of the thirteen student groups, the Dashboard indicates that no student received a Red performance level for Chronic Absenteeism. Among the other indicators, only three of thirteen student groups received at least one Red performance Level. In contrast, twelve student groups received at least one Blue performance level.

52. The District is continuing its efforts to improve performance in all state indicators. Displacing District children attending their District school at Quincy Jones Elementary would thwart these efforts, and have instructional and social ramifications. Studies have empirically established that disrupting a child's trajectory to his or her district high school effectively increases drop-out rates. A review of 25 years of research conducted by the California Dropout Research Project identified strong predictors of dropping out of high school. The compilation study identified non-promotional school changes (student mobility) during middle school and high school as a key predictor of a child dropping out of school. (Rumberger & Lim, *Why Students Drop Out: A Review of 25 Years of Research*, California Dropout Research Project (October 2008).)

53. In 1998, a seminal study on the educational consequences of student mobility found a high causal connection between student mobility and an increased risk of high school drop-out.

The staggering results of this study indicate that controlling for other predictors, students who made even one non-promotional school change between the eighth and twelfth grades were twice as likely to not complete high school as students who did not change schools. (Rumberger & Larson, *Student Mobility and the Increased Risk of High School Dropout*, American Journal of Education 107 (November 1998).)

54. The safety and welfare of all students is the District's paramount concern and principal charge. The data is indisputable that children who drop out of school are at far greater risk of a vast array of physical, social, and economic harm than those who stay in school and complete their secondary education. This paramount concern of the District remains a material consideration when weighing whether to forcibly displace children from their existing school (such as Quincy Jones Elementary) in order to make way for students who would attend school at that site (such as Charter School) from distant neighborhoods, especially when other solutions for sharing space fairly are feasible.

55. An additional impact of such displacement would be the difficulty of sustaining the same level of parental involvement in the absorbing schools. California State Board of Education Policy #89-01 acknowledges that a critical dimension of effective schooling is parental involvement. This policy initiative states that research studies demonstrate parental involvement at school propels a child's educational career. Forcibly displacing students attending Quincy Jones Elementary would make it more challenging for those children to reap the benefits of parental involvement in their new schools.

56. An alternative to displacing students attending Quincy Jones Elementary would be to overcrowd the site by adding more of Charter School's students. However, this would cause severe safety and operational ramifications due to the design capacity of the Quincy Jones Elementary site, making this course of action infeasible. Adding Charter School's students to the Quincy Jones Elementary site or any other District campus with insufficient space to feasibly accommodate Charter School's total in-district classroom ADA would raise both schools'

classroom loading ratios, thereby disadvantaging both of these schools' children. Likewise, having children over a school site's capacity sharing space would pose a great risk to student safety and well-being.

57. In making decisions regarding allocations of space, District staff placed the safety of students attending Charter School, Quincy Jones Elementary, and other charter and District schools at the forefront of the decision-making process. District staff made substantial efforts to locate charter schools, including Charter School, at or near their desired geographic location and further made material efforts to minimize the number of sites on which each charter school was located. As Charter School's parents/guardians have made a decision to place their child in a school outside of their District school, they have had the opportunity to weigh the safety implications of this decision for their child. On the contrary, the families of forcibly displaced students would have no place in such a decision-making process. Thus, forcibly displacing children from Quincy Jones Elementary and/or other impacted District schools would not afford their parents/guardians the same opportunity. In addition, the decision to forcibly displace students to make way for Charter School students necessarily will have safety impacts upon the displaced children, whereas, given the fact that many Charter School students already voluntarily travel to attend Charter School, these children may not face any increased safety risk by being required to, for example, travel five miles east instead of five miles south.

58. Based on the foregoing, the District determined that it was simply not feasible to provide Charter School with a single-site offer at Quincy Jones Elementary, and because only a total of 12 spaces (9 teaching stations, 2 special education spaces, and one administrative office space) could be provided to Charter School at Quincy Jones Elementary for the Next Fiscal Year, a portion of Charter School's in-district classroom ADA would need to be accommodated at one or more additional site(s). Therefore, in order to ensure a sufficient allocation of special education and administrative office spaces are provided to Charter School at each District school site, the District has identified 12 classrooms (9 instructional spaces, 2 special education spaces, and one

administrative office space) at one or more additional District school site(s). While it is always the District's goal to accommodate a charter school's entire program on a single District school site, sometimes charter schools must be offered space on more than one site, particularly if, as in the case of Charter School, the charter school has a large projected in-district classroom ADA and has indicated in its facilities request a preference not to be moved from its current site.

59. Based on the geographic area of interest identified in Charter School's Facilities Request, the District reviewed and considered the space availability at various alternative nearby District sites with reasonably equivalent facilities in order to accommodate the remainder of Charter School's ADA that could not be accommodated at Quincy Jones Elementary.

60. Although it would be preferable to accommodate Charter School's entire program at the Quincy Jones Elementary site for the Next Fiscal Year, for the reasons set forth herein it is not possible to provide Charter School with 22 classrooms at the Quincy Jones Elementary site without presenting significant, safety, educational, scheduling, facilities, and operational challenges. The 28th Street Elementary site, which is within Region East and Board District 5, and is located 0.5 miles from the Quincy Jones Elementary site according to Google Maps, is the closest reasonably equivalent school site that could also accommodate Charter School. Considering that the District spans over 710 square miles and serves over 27 cities, and based on the plain language of California Code of Regulations, title 5, section 11969.2, subdivision (d), the 28th Street Elementary site is "contiguous" with the Quincy Jones Elementary site.

61. Based on all of the foregoing considerations, District staff recommends providing Charter School with a multi-site offer of contiguous facilities at the Recommended Co-Locations.

ATTACHMENT 12(b): SYNERGY CHARTER ACADEMY**Board of Education Finding that Synergy Charter Academy Cannot Be Accommodated at a Single Site and Written Statement of Reasons Explaining the Finding (Cal. Code Regs., tit. 5, § 11969.2, subd. (d)), and Determination of Necessity to Move**

Whereas, Under Proposition 39, the Los Angeles Unified School District (“District”) is required to fairly share space between public school pupils, charter and non-charter students alike;

Whereas, In making an allocation of space, the District attempts to place a charter school applicant on one school site or, when that is not feasible, alternatively attempts to minimize the number of school sites on which the charter school applicant is placed;

Whereas, In making an allocation of space, the District materially considers the safety implications to charter and District school students of making a multi-site offer, and balances the safety, instructional, and social consequences of displacing children from their District schools, as well as the burdens associated with such an action on their parents and the community;

Whereas, For the Next Fiscal Year, 46 charter schools requested facilities under the Proposition 39 process, asking for approximately 13,110 seats from the District;

Whereas, Charter School submitted an application for Proposition 39 facilities for the Next Fiscal Year;

Whereas, The Board hereby incorporates by reference the entire Staff Report on the Deliberative Process for Determining Why Charter School Cannot be Accommodated at a Single Site for the Next Fiscal Year;

Whereas, District staff engaged in an effort to create a single-site offer to accommodate Charter School’s total in-district classroom ADA;

Whereas, The District cannot accommodate Charter School’s request for a single site at Quincy Jones Elementary;

Whereas, 9 different charter schools (including Charter School) requested space in Region East for the Next Fiscal Year;

Whereas, District staff determined that Quincy Jones Elementary (the only District school site or general geographic area in which Charter School wishes to be located) will not have sufficient classroom space to accommodate Charter School’s entire projected in-district classroom ADA in the Next Fiscal Year;

Whereas, The District cannot accommodate Charter School’s entire in-district classroom ADA at Quincy Jones Elementary;

Whereas, To accommodate Charter School's entire in-district classroom ADA at Quincy Jones Elementary would present substantial, disproportionate safety concerns for both Charter School's students and students attending their District school;

Whereas, To accommodate all of Charter School's students at Quincy Jones Elementary would require the displacement of a significant number of children attending Quincy Jones Elementary, and potentially additional District schools;

Whereas, Involuntarily displacing children out of their existing District schools has far-reaching safety, instructional, and social implications including: prohibiting children from safely walking to school; subjecting children to possible gang violence; increasing high-school drop-out rates; and impairing parental involvement in their children's schools;

Whereas, Based on these safety and instructional considerations, District staff recommends keeping the student populations of Quincy Jones Elementary and other District schools intact;

Whereas, Alternatively, over-crowding a school's campus in order to provide a single-site offer to Charter School would have equally severe safety and operational ramifications, making this course of action infeasible;

Whereas, The District can provide Charter School with a multi-site contiguous offer of reasonably equivalent facilities at the "Recommended Co-Locations";

Whereas, Providing Charter School space at the Recommended Co-Locations minimizes the number of sites assigned to Charter School;

Whereas, Because of the short distance between the Recommended Co-Locations in a school district spanning 710 square miles and serving over 27 cities, the Recommended Co-Locations are contiguous facilities;

Whereas, By providing space to Charter School at the Recommended Co-Locations, the District has made reasonable efforts to provide Charter School with facilities near to where Charter School wishes to locate; and

Whereas, The District can make a complete and contiguous, multi-site offer to accommodate Charter School's entire in-district classroom ADA; therefore be it

Resolved, That pursuant to California Code of Regulations, title 5, section 11969.2, subdivision (d), for the reasons set forth herein and as further expressed by District staff, the Governing Board of the Los Angeles Unified School District finds that the District cannot accommodate Charter School at a single school site;

Resolved, That pursuant to Education Code sections 35160-35160.1 and 47614, and California Code of Regulations, title 5, section 11969.1, et seq., for the reasons set forth herein and as further expressed by District staff, the Governing Board of the Los Angeles Unified School District

authorizes a preliminary proposal and final offer of facilities to Charter School for the Next Fiscal Year at multiple District school sites; and therefore be it finally

Resolved, That pursuant to Education Code section 47614, subdivision (b), for the reasons set forth herein and as further expressed by District staff, if to the extent that part of Charter School's operations which existed at the Quincy Jones Elementary site for the 2023-24 school year must be accommodated at the 28th Street Elementary site for the Next Fiscal Year constitutes a "move" of Charter School, the Governing Board of the Los Angeles Unified School District determines that such a move is necessary.

ATTACHMENT 13(a): WISH COMMUNITY SCHOOL**Staff Report on Deliberative Process for Determining Why WISH Community School Cannot be Accommodated at a Single Site****Charter School's Facilities Request**

1. On or before November 1, 2023, WISH Community School ("Charter School") submitted a Proposition 39 Online Facilities Request Form ("Facilities Request") to the District, requesting use of District facilities for a projected in-district classroom average daily attendance ("ADA") of 719.42 in grades TK-8 for the 2024-25 school year ("Next Fiscal Year"). Charter School identified 77 different District schools that its charter school students would otherwise attend. Charter School's Facilities Request was one of 46 that the District received for the Next Fiscal Year. Charter School requested facilities at Wright Middle School or Westchester Enriched Sciences Magnets ("Requested Sites"). Charter School is currently operating at Wright Middle School and Westchester Enriched Sciences Magnets.

2. District staff reviewed information provided in support of Charter School's ADA projections and determined that a reasonable in-district classroom ADA projection for Charter School is 719.42.

3. Education Code section 47614, subdivision (b) requires the District to provide charter schools with facilities sufficient for the charter school to accommodate all of its in-district students in conditions "reasonably equivalent" to those in which the students would be accommodated if they were attending other public schools of the district.

4. To determine whether the conditions of facilities provided to a charter school are "reasonably equivalent" to the school district facilities that charter school students would otherwise attend, the District adheres to the Proposition 39 implementing regulations (California Code of Regulations, title 5, section 11969.1, et seq.) which direct school districts to measure those facilities against the facilities used by district students at a "comparison group" of schools. As the

District is divided into high school attendance areas, in selecting comparison group schools, the District must follow California Code of Regulations, title 5, section 11969.3, subdivision (a)(2), which states, “[t]he comparison group shall be the district-operated schools with similar grade levels that serve students living in the high school attendance area... in which the largest number of students of the charter school reside.” District staff reviewed Charter School’s projected in-district classroom ADA broken down by grade level and its identification of the 77 different District schools its projected charter school students would otherwise attend. Based on the information provided by Charter School, District staff determined that the attendance area where the largest number of Charter School’s projected students reside is the Westchester Enriched Sciences Magnets - Health/Sports Med attendance area. Consequently, based on the grade levels that Charter School projects it will serve, District staff identified the following as the District-operated schools with similar grade levels that serve students within the Westchester Enriched Sciences Magnets - Health/Sports Med attendance area; i.e., Charter School’s comparison group schools: Cowan Avenue Elementary, Katherine Johnson STEM Academy, Kentwood Elementary, Loyola Village Elementary Fine/Performing Arts Magnet, Paseo del Rey Elementary, Playa Vista Elementary, Westport Heights Elementary, Windsor Hills Elementary Math/Science Aerospace Magnet, and Orville Wright Engineering and Design Magnet.

5. The District also follows California Code of Regulations, title 5, section 11969.3, subdivision (b)(1), which requires that the facilities made available by a school district to a charter school shall be provided in the same ratio of teaching stations (classrooms) to ADA as those provided to students in the district attending comparison group schools. To implement a fair sharing of space, the District determines the ratio of ADA-to-classrooms provided for each of the charter school’s comparison group schools and uses an average of those figures to determine the number of classrooms to provide to the charter school. It also results in the District allocating classroom space sufficient to allow a charter school to maintain the same minimum number of seats in a classroom as maintained in the District’s comparison group schools, that is, to maintain

conditions reasonably equivalent to the comparison group schools as required by Proposition 39. In other words, it results in accommodating charter school students on District school sites as they would be accommodated if they otherwise attended those District schools. Consequently, this calculation is used to ensure the number of classrooms provided to charter schools is equivalent to the number of classrooms provided at their comparison group schools.

6. Relying upon an in-district classroom ADA projection of 719.42 for the Next Fiscal Year, and an average ADA to classrooms provided ratio at the comparison group schools of 18.32, the District determined that Charter School is entitled to 39 teaching stations (classrooms) and one space to be used as its administrative office. The District also determined that Charter School is entitled to 5 special education space(s).

7. Charter School's facilities request states: "WISH Community would like to be all together on the Wright Middle School Campus or the Westchester Enriched Sciences Magnet Campus. If that is not possible, it would like to stay in its current locations both on the Wright Middle School Campus and Westchester Enriched Sciences Magnet Campus.... If a contiguous space cannot be provided for WISH Community grades TK-Grade 8 at Wright MS or Westchester SH then WISH would like to continue to co-locate on both campuses. Due to its close connection with LMU and its status as a professional development school. WISH must remain within close proximity to the university. Other sites within the target geographic area are Westchester SH, Emerson Adult School, Playa Vista Elementary, Paseo Del Rey, Loyola Village, Playa Del Rey, and any other elementary or middle schools within a 1-mile radius of Loyola Marymount University and within the 90045 zip code."

8. Based on the foregoing, if the in-district classroom ADA of Charter School cannot be accommodated entirely at either of the Requested Sites in the Next Fiscal Year, District staff recommends allocating Charter School facilities at both Westchester Enriched Sciences Magnets and Wright Middle School and additional school site(s).

9. Education Code section 47614, subdivision (b), provides that facilities provided to a charter school by a school district must be, among other things, “contiguous.” The definition of “contiguous” expressed in California Code of Regulations, title 5, section 11969.2, subdivision (d), states that facilities are “contiguous” if they are contained on the school site or immediately adjacent to the school site, and that if the in-district classroom ADA of a charter school cannot be accommodated on any single school district school site, contiguous facilities also includes facilities located at more than one site, provided that the school district shall minimize the number of sites assigned and shall consider student safety. As explained below, pursuant to Proposition 39, District staff first engaged in an effort to create a single-site offer to accommodate Charter School’s projected total in-district classroom ADA in the Next Fiscal Year. District staff evaluated space at each of the Requested Sites (the District school sites at which Charter School wishes to locate) and determined that the Requested Sites will not have sufficient classroom space to accommodate Charter School’s total in-district classroom ADA in the Next Fiscal Year. Rather than attempt to locate Charter School on a single site different from the Requested Sites, pursuant to Education Code section 47614, District staff engaged in an effort to satisfy Charter School’s request and provide a multi-site allocation of contiguous facilities.

10. Therefore, District staff recommends providing space at the following locations to Charter School to accommodate its total in-district classroom ADA for the Next Fiscal Year: Wright Middle School and Westchester Enriched Sciences Magnets (collectively, the “Recommended Co-Locations”). By providing space to Charter School at the Recommended Co-Locations, the District has made reasonable efforts to provide Charter School with facilities near to where Charter School wishes to locate and to minimize the number of sites assigned to Charter School.

**Process District Staff Followed to Locate Space for Charter School Pursuant to
Proposition 39**

11. The District’s Charter Schools Division (“CSD”) determined that in the 2023-24

school year, more than 148,194 students enrolled in charter schools authorized by the District. This figure reflects a 1,865 student decrease compared to the number of students enrolled during the previous school year. In the 2023-24 school year, the District had the most charter students attending schools authorized by a District of any school district in the nation. The District ensured that every eligible in-district charter student was offered a seat.

12. For the 2024-25 Proposition 39 cycle, the District is applying a comprehensive process to ensure that every eligible in-district charter school student is offered a seat at a District campus. The District is following a critical schedule of steps, from receiving the initial request for facilities by a charter school to making facilities ready for occupancy, in order to timely meet the Proposition 39 timeline. The general process District staff is following in administrating Charter School's Facilities Request is the same that it used to process each of the other facilities requests the District received from charter schools for the Next Fiscal Year. That process is as follows:

13. Beginning in September 2023, School Management Services and Master Planning & Demographics ("SMS-MPD") staff, which includes District personnel in the District's Facilities Services Division experienced in public school facilities utilization that assess all of the educational space within the District, conducted a comprehensive analysis of the use of District classrooms school facilities, called E-CAR. E-CAR was implemented at the beginning of the Proposition 39 process to assess capacity at school sites throughout the District, and commenced with a preparation period during which SMS-MPD staff examined materials submitted by all District schools in the previous year for accuracy, as well as for consistency with previous assessments' classroom usage and availability determinations. The SMS-MPD staff applied standard formulae for the usage of classrooms in order to generate an objective and uniform assessment of the amount of total classroom space at District school sites. The purpose of this calculus is to assess the number of classrooms required to accommodate instructional program enrollment, based on grade level and specific course subject matters at secondary schools.

14. Next, the E-CAR process involves District school principals at more than 700 District school sites logging into an online application to validate their school's enrollment and to

review and confirm details regarding the school site's classrooms and their respective utilization. Specifically, the principals identified and validated classroom space utilized as teaching stations and "set-asides" (classrooms used for purposes other than general education), along with classroom numbers, locations, and sizes. Additionally, the principals identified classrooms occupied by special education programs, charter schools, preschools, alternative education programs, option programs, and other third-party users, as well as swing space needed for construction projects, and classrooms that are out of service or mandated for removal due to legal and/or safety/physical condition requirements. The purpose of E-CAR is to accurately assess the current capacity of each District school site in several respects: the number and size of classrooms, the manner in which those classrooms are currently used, and the school's operating capacity. E-CAR entails a detailed review of the present use of District school sites and an analysis of the projected future uses of those facilities. The analysis includes reporting of data by individual schools, which is reviewed by SMS-MPD staff to confirm its accuracy and to ensure that space is used efficiently and uniformly throughout the District.

15. To ensure that District school administrators are provided the resources necessary for a complete and accurate assessment of their school's capacity, they were instructed to reference the following resource materials for their school site: A current school map; the school's former or most recent Norm Day classification report (which details the number of students enrolled at that school on September 15, 2023); the Norm Day classification report for any magnet centers and/or dual language programs located on the school site; the Classroom Inventory and Allocation Worksheet pages from the prior school year's Capacity Assessment Review report, which contains information for classroom counts and allocations into precisely-defined categories; and the number of teaching positions in all categories, including general education, special day, magnet, dual-language, physical education, and off-norm-funded positions.

16. Categorizing classrooms in this way is important because a school's capacity involves more than its raw seats and room numbers. The District must determine whether a school site has facilities available to sufficiently serve the particular requirements of a school, such as

grade levels, special education programs, magnet centers, Small Learning Communities, Personalized Learning Environments, legal mandates, and other student needs.

17. District staff reviewed the foregoing data regarding specific capacity information at District school sites for the Next Fiscal Year. Utilizing this data, SMS-MPD provided CSD with the number of estimated available classrooms, at each District school site given specific operating capacities per programmatic and mandated qualifiers. When planning for maximal use of available school facilities, and in interpreting data generated during the course of facilities planning, it is absolutely critical to understand the difference between “unallocated classrooms” and “available seats.” To illustrate, a hypothetical District school may not have any unallocated classrooms but may have individual available seats in classrooms currently occupied. As a result, the school may be able to absorb 100 students into its existing classrooms by identifying two free seats spread out among 50 of its classrooms that are used for instruction appropriate to the grade level and subject matter requirements for the students being absorbed. Thus, it is an entirely different proposition to provide and integrate 100 seats across a campus than to provide four or five unallocated classrooms with the same total number of contiguous available seats. In many instances, there may be many available seats in a school, but no unallocated classrooms. This is especially the case for District middle and high schools where the students do not sit in one classroom all day, like an elementary school, but instead attend four or more different classes per day, each in different classrooms and with different teachers and groups of students, in order to receive the mandated curriculum.

18. SMS-MPD generated each instructional program’s operating capacity using a complex mathematical formula which took into account all aspects of the schools’ operations. The operating capacity also accounted for classrooms designated as “set asides.” Public school districts are required to provide special education space, and a parent center at each school which is classified as a set-aside. Also, pre-kindergarten and adult education students are served in classrooms at school sites across the District.

19. District staff analyzed each District school’s estimated available seats and classrooms for the Next Fiscal Year based on the data.

20. As a public institution, the District is required to provide an education to every student who chooses to enroll. The District previously planned its programming and staffing based on estimated enrollment projections, but in the event projections were short, the District was still obligated to provide an education to students who were not originally anticipated. As a safeguard against the overcrowding of classrooms in such situations, the District historically prepared to reserve 75 seats at every secondary school and 50 seats at every elementary school for additional unanticipated enrollment. Importantly, however, beginning in 2013 and continuing this year, District staff examined the actual historical enrollment data over the last several years at each school site to determine if a trend could be empirically established demonstrating unanticipated growth. Based upon this analysis, the District determined that no seats at any District school sites offered to a charter school should be reserved for unanticipated growth.

21. The District uses the definition contained in California Code of Regulations, title 5, section 11969.3, subdivision (a)(2) to determine comparison group schools. No two schools are identical; however, on a grade-alike basis, a significant majority of the District's schools share reasonably equivalent conditions, especially when taking into account age, quality of materials and state of maintenance, school site size, conditions of surfaces as well as mechanical, plumbing, electrical and fire-life systems, including conformity to applicable codes, availability and condition of technology infrastructure, the condition of the facility as a safe learning environment, including, but not limited to, the suitability of lighting, noise mitigation, and size for intended use, the conditions of the facility's furnishings and equipment, and the condition of athletic fields and play area space. As part of this process, District staff determined whether the conditions of school facilities offered to a charter school were reasonably equivalent to those of the comparison group schools.

Matching Guidelines Utilized by the District for Charter School

22. In accordance with applicable law, the District is guided by the following matching guidelines in order to make contiguous offers of space to charter schools in facilities with

reasonably equivalent conditions to those which would accommodate the charter students if they otherwise attended District schools:

- Consider student safety and welfare
- Identify reasonably equivalent facilities
- Minimize the number of sites assigned
- Make reasonable efforts to provide facilities near to where the charter school wishes to locate
- Avoid moving a charter school unnecessarily
- Minimize disruption to District and charter programs
- Fairly balance the needs of District and charter programs
- Avoid displacing any District students from their school of attendance
- Maximize use of unallocated classroom space (i.e., those with no designated use and would be vacant/unassigned in a particular fiscal year, as identified in the District's annual comprehensive analysis of space on District school sites. Classrooms used to provide additional programming or services are not considered unallocated classroom space, and are categorized according to their specific designation).

23. District staff makes every reasonable effort to locate space on a single site, or on multiple sites only if necessary or specifically requested by the charter school, in the charter school applicant's geographic area of interest. Consequently, District staff first attempts to accommodate charter schools at a single school site and looks for available facilities sufficient to accommodate the entirety of a charter school's projected in-district classroom ADA within its desired area of geographic interest. Only when no single school site can be feasibly identified based upon school site design and occupancy limitations, as well as after taking into account the paramount considerations of both District and charter school student safety and welfare, does the District make offers that contemplate the use of multiple school sites.

24. District staff first identifies the classroom inventory by grade level configuration in each geographic region. Grade-alike matches typically provide reasonably equivalent space to charter schools; therefore, wherever possible, District staff allocates space to charter applicants on grade-alike school facilities.

25. District staff next identifies which charter school applicants are currently located in District facilities that they have identified in their geographic area of interest for the following Proposition 39 cycle and, when feasible, matches those charter schools to those school sites.

District staff then examines and identifies the geographic areas of interest of other charter school applicants. As described above, multiple charter schools often request space in the exact same location so District staff must assess conflicting geographic as well as particular site interests. In doing so, District staff examines whether the potential match would utilize all available classrooms and whether the match represents a full, single-site offer. Priority is given to those charters where these two goals can be achieved.

26. Based on an examination of these criteria, District staff makes a preliminary match of available classrooms at a particular site to the projected in-district classroom ADA of each charter school. District staff attempts to find the most geographically relevant grade-alike matches. District staff seeks to minimize disruption to and fairly balance the needs of District and charter programs. For multi-site scenarios, District staff eliminates set-asides whenever reasonably possible to reduce the number of sites assigned to a charter school, which often results in being able to transform multi-site offers to single-site offers. While endeavoring to preserve programmatic spaces essential to enriching instruction and student health and human services, District staff may need to engage in the materially disruptive measure of eliminating or otherwise impacting set-asides used to provide services at District schools in order to share space fairly among charter and non-charter students in the District. Set-asides are divided into two categories: District set-asides and School set-asides.

27. School set-asides allocate space for instructional, safety, and health programs that are specific to a particular school. For example, Title I funding coordinator offices are considered School set-asides. Title I funding provides financial assistance to schools with high numbers or high percentages of low-income children to help ensure that all children meet challenging state academic standards. The District uses Title I funds to provide additional academic support and learning opportunities to help low-achieving children master challenging curricula and meet state standards in core academic subjects. Such funds support extra instruction in reading and mathematics, as well as special preschool, after-school, and summer programs to extend and

reinforce the regular school curriculum. Additionally, School set-asides are used to allocate space for small learning community (“SLC”) offices. An SLC, also referred to as a School-Within-A-School, is a form of school structure in secondary schools to subdivide large school populations into smaller, autonomous groups of students and teachers. SLCs include structures such as freshman academies, multi-grade academies organized around career interests or other themes, “houses” in which small groups of students remain together throughout high school, and autonomous schools-within-a-school, as well as personalization strategies, such as student advisories, family advocate systems, and mentoring programs. Research continues to show that small schools and SLCs have the necessary elements to counteract the inherent negative effects of poverty and poor academic achievement for low-income students and/or students of color. (Cotton, *New Small Learning Communities: Findings from Recent Literature*, Portland, Ore: Northwest Regional Educational Laboratory (2001); Jimerson, *The Hobbit Effect: Why Small Works in Public Schools*, The Rural School and Community Trust (August 2006).)

28. At the middle school level, School set-asides are used, for example, for Personal Learning Environment (“PLE”) offices, the middle school equivalent to an SLC. Likewise, School set-asides may be used for the District’s Response to Instruction and Intervention (“RTI²”) program. RTI² integrates assessment and intervention within a multi-level prevention system to maximize student achievement and to reduce behavior problems. With RTI², schools identify students at risk for poor learning outcomes, monitor student progress, provide evidence-based interventions and adjust the intensity and nature of those interventions depending on a student’s responsiveness, and identify students with learning disabilities or other disabilities. In order to provide space to charter schools requesting Proposition 39 facilities, District staff has eliminated or reduced the number of School set-asides on certain campuses. This instructional disruption unfortunately disproportionately affects low-income, low-performing, or disabled District neighborhood children, those who need assistance the most. However, District staff has taken these disruptive measures in order to share facilities fairly with charter schools.

29. District set-asides use school space to implement key District-wide instructional, health, and safety programs. For example, these set-asides include space for District police, regional special educational testing centers, health center clinics, food service, and Beyond the Bell programs, among others. Eliminating these set-asides would deny or interfere with students' ability to receive the special education and related services to which they are entitled, or force students to travel as much as 50 miles to the next closest center. In the 2023-24 fiscal year, the District's school-based health clinics are projected to provide approximately 156,000 visits to children who would otherwise have been challenged to access health care. The demand for health services remains as high as it did in the previous school year, and to eliminate these clinics would deprive the neediest children of vital services. Additionally, Beyond the Bell programs ensure that all children and youth in the District have access to high-quality, safe, and supervised academic, enrichment, and recreation programs that inspire learning and achievement beyond the regular school day (before and after school and Saturdays). The three components of Beyond the Bell include academic tutorial, recreational, and enrichment programs vital to the safety and wellbeing of school children. Improved school attendance and test scores have been attributed to student participation in Beyond the Bell's after-school programs. By providing supervision and engagement during after school hours when many parents may be working outside the home, Beyond the Bell's programs help reduce the risk that children might engage in drug or alcohol use, sexual activity, and/or crime. To eliminate Beyond the Bell programs would expose the thousands of children who utilize these programs on a daily basis to danger, harming their academic performance and their overall wellbeing.

30. Although District and School set-asides provide space for programs that are vital to the curriculum of a particular school or to District-wide goals, in order to share space fairly, District staff has cut into these set-asides where doing so would minimize the number of sites offered to a charter school in order to make a complete offer of space.

31. For the Next Fiscal Year, District staff had to grapple with the conflicting needs of 46 different charter school applicants and cycled through its comprehensive space matching process as conscientiously as possible, shifting space and potential matches to fulfill the District's obligation to share space fairly among all students – charter school students and those students attending District schools alike. In doing so, District staff kept in the forefront considerations of student safety and welfare.

32. Often, many charter schools request to be located at the same school site, requiring District staff to assess conflicting geographic as well as particular site interests. In fact, 12 different charter schools (including Charter School) requested space in Region West for the Next Fiscal Year. District staff had to contend with the conflicting needs of these 12 charter schools, as well as all 46 eligible charter school applicants, shifting space and potential matches to fulfill the District's obligation to share space fairly among all in-district students. The process is extraordinarily dynamic with a complex set of ever-changing pieces, decisions regarding any one of which can result in very real ripple effects for students and programs across multiple school sites.

33. The District's space matching guidelines are just that – guidelines. They cannot be applied in a vacuum and without rationale. In allocating space to charter schools, the District must consider the impact on other public school students, both those attending District schools and those attending other charter schools requesting space. District staff applied the District's matching guidelines in conjunction with thoughtful considerations of the real world impacts on all public students in providing co-location offers to charter schools for the Next Fiscal Year.

34. The District began its space analysis for Charter School by examining data from E-CAR for the Requested Sites related to the 2024-25 school year. As explained above, the E-CAR enrollment for the Requested Sites is reflected in classroom usage as of September 15, 2023, which is known as "Norm Day." The E-CAR data is a "snapshot in time" that reflects classroom availability and usage at a particular school site at the time it is prepared. It is the baseline for the

District's comprehensive space analysis of the current and projected utilization and availability of space for a charter school. It does not contemplate any prospective future revisions or factor in projected classroom usage for any subsequent school year, or changes in space utilization needs that occur after the E-CAR data is prepared, such as, for example, increases or decreases in the District school site's enrollment projections for the upcoming school year, planned programmatic expansions, adjustments to ADA-to-classrooms ratios and/or assigned teachers, changes to grade levels served, construction projects, removal of portable classrooms, charter schools' potentially forthcoming Proposition 39 facilities requests, the planned occupancy by other charter schools or District programs, or any other factor that would result in an adjustment of the number of available classrooms for the Next Fiscal Year. E-CAR data indicated 0 unassigned/unallocated standard size classrooms at Wright Middle School and 0 unassigned/unallocated standard size classrooms at Westchester Enriched Sciences Magnets at Norm Day. Charter School occupies 25 exclusive use spaces at Wright Middle School and 19 exclusive use spaces at Westchester Enriched Sciences Magnets in the current school year.

35. In the second week of November 2023, Region Offices were provided information regarding charter schools that had requested Proposition 39 space, and potential space availability at District school sites. Region West was advised of the District school site(s) and/or general geographic area in which Charter School wishes to locate, and that it was entitled to exclusively use a total of 45 spaces (39 instructional spaces, 5 special education spaces, and one administrative office space) for the Next Fiscal Year. Region West was also advised that there were 12 charter schools that had requested facilities within that same Region.

36. Meetings were also conducted between CSD, SMS-MPD, and others, so that additional District stakeholders such as Region Office leadership and school-site staff could provide further valuable input regarding important information, such as impacts of a potential co-location at a particular school site or unique site conditions that might make it unsuitable. Various provisional matches within each Region were identified and deliberated, and participants

thoughtfully discussed potential recommendations as part of the District's comprehensive compliance effort. Per established protocols, the District also invited labor partners, including United Teachers Los Angeles, to Advisory meetings to offer feedback.

37. During the course of the meetings and numerous additional discussions, CSD, Region West, District administrators, SMS-MPD, and others discussed that neither of the Requested Sites will have adequate availability of space in the Next Fiscal Year to accommodate Charter School's entire projected in-district classroom ADA due to the planned programmatic needs as accounted for in the E-CAR. Also evaluated were the needs, as operationally feasible and permitted by law, to support the District's 100 Priority Schools, Black Student Achievement Program (BSAP) schools, and Community Schools, and avoid outcomes that would compromise District schools' capacity to serve neighborhood children and/or result in grade span arrangements that negatively impact student safety and actively deter students from attending District schools. Due to these circumstances, neither of the Requested Sites will be able to accommodate Charter School's entire projected in-district classroom ADA in the Next Fiscal Year.

38. In summary, the District has no realistic ability to allocate 45 exclusive use classroom spaces to Charter School at either of the Requested Sites for the Next Fiscal Year. Allocating such space to Charter School would present significant safety, educational, scheduling, facilities, and operational challenges, and result in significantly harmful negative impacts, displacements, and disruptions to students at the Requested Sites. Allocating such space to Charter School would result in an unfair sharing of space between Charter School and the Requested Sites.

39. If Charter School was provided 45 classroom spaces at either of the Requested Sites it would so severely diminish the site's program's usable instructional space that it could require some teachers to hold classes outside of classroom settings. Alternatively, the Requested Sites could either overcrowd its existing classrooms by reducing its teaching staff and increasing the number of student desks in classrooms or require two teachers to teach class simultaneously in one classroom. Both options would not only overburden the teachers forced to teach those classes, but

would also unfairly crowd students and block safe access to doors. None of these possibilities are realistically feasible.

40. District staff has determined that the quality of the education for students attending school at the Requested Sites and Charter School would suffer significantly if Charter School were provided 45 classroom spaces at either of the Requested Sites. Existing space constraints at the Requested Sites have already substantially impacted the Requested Sites' students, teachers, staff, and administrators. Provision of any additional classroom space to Charter School in the Next Fiscal Year would further exacerbate the negative harmful impacts to such a point that it would be impossible for all of the students to share space fairly and receive a proper education. It would also result in increased emotional hardship and further loss of morale in students, teachers, staff, and administrators alike.

41. To accommodate Charter School's entire in-district classroom ADA at either of the Requested Sites would also present substantial safety concerns for both charter and non-charter District students. By way of example, District staff estimated that to accommodate all of Charter School's students at either of the Requested Sites would require the forcible displacement of a significant number of students attending the site. Displacing students out of the Requested Sites would have far-reaching safety, instructional, and social implications.

42. For instance, many of the Requested Sites' students walk to and from their school. Recent District budgetary cutbacks and the harsh economic climate have made the ability to walk to school a necessity for many families with in-district children. The District school bus program has realized service cuts and route eliminations which have affected many students. As a result of past budget deficits, transportation funding was reduced as part of stabilization efforts. The latest impact came in July 2012, when the District was forced to implement a change to the eligible busing distance for secondary schools from three miles to five miles. These cuts disproportionately affect poorer students and make the ability to walk to school even more crucial.

43. Not only is the ability to walk to school at the Requested Sites a necessity for some

students, but walking to school also provides key health benefits. According to the California Department of Public Health (“DPH”), close to one-third of California’s children are overweight or obese. The DPH’s California Active Communities (“CAC”), in collaboration with CA4Health (a project of the Public Health Institute, with funding from the Centers for Disease Control and Prevention) has determined that a child’s overall health is affected by levels of physical inactivity which can be directly linked to time spent in automobiles versus in active transportation such as walking. Walking or biking to school provides an opportunity for purposeful physical activity toward the accumulation of the recommended 60 minutes or more of daily physical activity for children and youth. (Martin, Moeti and Pullen-Seufert, *Implementing Safe Routes to School: Application for the Socioecological Model and Issues to Consider* (2008).) Active transportation – such as walking and biking – to school can help increase physical activity levels of students and their families. (ChangeLabSolutions, *Incorporating Safe Routes to School into Local School Wellness Policies* (July 2015).) Physical activity reduces the risk of obesity and related chronic diseases, and improves mental health, attendance, and academic performance. (*Ibid.*) Active transportation can also have broad community benefits, including reducing traffic congestion and air pollution, creating safer streets, encouraging cost savings, and building a stronger sense of community. (*Ibid.*) Increasing physical activity through walking and biking to school can help address high obesity rates. (*Ibid.*)

44. Empirical studies have determined that distance is a key impediment to children walking to school safely. (Martin, Moeti and Pullen-Seufert, *Implementing Safe Routes to School: Application for the Socioecological Model and Issues to Consider* (2008).) A study published in the Journal of Public Health Policy examines the multi-level correlates of walking to and from school. Of the physical environmental factors examined, the strongest negative correlates to walking to school were distance and safety concerns. (Zhu & Lee, *Correlates of Walking to School and Implications for Public Policies*, Journal of Public Health Policy (2009).) Recognizing distance as a barrier to the ability for a child to walk to school, CA4Health, the CAC, and the DPH

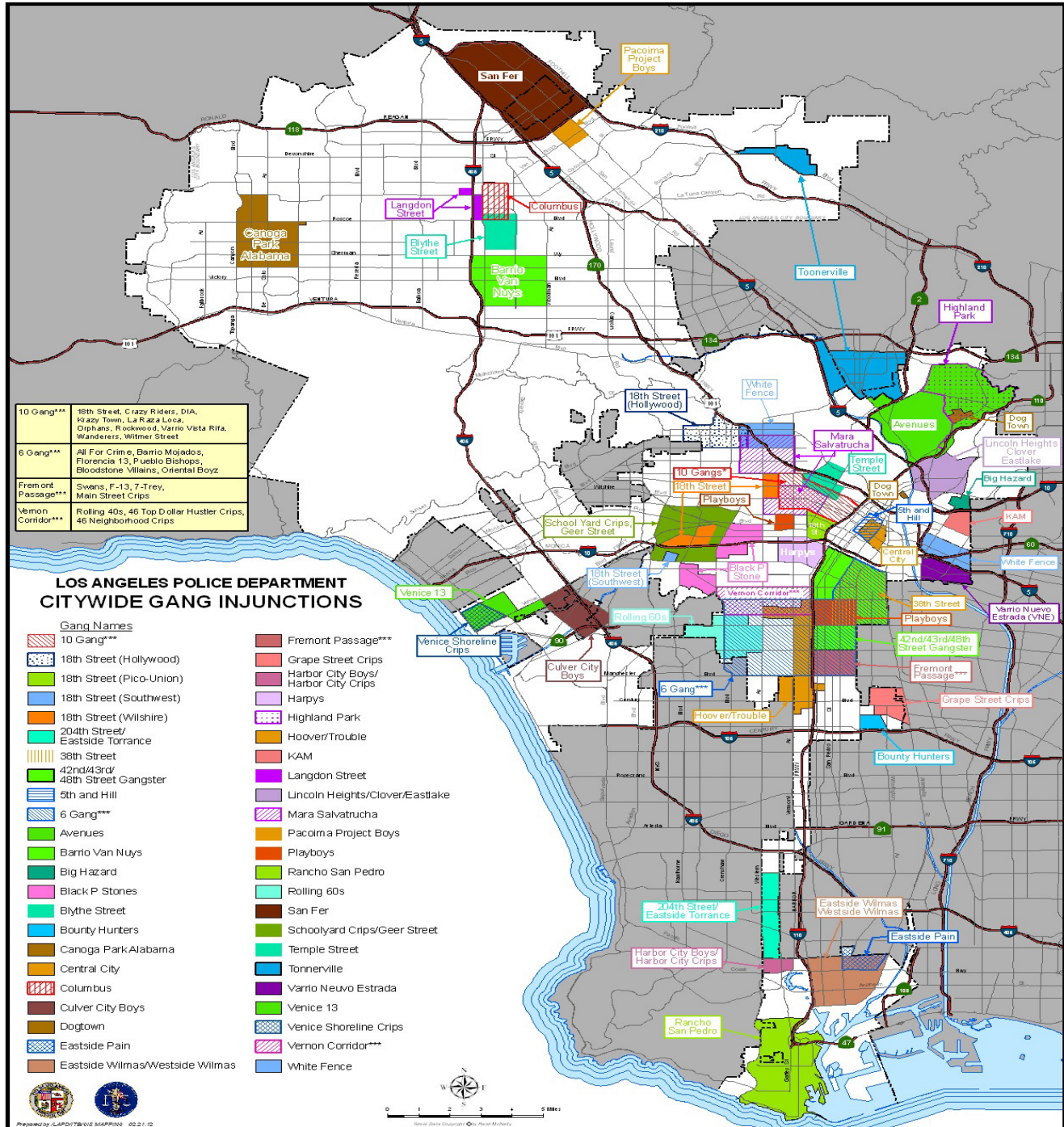
support school siting as well as joint use policies and practices that encourage kids to walk or bike to school.

45. Displacing a significant number of students from the Requested Sites to make additional room for Charter School would prevent a significant number of the children who currently have the ability to safely walk to school from being able to do so. Conversely, Charter School draws its attendance from 77 different District schools. Therefore, providing a single-site offer at either of the Requested Sites to Charter School would endanger a significant number of children currently attending their nearby school. Moreover, the forcible displacements would not just be limited to the children attending the Requested Sites. Instead, those students would need to be absorbed into other District schools which may have insufficient space, programs and/or resources to house the influx of students, and would thereby cause the additional forcible displacement of children from these absorbing schools. This would create a ripple effect of forcible displacements necessitating hundreds of children to relocate for the benefit of a far lesser number of Charter School's children. Such a decision would pose disproportionate harm to a significant number of students attending school at the Requested Sites, and to those District students displaced by the influx of these students, and thus produce inequity in the sharing of facilities.

46. Not only does distance play a factor in children safely walking to school due to traffic dangers, but several Los Angeles neighborhoods are plagued by gang violence. In order to create safe passages to and from school in neighborhoods suffering from gang-related violence, meaningful programs and efforts to mitigate these risks have been launched, such as Kid Watch LA which instituted the Walking School Bus for District students. The Walking School Bus enlists parent and community volunteers to accompany groups of small children as they walk to and from their school.

47. According to the Los Angeles Police Department, the District is located within the territory known as the "gang capital" of the nation, with more than 450 competing gangs. Gang

violence is unfortunately prevalent on some campuses and within the neighborhoods of several District schools. As shown by the map depicting former gang injunctions in Los Angeles below, Los Angeles gangs claim particular territories:



48. On March 15, 2018, the City of Los Angeles was enjoined from enforcing these gang injunctions. (See, *Youth Justice Coalition, et al., v. City of Los Angeles, et al.*, CV 16-07932 VAP.) The inability to enforce these injunctions may result in an increase in gang-related activity and crime.

49. Involuntarily displacing students who themselves or whose parents are tied to a particular gang and placing them in a different school located in the territory of another gang would potentially breed gang warfare and violence affecting all children, teachers, staff, and parents at a particular school.

50. Pulling children out of their District schools and placing charter students at those school sites prevents the displaced children from taking advantage of safety measures such as the Walking School Bus and other relevant considerations their families have made, and therefore unfairly endangers the safety of those displaced children. These harms disproportionately affect students attending District schools. As parents of charter school students have elected to send their child to a school outside of his or her local attendance area, the parents have secured a means of transporting their child to this school. However, parents of children who attend District schools may not have the means to find alternate transportation and need to rely on children walking to their school. With the aforementioned reduction of several school bus routes and potential further elimination of transportation funding, many forcibly displaced children will be forced to walk long, unsafe distances or take unsafe public transit routes.

51. Displacing children attending the Requested Sites for the purpose of making a single-site offer to Charter School would have additional instructional and social ramifications. California has an accountability system reported through the California School Dashboard. The state's accountability system includes a three-level identification and support system for local educational agencies, and categorizes district performance levels using a system of five status levels (ranging from Very High, High, Medium, Low and Very Low). The 2022 Dashboard showed the District was assigned a Medium Status level for two of the six state indicators based on the performance

of all student groups: English Learner Progress and Graduate Rate indicators. A Low status level was assigned to English Language Arts (“ELA”) and Mathematics, and a Very Low status level for Suspension Rate. The District received one Very High-status level for Chronic Absenteeism. Of the thirteen student groups reported, four were in the Very Low status level, five in Low, three in High, and one in Very High. For the 2023 Dashboard, District performance levels were categorized using a system of five colors, stated in order from lowest to highest performing (Red, Orange, Yellow, Green, and Blue), except in the College/Career Indicator. The 2023 Dashboard results indicate that the District received an Orange performance level for English Learner Progress, Graduation Rate, and English Language Arts (Academic Indicator). The District also received a Yellow performance level for Chronic Absenteeism and Mathematics (Academic Indicator). Though the District received a Yellow indicator for Chronic Absenteeism, it is important to note that the District decreased its chronic absenteeism by 8.8-percentage points to 31% from 39.8% in 2022. In addition, the District received a Blue performance level for its Suspension Rate, and a Medium status level for the College/Career Indicator. In examining the performance of the thirteen student groups, the Dashboard indicates that no student received a Red performance level for Chronic Absenteeism. Among the other indicators, only three of thirteen student groups received at least one Red performance Level. In contrast, twelve student groups received at least one Blue performance level.

52. The District is continuing its efforts to improve performance in all state indicators. Displacing District children attending their District school at the Requested Sites would thwart these efforts, and have instructional and social ramifications. Studies have empirically established that disrupting a child’s trajectory to his or her district high school effectively increases drop-out rates. A review of 25 years of research conducted by the California Dropout Research Project identified strong predictors of dropping out of high school. The compilation study identified non-promotional school changes (student mobility) during middle school and high school as a key

predictor of a child dropping out of school. (Rumberger & Lim, *Why Students Drop Out: A Review of 25 Years of Research*, California Dropout Research Project (October 2008).)

53. In 1998, a seminal study on the educational consequences of student mobility found a high causal connection between student mobility and an increased risk of high school drop-out. The staggering results of this study indicate that controlling for other predictors, students who made even one non-promotional school change between the eighth and twelfth grades were twice as likely to not complete high school as students who did not change schools. (Rumberger & Larson, *Student Mobility and the Increased Risk of High School Dropout*, American Journal of Education 107 (November 1998).)

54. The safety and welfare of all students is the District's paramount concern and principal charge. The data is indisputable that children who drop out of school are at far greater risk of a vast array of physical, social, and economic harm than those who stay in school and complete their secondary education. This paramount concern of the District remains a material consideration when weighing whether to forcibly displace children from their existing school (such as the Requested Sites) in order to make way for students who would attend school at that site (such as Charter School) from distant neighborhoods, especially when other solutions for sharing space fairly are feasible.

55. An additional impact of such displacement would be the difficulty of sustaining the same level of parental involvement in the absorbing schools. California State Board of Education Policy #89-01 acknowledges that a critical dimension of effective schooling is parental involvement. This policy initiative states that research studies demonstrate parental involvement at school propels a child's educational career. Forcibly displacing students attending the Requested Sites would make it more challenging for those children to reap the benefits of parental involvement in their new schools.

56. An alternative to displacing students attending either of the Requested Sites would be to overcrowd the sites by adding more of Charter School's students. However, this would cause

severe safety and operational ramifications due to the design capacity of the Requested Sites, making this course of action infeasible. Adding Charter School's students to either of the Requested Sites, or any other District campus with insufficient space to feasibly accommodate Charter School's total in-district classroom ADA would raise both schools' classroom loading ratios, thereby disadvantaging both of these schools' children. Likewise, having children over a school site's capacity sharing space would pose a great risk to student safety and well-being.

57. In making decisions regarding allocations of space, District staff placed the safety of students attending Charter School, the Requested Sites, and other charter and District schools at the forefront of the decision-making process. District staff made substantial efforts to locate charter schools, including Charter School, at or near their desired geographic location and further made material efforts to minimize the number of sites on which each charter school was located. As Charter School's parents/guardians have made a decision to place their child in a school outside of their District school, they have had the opportunity to weigh the safety implications of this decision for their child. On the contrary, the families of forcibly displaced students would have no place in such a decision-making process. Thus, forcibly displacing children from either of the Requested Sites and/or other impacted District schools would not afford their parents/guardians the same opportunity. In addition, the decision to forcibly displace students to make way for Charter School students necessarily will have safety impacts upon the displaced children, whereas, given the fact that many Charter School students already voluntarily travel to attend Charter School, these children may not face any increased safety risk by being required to, for example, travel five miles east instead of five miles south.

58. Based on the foregoing, the District determined that it was simply not feasible to provide Charter School with a single-site offer at either of the Requested Sites for the Next Fiscal Year.

59. While it is always the District's goal to accommodate a charter school's entire program on a single District school site, sometimes charter schools must be offered space on more

than one site, particularly if, as in the case of Charter School, the charter school has a large projected in-district classroom ADA and has indicated in its facilities request a preference not to be moved from its current sites if a single site co-location at the Requested Sites is not possible. Therefore, the following spaces have been identified for allocation to Charter School at the Requested Sites in the Next Fiscal Year: 27 spaces (23 teaching stations, 3 special education spaces, and one administrative office space) at Wright Middle School; and 19 spaces (16 teaching stations, 2 special education spaces, and one administrative office space) at Westchester Enriched Sciences Magnets.

60. Although it would be preferable to accommodate Charter School's entire program at either of the Requested Sites for the Next Fiscal Year, for the reasons set forth herein it is not possible to provide Charter School with 45 classrooms at one of the Requested Sites without presenting significant, safety, educational, scheduling, facilities, and operational challenges. The Requested Sites, which are located 2.1 miles from each other according to Google Maps and are both within Region West and Board District 4, were expressly requested by Charter School. Charter School is also currently occupying space at both the Westchester Enriched Sciences Magnets and Wright Middle School sites. Considering that the District spans over 710 square miles and serves over 27 cities, and based on the plain language of California Code of Regulations, title 5, section 11969.2, subdivision (d), the Westchester Enriched Sciences Magnets site is "contiguous" with the Wright Middle School site.

61. Based on all of the foregoing considerations, District staff recommends providing Charter School with a multi-site offer of contiguous facilities at the Recommended Co-Locations.

ATTACHMENT 13(b): WISH COMMUNITY SCHOOL**Board of Education Finding that WISH Community School Cannot Be Accommodated at a Single Site and Written Statement of Reasons Explaining the Finding (Cal. Code Regs., tit. 5, § 11969.2, subd. (d))**

Whereas, Under Proposition 39, the Los Angeles Unified School District (“District”) is required to fairly share space between public school pupils, charter and non-charter students alike;

Whereas, In making an allocation of space, the District attempts to place a charter school applicant on one school site or, when that is not feasible, alternatively attempts to minimize the number of school sites on which the charter school applicant is placed;

Whereas, In making an allocation of space, the District materially considers the safety implications to charter and District school students of making a multi-site offer, and balances the safety, instructional, and social consequences of displacing children from their District schools, as well as the burdens associated with such an action on their parents and the community;

Whereas, For the Next Fiscal Year, 46 charter schools requested facilities under the Proposition 39 process, asking for approximately 13,110 seats from the District;

Whereas, Charter School submitted an application for Proposition 39 facilities for the Next Fiscal Year;

Whereas, The Board hereby incorporates by reference the entire Staff Report on the Deliberative Process for Determining Why Charter School Cannot be Accommodated at a Single Site for the Next Fiscal Year;

Whereas, District staff engaged in an effort to create a single-site offer to accommodate Charter School’s total in-district classroom ADA;

Whereas, The District cannot accommodate Charter School’s request for a single site at any of the District school site(s) and/or in the geographic area in which Charter School wishes to locate;

Whereas, 12 different charter schools (including Charter School) requested space in Region West for the Next Fiscal Year;

Whereas, District staff determined that the Requested Sites (the only District school sites or general geographic area in which Charter School wishes to be located) will not have sufficient classroom space to accommodate Charter School’s entire projected in-district classroom ADA in the Next Fiscal Year;

Whereas, The District cannot accommodate Charter School’s entire in-district classroom ADA at a single school site;

Whereas, To accommodate Charter School's entire in-district classroom ADA at the Requested Sites would present substantial, disproportionate safety concerns for both Charter School's students and students attending their District school;

Whereas, To accommodate all of Charter School's students at the Requested Sites would require the displacement of a significant number of children attending the Requested Sites, and potentially additional District schools;

Whereas, Involuntarily displacing children out of their existing District schools has far-reaching safety, instructional, and social implications including: prohibiting children from safely walking to school; subjecting children to possible gang violence; increasing high-school drop-out rates; and impairing parental involvement in their children's schools;

Whereas, Based on these safety and instructional considerations, District staff recommends keeping the student populations of the Requested Sites and other District schools intact;

Whereas, Alternatively, over-crowding a school's campus in order to provide a single-site offer to Charter School would have equally severe safety and operational ramifications, making this course of action infeasible;

Whereas, The District can provide Charter School with a multi-site contiguous offer of reasonably equivalent facilities at the "Recommended Co-Locations";

Whereas, Providing Charter School space at the Recommended Co-Locations minimizes the number of sites assigned to Charter School;

Whereas, Because of the short distance between the Recommended Co-Locations in a school district spanning 710 square miles and serving over 27 cities, the Recommended Co-Locations, they are contiguous facilities;

Whereas, By providing space to Charter School at the Recommended Co-Locations, the District has made reasonable efforts to provide Charter School with facilities near to where Charter School wishes to locate; and

Whereas, The District can make a complete and contiguous, multi-site offer to accommodate Charter School's entire in-district classroom ADA; therefore be it

Resolved, That pursuant to California Code of Regulations, title 5, section 11969.2, subdivision (d), for the reasons set forth herein and as further expressed by District staff, the Governing Board of the Los Angeles Unified School District finds that the District cannot accommodate Charter School at a single school site; and therefore be it finally

Resolved, That pursuant to Education Code sections 35160-35160.1 and 47614, and California Code of Regulations, title 5, section 11969.1, et seq., for the reasons set forth herein and as further expressed by District staff, the Governing Board of the Los Angeles Unified School District

authorizes a preliminary proposal and final offer of facilities to Charter School for the Next Fiscal Year at multiple District school sites.